

# CAPTAIN FLY-BY-NIGHT

by  
Johnston McCulley

# CAPTAIN FLY-BY-NIGHT

by  
Johnston McCulley

## **The Project Gutenberg eBook of Captain Fly-by-Night**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Captain Fly-by-Night

Author: Johnston McCulley

Release date: February 7, 2024 [eBook #72893]

Language: English

Original publication: New York: G. Howard Watt, 1926

Other information and formats: [www.gutenberg.org/ebooks/72893](http://www.gutenberg.org/ebooks/72893)

Credits: Susan E., Tim Lindell, Thiers Halliwell, who created the book cover, which is placed in the public domain and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This book was produced from images made available by the HathiTrust Digital Library.)

\*\*\* START OF THE PROJECT GUTENBERG EBOOK CAPTAIN FLY-  
BY-NIGHT \*\*\*

# **CAPTAIN FLY-BY-NIGHT**

# CAPTAIN FLY-BY-NIGHT

*By*

**JOHNSTON McCULLEY**

AUTHOR OF "THE RANGERS' CODE"



NEW YORK

G. HOWARD WATT

1819 BROADWAY

1926

*Copyright, 1926, by*  
G. HOWARD WATT  
*All rights reserved*

*Printed in the United States of America*

**To**  
**MY DAUGHTER**  
**MAURINE**



# CONTENTS

| CHAPTER                         | PAGE                       |
|---------------------------------|----------------------------|
| I. THE NEOPHYTE DROPS A CUP     | <a href="#"><u>11</u></a>  |
| II. ALONG THE HIGHWAY           | <a href="#"><u>35</u></a>  |
| III. MYSTERIES                  | <a href="#"><u>48</u></a>  |
| IV. A COYOTE HOWLS              | <a href="#"><u>63</u></a>  |
| V. TWO GOOD SAMARITANS          | <a href="#"><u>76</u></a>  |
| VI. VISITORS                    | <a href="#"><u>91</u></a>  |
| VII. TWO TALKS AND A TUNNEL     | <a href="#"><u>100</u></a> |
| VIII. A VICTOR RUNS AWAY        | <a href="#"><u>112</u></a> |
| IX. THE ALARM                   | <a href="#"><u>128</u></a> |
| X. OUTLAWED                     | <a href="#"><u>135</u></a> |
| XI. AT THE PRESIDIO             | <a href="#"><u>148</u></a> |
| XII. A TRAGEDY                  | <a href="#"><u>162</u></a> |
| XIII. THE EAVESDROPPER          | <a href="#"><u>175</u></a> |
| XIV. UNMASKED                   | <a href="#"><u>187</u></a> |
| XV. THE WAY IN                  | <a href="#"><u>200</u></a> |
| XVI. THE WAY OUT                | <a href="#"><u>210</u></a> |
| XVII. "PERSPIRATION, SEÑORITA!" | <a href="#"><u>226</u></a> |



|                                |                            |
|--------------------------------|----------------------------|
| XVIII. FOES IN WAITING         | <a href="#"><u>232</u></a> |
| XIX. CASSARA SEES A GHOST      | <a href="#"><u>243</u></a> |
| XX. ANOTHER VISITOR            | <a href="#"><u>254</u></a> |
| XXI. IN THE GUEST HOUSE        | <a href="#"><u>260</u></a> |
| XXII. “COMMAND ME, SEÑORITA!”  | <a href="#"><u>267</u></a> |
| XXIII. LOVE IN DARKNESS        | <a href="#"><u>274</u></a> |
| XXIV. LOVE PROVES TRUE         | <a href="#"><u>287</u></a> |
| XXV. THE SERGEANT SLEEPS AGAIN | <a href="#"><u>299</u></a> |

# CAPTAIN FLY-BY-NIGHT



# CHAPTER I

## THE NEOPHYTE DROPS A CUP

His great body stretched on the dirt floor in a shady corner of the barracks-room of the presidio, his long moustache drooped, his big mouth open, Sergeant Carlos Cassara snored.

His face was purple from wine and the heat; for the air was still and stagnant this siesta hour, and empty vessels on the table near by told of the deep drinking that had been done.

Scattered about were a corporal and a dozen soldiers, all sleeping and snoring. Against the wall, half a score of feet from the slumbering sergeant, an Indian neophyte had dropped his palm-leaf and was glancing around the room from beneath eyelids that seemed about to close.

Outside was the red dust, a foot deep on the highway, and the burning sun. The fountain before the mission splashed lazily; down at the beach it seemed that the tide had not its usual energy. Neophytes slept in the shadows cast by the mission walls. Here and there a robed fray went about his business despite the heat and the hour. There was no human being travelling El Camino Real—the king's highway—as far as a man with good eyes could see.

It was typical of the times—this siesta hour—with the blue California sky above and the green Pacific sparkling in the distance, and the spirit of present peace over old Santa Barbara and its mission. Yet the peace, being one of decadence and therefore uncertain, was like to be broken at any time, as all men knew.

Gone were the days of the sainted Junipero Serra and his coadjutors, who founded the mission chain from San Diego de Alcalá to San Francisco de

Asis and made them strong in service to the natives and of wealth in cattle and horses, olives, honey and wine, tallow and hides.

Now the Mexican Republic held sway, with its haughty governor riding up and down El Camino Real in dignity; Indians—both gentiles and neophytes—were sullen and enraged because of lands that had been taken from them; officials sold concessions and robbed right royally; and dissolute men created an atmosphere that combatted that created by the frailes.

Robed Franciscans raised eyes to the skies and prayed for an end of such unsubstantial, turbulent times. And in this mingling of atmosphere Sergeant Carlos Cassara slept, and his corporal and soldiers slept, and the flies buzzed, and the neophyte servant nodded against the wall.

Half an hour passed. The neophyte, whose duty it was to wave the palm-leaf and keep flies and bees off the face of the sergeant, swept the big fan through the air languidly, glanced around to be sure that all slept, then got slowly and silently to his feet.

Once more he waved the fan, then dropped it and crept like a ghost across the room to the open door. He stood in it for a moment, shading his eyes with his hand, and looked up El Camino Real toward the north. Sergeant Carlos Cassara continued his snoring, but he opened one eye and watched the Indian closely.

Again the neophyte glanced back into the barracks-room, and for that instant the sergeant's eye was closed. When it opened a second time the Indian was contemplating the highway as before, and the manner in which he stood expressed in itself hope and eagerness.

Presently he turned from the doorway to find that the sergeant was sitting up on the floor and regarding him. Mingled fear and rage flashed in the neophyte's eyes, then died out, and he hung his head and stood waiting.

"Dog of a neophyte!" Cassara roared. "Is this the way you attend to your duties? Wander away and let your betters be eaten by flies, eh? Does not your padre teach you to guard your superiors at all times?"

"Pardon, *señor*."

"Pardon, coyote? 'Tis but a short distance from the presidio to the mission proper, yet a bullet can find your heart before you can reach the chapel and

seek sanctuary!”

The sergeant, grunting, got upon his feet, his eyes never leaving those of the unfortunate neophyte, one hand fumbling at the hilt of his sword, the other reaching for a whip that hung on a peg in the adobe wall.

“Come!” he commanded.

“Pardon, *señor*,” the neophyte whimpered again.

“A fly stung me while you lingered in the doorway. ’Tis proper that you, also, should be stung!”

“Pardon——”

“Have you no other word? *Dios!* Pardon—pardon—pardon! Turn your back!”

“Par——”

“Say it not again, or by the good Saint Barbara, for whom this post was named, I’ll have your hide off your body in strips! Turn your back, dog!”

The whip sang through the air. Came a screech from the neophyte even before the lash touched his bare back! Corporal and soldiers sprang to their feet, half terrified at the sudden din, reaching for their weapons, trying to throw off their heavy sleep. Again the lash, and again the screech! Across the shoulders of the Indian two great welts showed. He dropped to his knees; and the lash sang on, verse after verse of its diabolical song, while the soldiers laughed and shouted their approval—until Sergeant Carlos Cassara finally hurled the whip to a far corner of the room and wiped the perspiration from his brow with the back of his hand.

“’Tis hot for such work, yet it must be done,” he grunted. “Get up, hound! Hereafter do your duties as you have been commanded. And now, tell me—what were you doing at the door?”

“I thought I heard someone approach, *señor*. It was but for an instant——”

“Do not talk so to me with your crooked tongue! Your padre should teach you truthfulness. As I snored I kept an eye open to watch. You stood there minute after minute, looking up El Camino Real. Whom do you expect?”

“If the *señor* will par——”

“Do not say it again! For whom were you looking?”

“I have a brother at San Francisco de Asis, *señor*. He has been helping the good padre there. He is due to return——”

“And you so love your brother that you would run to meet him, eh?” the sergeant interrupted. “Straighten your tongue, dog, and answer me my question!”

“I swear that I have a brother coming, *señor*!”

“Um! If you swear, I suppose that it must be so. At least the padre teaches you to respect an oath. But was it your brother for whom you were looking? Answer me that!”

“I am anxious to greet him, *señor*. He has been a long time in the north.”

“No doubt. Take your bruised back to the other room, now, and fetch wine. And if you wish to live to greet your brother, be sure that you fetch it quickly!”

The neophyte glided away as the soldiers laughed. Sergeant Cassara stalked to the table in the middle of the room, and the others crowded around him when he beckoned.

“This neophyte will bear watching,” the sergeant announced. “I have suspected him for several days. He has a sneaking way about him, the dog! He would like to slit our throats as we sleep, no doubt!”

“It is true that he has a brother coming from San Francisco de Asis,” the corporal offered. “I heard him speaking of it yesterday to a fray.”

“That part of it may be true. Each of the hounds has a score of brothers. ’Tis the man’s great anxiety to greet this brother of his that arouses my curiosity. Seldom does an Indian betray such family devotion. With seditious messages going and coming up and down the highway——”

“But our orders are merely to be watchful of all strangers,” the corporal put in.

“Strangers! How long has it been since a genuine stranger of any quality drifted along El Camino Real? Answer me that! Strangers, eh? Watch the padres and the neophytes, say I! There is little love lost between the presidio and the chapel! At the same time——”

The sergeant stopped speaking, for the Indian had come into the room again, carrying a jug of wine. His head was bent forward on his breast, and he walked like a man suffering pain. There was silence as he filled the drinking cups; he stood to one side as the soldiers drank. Again he made the round of the table and filled the cups, then put the jug down and hurried out.

“If the man’s brother comes, it will be well to investigate him before he reaches the chapel and has a talk with the padre,” continued the sergeant. “A curse on this land of sun and dust and flies! ’Tis a dog’s life—’tis an old man’s life, worse! There was a time when neophytes joined with gentiles and gave us fight. Those were the good days—half a score of us, perhaps, against a hundred of the red wretches!”

“If rumour proves true, those good days may come again soon,” the corporal remarked.

“Glad would I be to welcome them! A man’s blade grows rusty and his sword-arm heavy with fat. Who can put heart in shooting when it is only to shoot at a mark? I am half minded to keep to myself anything I may discover. Let them form their conspiracy, say I! It will give soldiers good work to do!”

He put his empty cup on the table and walked across the room; the others sank back on their stools again. Sergeant Cassara stood in the open doorway looking toward the mission and watching a flock of sheep, just down from their grazing-place in the hills. The heat waves danced before his half-closed eyes. Corporal and soldiers began nodding again over their cups.

Then Cassara turned and glanced toward the north. Far down the highway was a swirl of dust. Cassara shaded his eyes with his cupped hands and gazed in that direction. The soldiers heard him utter an exclamation, saw him straighten suddenly and express interest.

“By the good Saint Barbara!” he exclaimed. “A stranger comes at last!”

Corporal and soldiers dropped their wine cups and hurried across the room. They looked where their sergeant pointed. Down El Camino Real, kicking up great clouds of red dust, came a man. No fray or neophyte, this, nor a native runner on business connected with the missions! Here was a gay caballero clad in zarape and sombrero, who staggered as he walked and carried a burden on his back.



“Is the world coming to an end, that gentlemen of quality walk the highway and pack their belongings?” the sergeant cried.

“’Tis a saddle he bears,” the corporal added. “I can see the sun flashing from the silver on it. This is a peculiar thing. Perhaps he has met with disaster, is wounded and we should give him aid.”

“I suppose, according to orders, some of us should go out in this devil’s blaze and accost him,” the sergeant returned. “A caballero who walks the highway and packs his saddle surely is a suspicious personage. However, we’ll wait for a time. If he is wounded, he cannot escape—and he must pass the presidio. Send a man to awaken the ensign, corporal. ’Tis rare to think we have legitimate excuse for waking him—he loves his sleep too well, that pretty officer of ours!”

“Your caballero is coming here!” the corporal announced.

“So he is! He turns off the main highway! A gentlemanly caballero, at least, to save us a journey out in the sun. Mind your manners, now! Do not make him suspicious. Do you attend to your own business, all of you, and allow me to do the talking. But awaken the ensign, just the same!”

The neophyte had entered the barracks-room again and was refilling the wine cups, and from the cupboard he carried a fresh one to the table for the approaching stranger. His lips were set tightly over his teeth because of the pain the lashing had caused, but his eyes were flashing with something besides anger. Sergeant Cassara turned quickly and observed the Indian’s manner.

“Um!” the sergeant grunted. “A man finds himself torn between a desire to do his duty and a desire to let things take their course and enjoy the fighting that surely will follow. Neophyte! Get you some food ready! From the manner in which this man staggers through the dust, he comes to us with an empty belly.”

Again the Indian hurried to the rear room. The soldiers crowded around the doorway in the shade. The stranger was within fifty yards of them now. They saw that he stooped beneath the weight of the heavy saddle, and that a bridle heavily chased with silver hung over one of his arms. A sword swung at his side; a pistol was at his hip. His clothing was covered with red dust,

but they could see that it was rich. His sombrero clung to one side of his head, as if about to fall off. His hair was dark and hung in clusters of curls.

“’Tis a pretty young gentleman!” Sergeant Cassara snorted. “Now we shall hear a tearful tale of the highway, I suppose, of how some five thousand bandits set upon him and how he slew half and frightened the remainder so that they fled, making his escape and bringing away loot! Saint Barbara, forgive me if I think for an instant that such a beau-looking being could be a conspirator!”

Once the stranger staggered, hesitated a moment, then came on. Not until he was inside the shadow cast by the presidio building did he stop. There he threw his saddle and bridle upon the ground, stamped his boots, slapped at his clothes to shake off a part of the accumulated dust, wiped his brow with a scented silk handkerchief, and stood erect. Across his face flashed a rare smile.

“This cordial reception overwhelms me,” he said, speaking in deep tones. “I have received hospitality at several places along El Camino Real, yet always will I remember the greetings extended at Santa Barbara. I shall live to tell my grandchildren how the soldiers, seeing me from afar, ran to my assistance, insisting that they carry my saddle and bridle, clean my boots and my clothes and offer me refreshing wine and food, how a neophyte held damp palm-fronds over my head and fanned away the heat, how guitar music was played as I ate and drank, and how the mission bells rang in my honour. Never will I forget the kindnesses you have exhibited. If ever it is within my poor power to repay, at least in part——”

“’Tis His Excellency the Governor!” exclaimed Sergeant Cassara, in mock horror.

“It might have been—and then how would you have felt? Even his excellency might meet with disaster on the highway!”

“Now comes the tale of the five thousand bandits,” said the sergeant to his soldiers. Turning to the stranger, he added: “Is it now the fashion for a caballero to tramp the dusty trail like an Indian from a rancheria?”

“All strong men do it for the pure love of exercise,” was the reply. “The best of us carry a weight. This saddle of mine, for instance, is no light thing. I am glad you ran to aid me this last half mile.”

“’Tis an unpleasant day,” murmured the sergeant, half ashamed.

“Ten miles afoot through dust and sun have proved it so to me.”

“Half a score of miles, say you? Are you walking on a wager, for instance? Perhaps it is a penance imposed by your padre. Enter, at least, and partake of food and wine.”

“Ah! Once more the unbounded hospitality of Santa Barbara’s presidio!” the new-comer gasped. “I accept with delight, hail wine and food with joy!”

He picked up his saddle and bridle and entered, to throw them on the floor in a corner of the room. Already the neophyte had filled the wine cups and put out cold food. The stranger bowed and sat at the head of the table.

“I trust that you will excuse my lack of conversation for the time being,” he said. “Ten miles such as I have had to-day give a man hunger and thirst.”

“More food, neophyte!” the sergeant roared. “We have before us a famished man. Water, that he may bathe his face and hands after he has eaten. Brush his cloak, also, and clean his boots. The hospitality of the Santa Barbara presidio is questioned, I believe. By the good saint, we will treat him as well as any fray or padre at any mission in the chain!”

“I toast you, fair sir!” exclaimed the stranger, and emptied the wine cup. The eager neophyte filled it again quickly and departed for water.

“When we observed you in the distance,” the sergeant said, “I sent a man to awaken our ensign. Being an officer who loves his sleep, it probably will be some minutes before he arrives to greet you. If, in the meantime, you care to relate what has befallen you on the highway we shall rejoice to hear it.”

“A matter of small consequence,” replied the stranger. “I was set upon by bandits, both Indian and Mexican.”

“One of each?” inquired the sergeant, blandly.

“At least half a score of each, *señor*—quite a company, in fact.”

“Ah! Now we are to get the story of your prowess. Kindly proceed, caballero!”

“I rode alone, save for an Indian. We were ambushed. My Indian fell at the first discharge of arrows——”

“Arrows, *señor*?”

“At first—so as to make no noise and put other travellers on their guard, I presume. Then the bandits rushed. Standing with my back against a jumble of rocks, I emptied my two pistols in their faces. Then I drew my sword. Arrows and bullets were flying about me then, yet in my anger I made such good use of my blade that the bandits fled—those able to flee. They had slain my horse and my Indian’s mule. I took off saddle and bridle, not wishing to leave them behind for the thieves, and trudged here afoot, some half-score of miles, carrying my property. That is all—it is of small consequence.”

“An excellent tale!” Sergeant Cassara cried, slapping his thigh. “You are a man after my own heart, *caballero*! Neophyte, fill the man’s wine cup again! And now, fair sir, that you have repaid us for your refreshment with this artful bit of fiction, will you not indeed be kind enough to tell us what happened to your mount that sent you walking along El Camino Real carrying your saddle?”

“Is it possible,” demanded the stranger, “that you do not believe my story?”

“Was I born during the last moon, think you? Have I cut my first tooth? Can I, by any chance, yet stand without clinging to the wall—what?”

Sergeant Cassara roared with laughter, throwing back his head and opening his wide jaws. The corporal and soldiers joined in the merriment. And as suddenly as the laughter had commenced it died out, for the stranger had risen slowly and deliberately and was wiping his greasy hands on the end of his cloak. His eyes had narrowed until it seemed that flashes of fire came from between the lids; his hands gripped the edge of the table as he bent forward.

“This has been a hard day for me, *señor*,” he said. “I am not used to walking great distances in the dust and sun and carrying a heavy weight while doing so. Indeed, I am far from feeling fresh. But, by all the saints that ever existed or will, I still have strength enough to run through the man who calls me liar! Draw, you—and on guard!”

“Though you have slain half the bandits on the coast, you still thirst for blood?” laughed the sergeant.

“This is not levity, *señor*. You have questioned my word. Draw and defend yourself—else be called coward!”

A roar like that of an angry bull came from the throat of Sergeant Cassara, and the stool upon which he had been sitting was kicked to one corner of the room as he sprang to his feet. His blade was out in an instant, his eyes flashed with anger, his face was purple with rage, and he stood ready in the centre of the room beside the table with curses rumbling in his throat. The other soldiers had dashed to the wall out of the way; the neophyte had come in at the doorway, and now crouched there, watching.

With deliberation the stranger just off the highway drew his blade and stepped forward to engage. There was no haste in his manner, no nervousness apparent. He went about this business of duelling as calmly as he would have drawn on a pair of boots.

The steel clashed, and the two men circled around the room, the sergeant breathing heavily, the other fencing without apparent effort. Yet the sergeant could have told that, by the feel of the blade, he was aware of the strength in the other’s wrist, and knew he was fighting with no weakling. Every trick he tried was met by a better one; the stranger had a guard for every thrust. The soldiers against the wall began to murmur with delight—here was fencing to be seen!

And then the sergeant let out a bellow as a favourite thrust was turned aside, and losing his head started to force the fighting. He thrust and slashed, while the stranger’s blade darted in and out like the tongue of a serpent. Step by step, the man off the highway was forced to retreat, yet those who watched beside the wall realised he was but awaiting the proper time. In the hearts of the corporal and his soldiers there was sudden fear for the big sergeant with whom they had served for so long. In the heart of the neophyte who crouched at the door there was a sudden hope.

Then came an exclamation from the corporal, who was watching closely! The stranger’s blade made a sudden dart forward; the sergeant’s sword described an arc through the air, the sun flashed from it an instant, then it crashed against the wall and its owner stood disarmed. The caballero stepped back and bowed.

“Even so, *señor!*” he said. “If you will regain your blade, I’ll be glad to teach you another lesson. You are not without skill, yet your arm appears slow from too much leisure.”

“Now, by the good saint——!” Cassara began. But he broke off his sentence in the middle, for he had glanced toward the doorway, and in it stood the ensign.

The caballero turned, removed his sombrero, and made a sweeping bow. His eyes were twinkling again.

“What brawl is this?” the ensign demanded.

“A little question regarding my veracity, *señor,*” the caballero replied. “If it is your wish to see it settled——”

“Enough! Sergeant, pick up your sword, and hereafter do not brawl with strangers—at least not until I have conversed with them. And you, *señor,* be kind enough to be seated, and tell me your name and station and why you travel El Camino Real. You came from the north?”

“*Si, señor*—from San Francisco de Asis.”

“And you are going——?”

“To San Diego de Alcalá.”

“’Tis a long, dusty journey at this time of the year. Your business is——?”

“Mine own, *señor,* and it please you!”

“Have a care! I do not question you through impertinence, but through a sense of duty.”

“My business is of no particular consequence in so far as you are concerned, *señor.* I have here a pass signed by his excellency that perhaps will quiet your fears.”

He took a folded document from his cloak and handed it over. The ensign, frowning, took it and spread it open. He read it through, then looked at the caballero again.

“It is, in truth, his excellency’s signature and seal, and tells all officers the bearer is to be allowed to proceed unmolested and given aid if he asks it,” the ensign admitted. “Yet the pass does not name you, *señor.*”

“I am aware that it does not.”

“I am Ensign Sanchez, *señor*. May I have the pleasure of knowing you?”

“Man to man, I am glad to make your acquaintance. As for the name—does it matter? You may call me Felipe, or Juan—whatever pleases you.”

“It is highly irregular.”

“Is the pass irregular, *señor*? You know the times, I take it. Can you conceive a reason why a gentleman might not wish his name cried aloud for all men to hear?”

“Ah! If you are on business of his excellency’s——”

“Let us have no misunderstanding or false pretense, *señor*. I have not said that I am on business of state. I have said merely that I hold his excellency’s pass, and that you are bound to honour it.”

The ensign rose and bowed; and he was smiling.

“So be it!” he replied. “I am glad to welcome you to Santa Barbara. Your business, I perceive, is indeed your own. Command me, if there is anything you desire.”

“Your men have given me food and drink, *señor*, thank you and them. I was forced to walk into the post because of an attack of bandits——”

“How is this?”

“My Indian was slain, also my horse. I managed to drive off the thieves and reach here afoot. I wish to continue my journey immediately. So my only request, *señor*, will be for a good horse, for which I stand ready to pay.”

Ensign Sanchez threw up his hands in a gesture of despair.

“Ask me for a fortune, *señor*; ask me to turn traitor to his excellency! Either would be forthcoming sooner than a good horse at this moment. Not a horse worthy of the name can you find now at Santa Barbara. In a day, say, or two, by sending out to some rancho, I may be able to get you one, but none are here now except decrepit brutes I would not ask a gentleman to mount.”

“This is almost past belief!” the caballero said.

“First came the Indian outbreak a year ago, when all the good animals were either killed or run off, and recently came a requisition from his excellency. We have good horses coming, *señor*, from San Juan Capistrano in exchange for other commodities, but they will not arrive for another month. Believe me, *señor*, I am sorry! If your business is urgent——”

“I must depart within an hour, and I must have a mount of some kind—the best to be obtained.”

“Ask for food, or gold, or a score of Indian guides! But when it comes to a good horse——”

There was a sudden commotion at the door, where the soldiers had been standing, jesting with the sergeant over his recent defeat. To the ears of the ensign and his guest came the sound of tinkling bells, and they heard the loud laughter of the troopers.

“By the good saint—another stranger!” Cassara exclaimed. “Are all the grandees of Spain abroad this day?”

The ensign and the caballero arose and walked across to the door. Down El Camino Real they saw approaching a man astride a mule. He was richly dressed. The mule had a string of bells around its neck. The rider wore pistol and sword, and he held a guitar under one arm. He waved at the men crowded about the doorway, then struck the strings of the instrument and began to sing.

“There comes your mount, *señor*,” the ensign said, laughing.

“Very true!” the caballero replied; and there was no merriment in his face as he said it.

He folded his arms and stood beside the ensign in the doorway, waiting. The song of the latest arrival reached an end as the mule came to a stop before them. The rider swung his guitar behind his back, dismounted, removed his sombrero and bowed to the ground.

“Greetings!” he called. “I crave hospitality, food and drink for both myself and beast, refreshment after my long and dusty journey and my bad fright.”

“Fright?” questioned the ensign.



“Even so, *señor*. A distance of ten miles from here I rounded a curve in the highway to come upon dead men, a dead mule and a dead horse. It must have been a pretty battle there! I haven’t seen as much blood in a score of moons. Indians and Mexicans—filthy bandits, I took them to be! I counted six, then covered my eyes with my hands and fled. Blood always did upset me. But it must have been a rare battle!”

Sergeant Carlos Cassara looked back at the caballero with wide and glistening eyes, his anger at his recent defeat somewhat assuaged.

“By the good saint!” he swore. “My gentlemanly pedestrian of the highway must have been telling me the truth.”

He called a neophyte servant to take the mule to the adobe stable in the rear of the barracks, while the new-comer followed the ensign inside, followed in turn by the sergeant and the soldiers.

“You command here?” the mule’s owner asked the ensign.

“At present. My lieutenant is visiting at a rancho near by.”

“And you are called——?”

“Ensign Sanchez, *señor*. May I ask your name in turn?”

“It really does not matter. Allow me, *señor*, to present you a pass signed by His Excellency the Governor. You will find, I think, that he tells all officers to use me with respect and to aid me on my way. Look not for my name, there, *señor*, for you will not find it.”

“It is almost beyond belief,” the ensign said, “that two strangers should arrive in a single day, each with a pass from his excellency that is innocent of a name.”

“How is this? Another stranger with a pass?”

“This gentleman you see before you, *señor*. It was he, I believe, who slew those men you stumbled over in the highway.”

“Then he is an excellent shot and has a good sword-arm!” He turned and looked the caballero straight in the eyes, and the ensign watched to see if a sign passed between them, but could not observe any. “After all,” he resumed, “suppose we both do have passes—what of it? His excellency trusts more than one man in this broad world, I assume. But, since there are

two of us without names, we are going to have difficulty carrying on polite conversation. It is better we called ourselves something before we get badly tangled. You may call me Juan, for instance.”

“And you may call me Claudio,” said the caballero, laughing.

“Excellent! Juan and Claudio!”

“Devil and Hades!” growled Sergeant Cassara. “’Tis enough to give a man a crooked brain! Neophyte! Get food and drink for the *señor*!”

The mule’s owner sat at one end of the table, the caballero at the other end, with the ensign between them. The former ate; the two latter drank. The neophyte hung about, seemingly anxious to be of service to these two fine gentlemen, always watching their faces like a man who expects a message. Sergeant Cassara gathered his squad and stalked to the end of the barracks-room like an old hen clucking to her chickens, and got out cards and dice.

“You came from San Francisco de Asis?” queried the ensign of the mule’s owner.

“I left there recently.”

“We are to have the pleasure of your company at Santa Barbara for some time?”

“For an hour or two while I rest, *señor*. I am on my way to San Diego de Alcalá.”

“This other guest of mine, at present known as Claudio, also goes to San Diego de Alcalá.”

“So? I shall be glad to avail myself of his companionship on the highway, if he is willing, since he has so strong an arm and such courage. So much blood I never saw in one small spot——!”

“But there are difficulties,” the ensign continued. “The *señor* lost his mount during the attack of the bandits, and we have no good horse we can furnish him. It will take a day or two to send out to some rancho for a worthy steed, but he would proceed on his way almost immediately.”

“It desolates me to hear it, for I would have liked this stranger’s company on the journey. But it is imperative that I follow the highway again within an hour or so.”

“I find myself in the same predicament,” the caballero announced.

“It is sad, *señor*, yet it is true, that we both cannot ride one mule with any degree of speed and comfort.”

“Agreed! Yet, I think, if you are a gentleman of spirit, I will ride south on your mule, and you will wait here a day or two until a horse can be fetched from a rancho.”

“That is a broad statement, *señor*,” replied the mule’s owner, his face growing dark for an instant.

“I did not mean it in a disrespectful way.”

“You imagine, perhaps, that you are on business of state and that I will surrender my mule because of that? Ordinarily, *señor*, but not at this time. I have important business at San Diego de Alcalá.”

“And I! If you are willing to let merit decide between us——”

“Fight you for my own mule? After what I observed in the highway? Give me credit for some wit, kind *señor*.”

“It will not be necessary to clash blades over a mule.” The caballero bent forward over the table as he spoke, and his eyes held those of the other man. “There are other ways—dice, for instance, or cards!”

There was silence for a moment, and then the owner of the mule threw himself backward in a gale of loud laughter, and the soldiers in the corner looked up in astonishment.

“Dice? Cards?” he cried. “You would play me for my own mule? It is amusing! And what would I stand to win, *señor*?”

“What you will—money, such jewels as I have on my person——”

“A note of promise to pay, perhaps?”

“Not so, *señor*, since to give you that I would of a necessity be obliged to disclose my name.”

“I understand. It appears that there are two of us not anxious to disclose names. Did we not have passes from his excellency, we might have trouble with our friend the ensign here. You would play me—stake gold and jewels

against my poor mule, eh? My journey is urgent, *señor*, but never have I refused to play.”

“Then you agree?”

“I do *señor*, except that you wait for half an hour. I never throw dice or flip a card while exhausted. In the meantime we can converse. It would avail me nothing, I suppose, to ask your business at San Diego de Alcalá?”

“No more than for me to ask yours, *señor*,” replied the caballero, smiling.

The mule’s owner sipped at his wine.

“Quite so!” he said, thoughtfully. “Then let us talk of affairs at the other end of El Camino Real. I understand that his excellency is coming along the highway soon.”

The ensign sat up straight on his stool, all attention, and regarded the speaker closely. The neophyte’s eyes narrowed an instant, and he drew nearer the table, pretending to be of service, listening intently at every word.

“His excellency coming? This is news!” the ensign exclaimed.

“I heard it rumoured before I left San Francisco de Asis. A tour of inspection, I believe. Ha! Perhaps, officer, you can solve me that riddle? ’Tis said he makes the journey within a month. A tour of inspection, eh? With a couple of hundred soldiers at his heels?”

The neophyte dropped a wine cup.

“Clumsy idiot!” the ensign growled.

## CHAPTER II

### ALONG THE HIGHWAY

The table was cleared save for three fresh cups newly filled by the Indian, one at the elbow of each man. Sergeant Cassara lurched across the room pulling at his belt, and the corporal and soldiers followed at a respectful distance, and slowly, trying not to show so much interest in the proceeding that there would be a rebuke from the ensign.

The mule's owner was chuckling to himself; the caballero sat at the other end of the table grim and determined.

"I do not pretend to interest myself too much in the business of either of you gentlemen," the ensign announced, "yet it seems to me a day or two at Santa Barbara would not be amiss. Within two days I can get an excellent horse and you two may take the remainder of your journey together."

"I must depart at the earliest possible moment," the caballero replied.

"And I also," said the owner of the mule.

"You are determined to play?" queried the ensign. "Then one, I suppose, will depart as soon as the game is over, and the other remain here until I can procure a good steed?"

"That is the situation," his guests agreed.

"Riding the mule, you scarcely can reach another mission by fall of night."

"If I am successful in leaving on the mule, I'll not stop until I reach the pueblo at Reina de Los Angeles," the caballero said. "I'll get food and drink where and how I can. My business is urgent."

"There may be more bandits."

"There are more bullets in my pistols and more thrusts in my sword-arm, *señor*. I dislike to appear a boaster, but I am inclined to believe I can care

for myself.”

He met the eyes of the mule’s owner, as if there was some special significance in the words, and for the moment the chuckling of the latter stopped.

“And you, *señor*?” asked the ensign, turning toward the other end of the table.

“My plans are similar to those of the caballero, officer. Let us play.”

He began chuckling again; he seemed to be enjoying a rare joke that the others did not know. Very carefully he turned back the lace of his cuffs and pulled the sleeves of his jacket a few inches up his arms. His long, tapering fingers worked for a moment, then he clasped his hands and waited. The caballero turned back his cuffs also, and put his hands on the table before him. He never took his eyes from the other man; he was as calm, apparently, as when duelling with the sergeant.

“Well?” the ensign asked. “What is the game? What are the stakes to be?”

“Whatever the *señor* considers the value of his mule,” the caballero said.

“It seems that mules have risen in demand, and so in value, yet I will do the fair thing. I stake the beast, saddle and bridle, even my guitar, also the chance to be the one to proceed along the highway immediately. And do you, *señor*, put out your gold, piece by piece, until I have cried enough.”

“It is a fair plan,” the caballero said. He took a purse from his bosom, opened the mouth of it, and began taking out gold coins, piece by piece, piling them before him on the table, while the mule’s owner counted under his breath and the ensign pretended not to be interested, and the sergeant and the soldiers bent forward, their eyes bulging. Bit by bit the pile of gold grew, yet the caballero did not hesitate, and the tenth piece was placed on the table as quickly as the first.

“Hold!” called the mule’s owner, presently. “It is agreeable, *señor*?”

“I am satisfied. As you say, mules have risen in demand and price.”

“Then we play!” He reached to his belt, and drew a pack of cards from behind it and tossed them on the table. He took dice forth, and placed them beside the cards.

“Your choice, *señor*?” he asked.

“Let it be cards,” the caballero answered.

“Ah! Cards it is!” He picked up the dice and returned them to his pocket, and then reached for the pack, and his long fingers shuffled the bits of pasteboard with a skill born of experience.

“But not that pack of cards, *señor*!” There was a certain ring in the caballero’s voice that caused the ensign to glance at him sharply and made the mule’s owner flush. The smile left the latter’s face and his chuckling ceased again.

“You have objections to this particular pack of cards?” he asked.

“I have indeed, *señor*. This is to be a game of chance, not one of skill.”

“Just what do you mean by that, *señor*?”

“We are playing for high stakes, perhaps—possibly for more than a mule and guitar. Suppose we use some deck of cards procured by our good friend, the sergeant. There will be no question then of—er—undue familiarity with a certain pack.”

“You mean to insinuate, *señor*, that I would cheat at cards?”

“Would you use my private deck, *señor*, had I one with me?”

“Possibly not.”

“You see? Let us use the sergeant’s cards. I assure you that I have not touched one of them.”

“So be it!” The mule’s owner shrugged his shoulders. His teeth did not flash in a smile again. His fists were clenched until the knuckles were white.

Sergeant Cassara fetched the cards and threw them on the table, then stood back.

“We will allow the ensign to shuffle them and place them before us,” the caballero said. “Each of us will then draw a card. The one who draws the highest will ride away on the mule and take this heap of gold with him. Is anything simpler?”

“As you say, it is very simple.”

“And you are agreed?”

“Certainly, *señor*.”

Ensign Sanchez drew a deep breath and shuffled the cards. He put the pack in the middle of the table and looked at his two guests.

“Draw first, *señor*,” the caballero offered.

“Suppose we cut the pack in the middle and discard the top,” said the other. “It is best to be careful.”

“You dare to insinuate—” began the ensign, starting to get up from his stool.

“Softly, softly, officer. I insinuate nothing,” the mule’s owner replied. “Our friend at the other end of the table began this precaution, and it is no more than polite to continue it. You will cut the cards and kill the top half of the deck?”

The ensign did as he was requested and sat down again. The mule’s owner put out a hand and took the top card. He threw it face upward on the table.

“The ten of diamonds!” he said. “It is my lucky card, *señor*.”

Without hesitation the caballero drew the next card and flipped it over.

“The king of diamonds!” he said. “’Tis by far the luckier card in this instance, *señor*. I believe the mule is mine?”

“The mule is yours—guitar and all.”

The caballero arose and bowed.

“Then I must depart from this hospitable post as soon as the neophyte fetches the beast to the door,” he said. “May I add, *señor*, that I hope you are able to procure a horse within a short time?”

“Your solicitude for my welfare overwhelms me,” said the man who owned the mule no longer. “I shall be in San Diego de Alcalá before you, however.”

“Do you wish to make a wager concerning that?”

“A couple of pieces of gold, dear Claudio!”



“Done! It is only fair to say, however, that I shall exchange the mule for a horse somewhere along the highway. And I shall have many hours the start of you.”

“Travellers along the highway are stopped at times, my dear Claudio, even when they carry his excellency’s pass.”

The caballero’s face darkened an instant as he looked at the other man. Then he laughed nervously, and emptied his wine cup with a single swallow, and arose. He picked up the guitar and struck a chord or two, and laughed again, almost in the other’s face. It was bravado and insolence mingled.

Sergeant Cassara was growling admiration of the caballero’s manner; the ensign feared trouble between these two guests of his. To the ears of those in the barracks-room came the tinklings of bells as a neophyte led the mule to the door.

“I thank you for your hospitality, ensign,” the caballero said. “Perhaps at some future day you may be my guest. Here are a couple of pieces of gold—give your soldiers wine in my name. Perhaps the neophyte will hand a piece to the padre at the mission for me? I have not the time to stop.”

“I’ll see it done, *señor*,” the ensign replied.

“And do you continue your sword practice, sergeant,” he went on. “You have the making of a fencer in you, I do believe.”

“Now, by the good saint——”

“As for you, *señor*,” he continued, fating the man who had owned the mule, “I suppose we’ll meet in San Diego de Alcalá?”

“You may be sure of that, *señor*, if you live to reach the mission there.”

“*Adios*, then, kind friends! I am none too familiar with the gaits of a mule, yet no doubt I can make shift to travel. Ah, yes! My guitar!”

He threw the cord around his neck and swung the instrument to his back, then walked briskly to the door. The others crowded after him, Sergeant Cassara grinning from ear to ear as he watched the stormy face of the man who had lost the mule.

The caballero put his own heavy saddle and bridle on the beast and mounted. Once more he removed his sombrero and bowed to them; and then he turned the mule's head, swung the guitar before him, struck a chord, began to sing, and started off down the slope toward El Camino Real.

Standing in the doorway, they watched until the beast's hoofs began kicking up clouds of the red dust. Once the caballero waved his hat at them, then looked back at the presidio no more. He passed the mission at a trot, failing to greet a fray who stood beside the wall. He made a turning where trees shut Santa Barbara from his view, and then he raked the beast's sides with his spurs and urged it into a run.

Mile after mile he travelled beneath the burning sun, half choked with the dust, his sombrero pulled low down over his eyes, always alert where there was a chance for ambush, now and then stopping at the crest of a hill to look far ahead on the highway.

Evening came, and he stopped beside a creek to drink and wash the dust from his face and hands, and to water the mule. And then he went on through the darkness, having difficulty at times keeping to the highway, now and then stopping to listen as if for pursuit. The moon rose, and he urged the mule to greater speed.

He approached San Buenaventura, the dogs howling when they caught the sound of the mule's hoofs. An Indian hailed him, but he did not stop. On and on through the night he rode, mile after mile. Sixty miles from San Buenaventura to San Fernando mission—a good day's journey—and he was determined to make it in half the time!

Day came, and the sun beat down into the valley, merciless alike to man and beast. He saw a skulking gentile frequently, but always at a distance, and he knew there was less possibility of bandits here. His mule was fagged and seemed insensible to the spurs. The dust had caked on the man's face, his eyes were swollen, and he suffered from thirst.

Now the highway followed a dry watercourse, and now it ran along the rim of a hill. On the crests he stopped the mule and looked ahead, but never behind. It was interruption he feared now, not pursuit. He passed a flock of sheep being driven toward the north, and the neophytes herding them looked at him in astonishment when he refused to answer their respectful

salutations. Once more he stopped at a creek to bathe his eyes and drink, allowing his beast to have but a small amount of water and to nibble a few minutes at the green growth along the bank.

Noon came; he reached the crest of a hill to see the mission of San Fernando glistening white in the distance. Urging the mule to greater speed, he passed a rancho frequently, but did not stop for refreshment. The mule was trotting with hanging head, negotiating the rough highway with difficulty.

As he neared the mission the beast staggered and fell, and a neophyte came running.

“The mule is yours if you can save him,” the caballero said. “Remove saddle and bridle and bring them after me. Where is the padre?”

“In the storehouse, *señor*.”

The caballero hurried away. The padre had witnessed his arrival and was walking slowly toward him. They met beside the wall.

“I have immediate need of a good horse, padre,” the caballero said. “I have gold to pay for the beast.”

“I can get you one in a short time, *señor*. You are hurrying toward the south?”

“On an urgent matter, padre.”

“These are turbulent times, I am told. If the sainted Serra were still among the living, to guide us——”

“I have not said I am on business of state.”

“I beg your pardon, *señor*. I was not attempting to interfere in your personal affairs.”

“I have been riding all night,” the caballero went on. “I came from Santa Barbara on a mule and almost killed the beast. Get me a horse, and blessings be upon your head! And food and wine, and a bit of water, would not be amiss.”

The padre turned and led the way into the nearest building. He placed food and wine upon a table there, and sent for a horse. A neophyte entered and

removed the caballero's boots and bathed his feet; another placed a stone basin of water on the table, so that the traveller could bathe face and hands.

The horse came, was declared fit, and the heavy bridle and saddle put on the animal. The caballero, refreshed, mounted and gathered up the reins.

"A bottle of wine and a package of cold mutton, caballero," the padre said, offering them. "No matter how urgent a man's business, he must eat and drink to maintain his strength."

"I thank you, padre. I would give you a piece of gold, if I did not know you would refuse it. You have given me much—give me now your blessing and let me go on my way. It is a score of miles to Reina de Los Angeles, I understand, and I would reach that pueblo by nightfall."

The padre gave his blessing, and stepped nearer the horse's head, seeming to look at the bridle.

"On the north side of the plaza at Reina de Los Angeles," he said, "there is a certain inn where some travellers would be none too safe. As you know, these are turbulent times. On the south side, however, just around the corner from the chapel, is a pretentious house of adobe inhabited by a pious man known as Gonzales. In that house a traveller of the right sort may sleep with reason to believe that his throat will not be slit before he awakens."

"I understand, and thank you."

"You may say that Fray Felipe vouches for you as a gentleman of honesty."

"Thank you again, padre. But how can you vouch for me, never having seen me before?"

"A good priest is able to read men as well as books, caballero. I once knew a pirate who was at heart an honest man."

"I am not sure that I gather your full meaning, but I take it for granted, padre. If you will allow me, I may drop the hint that another traveller will be along the highway before many hours, coming from the north. If he is riding a horse to death, it would be a pious act to delay him until the animal is refreshed."

"Though you tell me this, having just done your best to slay a mule, I am of your opinion in the matter. *Adios*, caballero!"

“Adios, padre! Your kindness will not be forgotten.”

The caballero put spurs to the horse’s flanks and dashed down the highway. This was different from riding the mule, for the padre had supplied him with a noble steed fresh from pasturage, an animal of spirit eager to cover broad miles at a rapid gait.

He passed other riders now and then, the most of them bound for the north. Frequently there were flocks of sheep; here and there herds of cattle grazed beside the highway. Carts drawn by oxen rumbled toward the mission, carrying loads of grain; lumbering *carreta* went by, in which elderly *señoras* rode, going from one rancho to another, and at times a dimpled *señorita* accompanied by a grim *duenna*.

Evening was descending as he neared Reina de Los Angeles. His body ached, he scarcely could keep his eyes open. Without stopping his horse, he drank the wine and ate the cold meat the padre had provided. As he approached nearer the pueblo he forced himself to become alert again and take stock of his surroundings. He slowed down his mount so as not to attract undue attention. At the edge of the plaza he stopped and looked about.

He saw the chapel, made out the inn regarding which Padre Felipe had warned him, discerned the residence of Gonzales. Toward this he rode, stopping at the rear and ordering an Indian to fetch out the master. A few minutes passed and Gonzales stood before him.

“Well, caballero?” he asked.

“Fray Felipe of San Fernando says that you are an honest man, and vouches for me being one, though he never set eyes on me until this day.”

“The good padre seldom makes a mistake in estimating a man.”

“I believe he did say that once he knew a pirate with an honest heart. I have ridden night and day without rest, *señor*. I do not wish for food at present, yet I would have my horse cared for, and I would like to sleep soundly until an hour before dawn. Fray Felipe assured me a man could do that in your house without having his throat slit before morning.”

“That is true, caballero,” Gonzales said, smiling a little. “The Indian will care for your horse. Enter, and I will have your couch prepared, and sit up

myself to watch over you. You may trust me, caballero. I am that pirate of whom the good padre spoke!”

## CHAPTER III

### MYSTERIES

It was still dark when Gonzales entered the room with a candle and shook the caballero until he was awake. The rider of the highway found that his clothes had been brushed and neatly folded, that his boots had been greased, and that a huge stone basin filled with cool water stood ready.

He plunged his head in the water, dried his face, and went to the adjoining room after dressing, there to find a table heaped high with food. The caballero ate ravenously, scarcely speaking. An Indian entered and spoke to Gonzales in whispers.

“Your horse is ready, *señor*,” Gonzales said. “It is a fit animal, able to cover many miles during a day. I have no wish to bereft myself of your companionship by sending you on your way, yet perhaps it would suit your purpose best to be well on the road to San Juan Capistrano by daybreak.”

“Your idea is an excellent one, *señor*.”

“There is nothing more I can do to serve you?”

“You have been kindness itself.”

“There is, perhaps, some message?”

“Nothing of prime importance at this time, *señor*. I am eager to reach San Diego de Alcalá at the earliest possible moment.”

“If you need an Indian——”

“The highway stretches plainly before one, *señor*, and an Indian would but delay me.”

“I understand that these are turbulent times——”

“So the good Fray Felipe said at San Fernando. No doubt it is a true word.”

“You mystify me, *señor*, in a measure. Yet a man should not speculate regarding that which does not concern him.”

“Very true, Señor Gonzales. I might mention that another traveller may journey along El Camino Real at an early day, as soon as he can procure a horse at Santa Barbara, where I left him behind. I doubt whether he will receive cordial welcome from Fray Felipe—as you say, the good padre is an excellent judge of men. It would not desolate me much if this person were delayed now and then.”

“Ah! His name?”

“He travels incognito with a pass signed by his excellency, I believe.”

“Then—?” There was a puzzled expression on Gonzales’ face.

“I travel in such manner myself.”

“Still, I do not see——”

“It is not for me to criticise his excellency, yet I may say that on a busy day he might issue a pass by mistake, or without having proper investigation.”

“Can you not speak to me as man to man, *señor*?”

“I regret that I have no information that may be given you. And I must be on my way. Here is a piece of gold——”

“Not from you, *señor*.”

“Perhaps you are making a mistake. Perhaps you think me a man I am not. I have given you no reason to believe——”

“If I made a mistake, *señor*, then Fray Felipe of San Fernando makes one also, and I have learned to trust his judgment.”

“Then I thank you for your hospitality and kindness,” the caballero replied.

Gonzales led the way out of the house to where the horse was waiting beside the adobe wall. He held a stirrup while the caballero mounted.

“You know the way?” he asked.

“Until this journey, I never have been south of Monterey,” the rider answered.



“Once you are away from the pueblo the highway is plainly to be seen. I have had my own horse made ready and will accompany you for a short distance.”

“I thank you again, *señor*.”

The Indian led out the second horse. Gonzales mounted, and they started out across the plaza, to follow a tiny trail that ran from one side of it between two rows of Indian huts. No word was spoken until they were a mile from the pueblo. Daybreak showed the dusty highway stretching toward the south, twisting like a great serpent across the land.

“Here I leave you,” Gonzales said. “I wish you good fortune, *señor*, and am yours to command if there are things you wish done. If the times are indeed turbulent, as has been intimated, perhaps my old trade of pirate will stand me in good stead. *Adios*, caballero! My blessings go with you!”

“Having been blessed by both padre and pirate, I can scarcely go wrong,” the caballero replied.

He raised his hand in salute, whirled his horse, touched the animal with his spurs and galloped toward the south, sending up great clouds of dust behind him. Gonzales watched him for several minutes, then, shaking his head in perplexity, turned and started back toward Reina de Los Angeles.

Now that he was on the highway again, the caballero became alert, watching the trail whenever he topped a hill, hand on pistol-butt where brush edged the road and made an ambush possible.

Sixty miles to the south was San Juan Capistrano, and the caballero did not spare his horse. During the morning he saw few men, either red or white. In the distance, at times, he could see the white buildings of some rancho, and grazing herds, and frequently a small orchard.

Then, as he neared the mission, he came upon scenes of activity, oxen-drawn carts loaded with grain, *carreta*, squads of Indians working on the highway as punishment for some trivial offence.

The miles flew beneath his horse’s hoofs, and in time he could see the mission building glistening in the sun, throngs of neophytes at work, scores of children playing about the walls. The children scattered at his approach, to stand, half in fear and half in curiosity, some distance away and regard

him thoughtfully. He dismounted stiffly, but no man gave him greeting. Leading his horse he walked to the door of the nearest storehouse. A fray came out and faced him.

“I am journeying to San Diego de Alcalá, and have need of a fresh mount,” the caballero said. “I will trade or purchase.”

“I have no horse for you, *señor*.”

“Nonsense! San Juan Capistrano is well known for its breed. At Santa Barbara they told me you were to send them steeds within the month, in exchange for fruit and wine.”

“We sell and give horses to whom we will, *señor*, and withhold them from others.”

“What is the meaning of that?” the caballero demanded. His face had flushed with sudden anger, for he did not like the fray’s tone or manner. “I have a pass here signed by His Excellency the Governor. You will scarcely refuse to accommodate me now, I take it.”

The fray read the pass and handed it back.

“It passes my understanding that you possess such a paper,” he said. “Yet, on the other hand, it is not a matter to excite wonder. It is understood that the Governor is not particular to whom he issues passes.”

“I shall take it upon myself to see you punished for your insolence, fray! A man who wears a gown should know more of courtesy.”

“There is no horse here for you, *señor*. I have spoken.”

“You are not the only horse owner in San Juan Capistrano!”

“No man here will sell you one, nor give it you, nor make an exchange.”

“And why is that?”

“Need you question?”

“Most certainly I question. This is the first discourtesy I have found along El Camino Real. Even the soldiers at the Santa Barbara presidio aided me on my way, gave me food and wine. The good fray at San Fernando recommended me to a friend in Reina de Los Angeles. And here, it appears, one cannot even buy a horse with gold. I await your explanation, fray.”

“I have no explanation to give you, *señor*, nor do I recognise your right to one. If the frailes to the north have been misled, I have nothing to say. We of the south, however, have scant courtesy for men of a certain stamp.”

“Now by the good saints——!”

“The good saints are better off your lips, *señor*!” cried the fray angrily.

Neophytes had been crowding about, drawn by the quarrel. The caballero whirled upon them, to find some grinning. His hand dropped to his sword-hilt.

“The road stretches toward the south, *señor*,” the fray resumed. “And we are crowded here in San Juan Capistrano.”

“You are ordering me away, perhaps?”

“I am leaving it to your good judgment to go.”

“I am not a man to be trifled with, fray. This discourtesy is like to cost you dear!”

“I pay my debts, *señor*. If it costs me, I pay.”

“You refuse to respect the Governor’s pass?”

“I refuse to recognise your right to have it,” the fray replied. He turned about and started inside the storehouse. The caballero took a quick step forward and clutched the other by the shoulder and whirled him around.

“Cloth or no cloth, no man treats me like this!” he exclaimed. “A horse——immediately!”

The fray uttered an exclamation; the neophytes crowded closer. Releasing his man, the caballero drew his sword and turned upon them.

“Back, dogs!” he cried. “I do not like your stench! And you, fray, fetch me a horse, before I run you through!”

“You——!” The fray seemed to grow taller in his sudden anger. “You dare to threaten me, *señor*? A man of your stripe——”

“I have had enough of this mystery!”

“Out of my sight! Take your way to the south, or the north if it pleases you, but quit San Juan Capistrano this minute! Else I will not be responsible

\_\_\_\_\_”

“For what! For what may happen to me?” The caballero laughed aloud, half in anger, half in jest. His sword described an arc. But the neophytes did not fall back from before him; the fray made a sign and they closed in.

His back against the wall of the storehouse, the caballero swept his blade through the air again, and held his pistol in his left hand. The Indians hesitated a moment, the caballero advanced.

“Back!” the caballero cried.

Again they closed in, rushed. A screech of pain came from the first he touched with the blade. His pistol spoke and a man fell wounded. In that instant, as they hesitated, he was among them, his blade darting here and there. Purposely he avoided clashing with the fray, always keeping neophytes between them, for to wound a fray, he knew, would be to make bloodthirsty wretches of the red men. Foot by foot he fought his way to where the horse was standing with lowered head.

He drove back those nearest, then sprang to the saddle and dashed away. The guitar had been fastened to the saddle, and now it snapped its cord and fell to the ground. Laughing loudly, the caballero turned his horse, galloped back among the neophytes, scattering them right and left, swung down from his saddle and caught up the instrument, waved it above his head in derision, and was away again.

A pistol spoke behind him, a bullet whistled past his head, but he rode unscathed. A mile away he stopped the horse to wipe the bloody blade on his cloak and return it to its scabbard.

“A courteous reception indeed!” he muttered, and gave his horse the spurs.

A journey of twenty-five miles stretched before him to the next mission in the chain, San Luis Rey de Francia. He did not urge his mount to its utmost, for he did not want to exhaust the beast, and he knew better time would be made travelling a level gait.

Here the highway ran along the sea, and for a time the caballero allowed his horse to walk knee-deep in the tumbling water. Anger still flushed his face; his eyes still were blazing. With a fresh horse procured at San Juan Capistrano he would have been able to reach San Luis Rey de Francia long

before nightfall; whereas, because of his reception at the last mission, he would reach it after dark, if at all, for the hills were near, and common report had it that even daylight riding there was perilous enough for a gentleman unattended.

He drove his horse up the slope and to the highway proper again and looked ahead. A dust cloud was in the distance, and in time he made out a herd of cattle being driven along the road. He saw, as he neared them, that there were two Indian herders, and stopped to recharge his pistol. They might prove to be harmless neophytes; they might be thieving gentiles running off mission cattle, and ready to give battle to a traveller.

He stood his horse at one side of the highway as they passed, alert for trouble. They were talking, he could see, and pointing at him, but he could not hear their words. Long after they had gone by, the two Indians turned frequently to look in his direction.

The caballero rode on, with some speed now, since it was growing late in the afternoon. Overhanging crags, jumbles of rock, clumps of scrawny trees cast shadows across the highway and furnished cover for bandits, but he met with no adventure. Through the twilight he galloped, stopping before each hidden curve to listen, straining his eyes to discern the presence of a foe.

Night came, and in the distance he saw lights at San Luis Rey de Francia.

“Let us hope there are men of brains to be found here,” the caballero muttered. “I must have food, drink, rest. It does not matter so much about a horse now, since my own will be refreshed by morning.”

Now there were huts beside the highway, but all in them seemed sleeping. Dogs howled as he approached. Ahead of him, a door was thrown open, and a streak of light pierced the darkness. He rode toward it.

An Indian stood there holding a crude torch above his head, an aged Indian with scraggy hair and wrinkled face.

“I want food, rest,” the caballero said. “Where sleeps a fray that will awaken easily?”

The Indian stared at him in astonishment.

“You seek a fray?” he asked.

“Else I would not ask the whereabouts of one.”

“It is a bold thing to do, *señor*. It would be better, would it not, to accept the hospitality of my poor hut, and be sure you are with friends? Scant welcome will you get from a fray. Enter, *señor*, and honour my poor dwelling. I have food and wine, and a couch. I will see that your horse has attention, and all night I’ll watch, and before the dawn comes I’ll awaken you and send you on your way.”

“This thing passes my understanding, yet I am weary enough to accept the quickest relief,” the caballero said. “If you attempt treachery——”

“Then may I die, *señor*.”

“That probably would come to pass in such event.”

He dismounted and began taking off the saddle. The Indian ran to help him and got a halter for use instead of the bridle. The horse was picketed beside the road and thrown hay and grain. Then the Indian led the way into the hut.

It was of adobe, small, round. A table was built into one wall, a bunk into another. While the caballero sat on the bunk to rest, his host put out cold meat and wine and dried wheat-paste. The guest ate, and not sparingly, and then removed his boots and threw himself down on the couch.

“I will sit outside and watch the door, *señor*,” the Indian said. “You may sleep without fear.”

“But with a pistol ready at my hand,” the caballero growled.

After the Indian had gone, he arose and extinguished the torch, and listened for a moment at the door, until he was sure his host was squatting there. It was troubled sleep he had, for the surroundings were peculiar, and he did not fully trust his host.

A step beside the couch caused him to awaken and spring to his feet, pistol held ready.

“Within an hour, *señor*, it will be dawn,” he heard the voice of the old Indian say. “I have more wine and food ready, and water fresh from the spring. It is better that you are gone before others awake, then none will know of your passing.”

The caballero ate again, and followed his host outside, carrying saddle and bridle. When the horse was ready, he mounted, then tossed the native a coin.

“No, *señor*—not from you, if you please,” the Indian said. “It has been a pleasure——”

“White man and red—both give me hospitality and refuse payment,” remarked the caballero. “At times I think myself the most fortunate of men, at other times the most unlucky. One fray aids me and another refuses to sell me a horse. It is a peculiar world!”

“The *señor* will not forget me—that is all I ask,” the Indian muttered.

“Be assured I will not! *Adios!*”

“‘*Dios!*’

The caballero trotted his steed for a mile, then broke into a gallop. Forty miles more, and he would be at San Diego de Alcalá, his journey’s end. He laughed aloud as the dawn came and showed him the sea sparkling in the distance. His spirits had revived wonderfully.

“Poor self-styled Juan who once owned a mule!” he murmured. “He loses a couple of pieces of gold, I take it, since it is not to be believed that he has reached the goal before me. I wonder what would have happened if I had gone to the inn on the plaza at Reina de Los Angeles?”

He was in the hills again now, yet the highway was seldom masked, and he felt secure in the knowledge that a foe could not approach without being seen. The miles flew beneath his horse’s hoofs. A cool breeze came in from the sea and neutralised the heat of the sun. In the distance he could see a broad valley, and he knew that the end of his journey was near.

Another ten miles, and then, stopping his horse on the crest of a hill, he saw San Diego de Alcalá before him. Near the shore of the bay was the presidio, topping a knoll. Six miles up the valley was the mission proper, and near it an orchard surrounded by a wall, and fields of green.

“’Tis a bit of paradise in the wilderness!” the caballero said aloud. “And there is an angel in it, I have heard.”

He chuckled and urged the horse on. Purposely he avoided the presidio for the time being and made his way toward the mission. Only a few neophytes were to be seen, and even they disappeared as he approached.

The mission buildings formed three sides of a square; the fourth side was an adobe wall nearly ten feet high. Through a space between two of the buildings the caballero rode his horse. Not a human being was to be seen in the plaza.

“This is mighty peculiar,” the caballero muttered.

He dismounted and let the horse stand in the shade of the wall. Every door was closed, even those of the padres’ quarters, the hospital, the guest house.

“Awake, good people!” he cried. “Is it the fashion here to take a siesta in the cool of the day?”

The door of the padres’ quarters did not open; no big-eyed Indian child ran out to stare at him, finger in mouth, half curious and half afraid; no man or woman appeared from a hut.

He slapped the dust from his clothes and started across the plaza toward the padres’ quarters, determined to pound on the big door until it was opened and the lethargy of the place explained.

Around the end of the wall there came a neophyte stooping beneath a bag of grain.

“Good day, *señor*!” said the caballero. “I am glad to find someone alive.”

The Indian stared at him, hesitated a moment, then walked on without speaking.

The door of the storehouse opened, and another man walked into the plaza, one who carried a quarter of beef on his shoulder. He followed a narrow path that ran toward one of the huts, so that he had to pass within a dozen feet of the caballero.

“Perhaps here is a man with brains,” the new-comer thought. Aloud, he said: “*Señor*, it is a brilliant day!”

The man who carried the beef did not slacken his pace, but he glanced at the caballero from beneath shaggy brows, and passed without making a reply. Behind him in the narrow path stood one astonished and angry.



“It is a settlement of imbeciles and deaf mutes, this San Diego de Alcalá!” he growled.

Now there was a burst of laughter from the end of the wall, and into view came an Indian girl of perhaps fourteen, her black hair streaming down her back, her feet and legs bare, her arms filled with wild blossoms. Behind her was a youth a few years her senior. When they saw the caballero they stopped quickly, and the youth said something to the girl, then they ceased their laughter and hurried along the path.

“*Señor! Señorita!*” said the caballero, removing his sombrero and bowing to the ground.

The youth growled something beneath his breath and hurried on without responding to the greeting; the girl tilted her nose and she would not meet the caballero’s eyes. And so they passed him and continued across the plaza toward the padres’ quarters, not once looking back.

“Mute fools!” the caballero growled, his face flushed because of his embarrassment.

## CHAPTER IV

### A COYOTE HOWLS

Adjoining the quarters of the padres was a long adobe building used as a storehouse, and sounds indicated that a man was at work inside. It was towards the storehouse that the caballero now hurried, something of anger in his manner, his face still flushed, his dark eyes snapping and his chin thrust out in aggressive fashion.

Seeing a face peering at him from one of the windows, he gave it scant attention, but lifted the latch, and the door of the storehouse flew open at his touch.

For an instant he stood in the doorway trying to see, for the sun outside was bright, and inside there was a semi-gloom. Then he made out a rough counter, piles of skins from cattle and sheep, sacks of grain, casks of tallow, bolts of imported goods, and a man who paced back and forth before a rough desk, his hands clasped behind his back, his head bowed on his breast.

“Good day, *señor!*” said the caballero.

The other stopped and raised his head, looked the caballero straight in the eyes, then, without a word, stepped behind the counter and busied himself arranging some bolts of cloth on a shelf.

“I greeted you good day, *señor!*”

Still there was no reply, nor did the man behind the counter turn to face the one who spoke.

“Is there man, woman or child in the mission who can speak Spanish, native or the sign language?” demanded the caballero now, angrily, stepping up to the counter and placing both his hands upon it. “Is this the hospitality of which San Diego de Alcalá has been so proud? Those persons I met in the plaza refused to answer my polite salutations. And you—I take it you are a

sort of manager here, or superintendent, or clerk to the padres, or something of the sort—seem to have no word for me, not even the one common courtesy demands you should use in response to a greeting!”

He waited; but an answer did not come. The man behind the counter had finished with the bolts of cloth, and now was taking from the shelf jars of honey and olives and oil, and putting them back exactly as they had been before, showing plainly that he was busying himself merely to avoid making a reply.

“Has life in the bright sun dulled your wits?” demanded the caballero, now thoroughly angry. “Have you all taken a vow not to speak until such and such a time? Could I get your kind attention, perhaps, if I made a purchase? One would think an Indian attack had left you all without tongues in your heads!”

Still there came no reply from the man behind the counter.

The door opened, and a giant of a neophyte entered. He gave the caballero a glance, seemed to throw back his shoulders, and hurried up to the counter.

“A quarter of mutton, Señor Lopez,” he said. “The padre said I was to have it until the grain is harvested.”

“Certainly, Pedro,” came the reply.

Señor Lopez turned and smiled at the man he had called Pedro, and went to the rear of the room, from where he carried the meat. Pedro took the mutton upon his shoulder, and Señor Lopez followed him to the door, opening it and holding it wide so that the other could pass out. For a moment they talked in low tones, then Pedro hurried away, and Lopez closed the door and went back behind the counter.

“So you can use your voice when it pleases you to do so, it seems,” said the caballero. “Suppose you use a portion of it now, in answer to some questioning of mine. If it is necessary, I’ll pay for it. Give me this much voice, Señor Lopez!”

He threw a gold coin down upon the counter so that it rang. Lopez turned slowly and faced him, looked him straight in the eyes a moment, then went back to the shelf and began arranging the jars again.

If the eyes of the caballero had snapped before, they blazed now. He placed both hands upon the counter as if to spring over it and throttle the man who refused to speak, but he seemed to decide against that, and the smile came upon his face again, only the quality of the smile was not the same.

On one end of the counter was a heap of small stone jars, filled, evidently with fruit and oil. The caballero picked up a bar of metal from the counter, walked deliberately to the heap of jars, and crashed the heavy bar down among them.

Señor Lopez jumped as if he had been shot, and turned to see the caballero standing before the ruin, the inscrutable smile still upon his lips. He raised the bar again, and again he crashed it among the jars, sending fruit and oil to the floor.

“*Señor!*” Lopez cried.

“I thought that would make you find your voice. As for the damage, I’ll pay it. Now suppose you open your lips and explain this strange conduct, before I get genuinely angry and carry on the work of destruction.”

Their eyes clashed for a moment, and then Lopez spoke:

“I open my lips this once, and after that, *señor*, perhaps you will go back up El Camino Real and admit yourself a beaten man. San Diego de Alcalá has a name for hospitality, it is true, but there is none even here for Captain Fly-by-Night.”

“It seems to me,” said the caballero, “that I have heard that name before.”

“It is known from San Francisco de Asis to San Diego de Alcalá, *señor*, without credit to the man who bears it.”

“Indeed?”

“We play at words, *señor*, and that is not necessary. News of your coming was received several days ago. When the news went up El Camino Real that the good Señor Fernandez had gone the way of all flesh and left to his fair daughter, Anita, and her very distant relative, Rojerio Rocha, the fortune and broad acres he had acquired by a lifetime of hard work and danger, you boasted, before the body of the *señor* was scarcely cold in the ground, that here was a fair maid and a fortune to be won, and that you could and would win them.”

“I boasted that, eh?”

“’Tis well known, Captain Fly-by-Night. You boasted loudly. Even when it became known that Rojerio Rocha was to come down El Camino Real from distant San Francisco de Asis and wed his distant relative, and be the head of the great rancho, you boasted that, betrothal or no, you’d win Señorita Anita and the rancho would be yours.”

“Indeed, *señor*?”

“Many a mission and presidio, and many a rancho, you have visited during your career, Captain Fly-by-Night, always to leave behind you broken hearts and empty purses. Your skill with the cards and dice, it is said, is such as to be almost supernatural. There is another explanation for it, of course. Your way with women, too, has been made notorious. But never did you come near San Diego de Alcalá while Señor Fernandez was alive, knowing well what to expect if you did. Now that he is dead, you dare to come, after making your boasts.”

“I am learning things regarding myself,” said the caballero.

“When we heard of your boast, we considered what to do,” Lopez went on. “Did the padres let the men of the mission whip you and send you back up El Camino Real, as they should, you could say that you had no chance, one man against so many score, and, moreover, the well-known hospitality of San Diego de Alcalá would be outraged. So we decided upon another course, Captain Fly-by-Night.

“The country is both long and broad, and we do not say you cannot live in it. But so far as San Diego de Alcalá and its people are concerned—ranch owner, fray, neophyte or soldier—you do not exist, *señor*. No man, woman or child will speak to you. You can purchase neither food nor wine here. The sweet *señorita* whose name you have insulted with your boasts will pass within half a dozen feet of you and see you not. You will be a nothing, not given as much consideration as a coyote. Do you understand me, *señor*?”

“You speak plainly enough,” the caballero replied.

“If you wish to remain under those conditions, we will make no effort to prevent you. When Rojerio Rocha arrives—and he is expected within a few days—and weds our fair Anita, being then in the position of a husband, he

may see fit to chastise you for your ill-timed boasts. If you care to admit that you boasted once too often, and wish to return to the north, there is grain and hay for your horse at the end of the wall, and we will not call it theft if you feed your animal. Your absence would be well worth the price of a few measures of grain.”

“That is all you have to say, Señor Lopez?”

“I have opened my lips to tell you how things stand, Captain Fly-by-Night. Hereafter they shall remain closed in your presence.”

“If there should be some mistake about that boast——”

Lopez looked at the caballero, then turned toward the shelf and began arranging the jars again. The anger was dying out of the face of the caballero now, and the smile that came upon his lips was more inscrutable than before.

“At least, I leave the coin in payment for the damage I have caused,” he said; and started toward the door.

He heard the quick step of Lopez behind him, but did not turn. He threw the door open wide, and stepped out. Something whizzed past his head and struck the ground before him. He looked at it—the coin he had left on the counter.

As he walked back across the plaza to where he had left his horse, the caballero chuckled like a man well pleased. There was no anger in his face or bearing now, no resentment, rather lively satisfaction. He passed the giant Pedro talking with another neophyte, and when they turned their backs to him and continued their conversation as if he had not been near he laughed outright.

He led his horse from the plaza and down the slope, and there he removed saddle and bridle and picketed the animal where green grass grew along a trickling brook. Walking some distance from the mission he shot a rabbit, and, carrying the game back to where he had left the horse, he cleaned it with his knife, washed it in the creek, and hung it up on a forked stick.

Then he arranged dry moss and grass for a fire, being particular to build it where it could be seen easily from the guest house of the mission and from

the padres' quarters; and he knew that every action was being watched, that men and women might keep silent, but could not curb their curiosity.

He had no flint and steel, neither did he know how to make fire by the Indian method, and he found himself now facing a predicament. But there were glass buttons on his cloak, and from one of them he made a burning glass, and crouching over the dry grass focused the sun's beams and in time had a blaze.

He cooked the rabbit, ate it without salt, put more fuel on the fire, then spread his cloak on the ground, picked up the guitar, and began playing softly. Presently he sang, his voice ringing out across the plaza and reaching the ears of those in the mission.

Now and then an Indian child came to the end of the adobe wall and watched and listened. Men and women passed from hut to hut, but none paid the slightest attention to him. Smoke poured from chimneys, and there were odours of meals being prepared. His singing and playing over for a time, the caballero sat with his back against a rock, his sombrero tilted over his eyes, and rested.

Presently he saw the door of the guest house open, and out of it came a vision of female loveliness that caused the caballero to catch his breath. Behind her walked an elderly *duenna* of proud carriage.

"This will be the fair Anita, with some *señora* in attendance," the caballero chuckled. "I wonder if they intend paying me a visit?"

It looked it, for the girl led the way down the slope and toward the creek, walking with head proudly lifted, the elderly *señora* tripping at her heels. They passed within twenty feet of the caballero, but the girl did not look his way. The other woman, however, glanced at him from the corners of her eyes, and he smiled at her curiosity.

They stopped beside the creek, and the girl filled a small jar with water, and began arranging wild flowers in it, while the *señora* stood beside her, looking down the valley toward the presidio.

"To think," voiced Anita Fernandez, "that a husband is to come to me up El Camino Real all the way from San Francisco de Asis—a husband and distant relative at one and the same time! To marry a man I never have seen before—is that not a hardship, Señora Vallejo?"

“Rojerio Rocha,” Señora Vallejo replied, “undoubtedly will be a gentleman, a pattern of a man and an excellent husband. There will be ample time for courtship after he arrives; there is no need for rushing the marriage ceremony. You do not have to wed him if he is not a proper man.”

“But my father wished it,” Anita said.

“Your father knew that Rojerio Rocha had been left without much of the world’s goods. He is of a very distant branch of the family; yet your father desired to see him better equipped with wealth. He desired your marriage to Rojerio Rocha, knowing the man’s good blood, but above all things he would desire, were he still on earth, your happiness. You can make up your mind, my dear Anita, after Rojerio Rocha arrives.”

“I wonder what he will be like, how he will appear, whether he can smile and sing, and speak kindly.”

“All of that, whether it be Rocha or Fernandez blood in his veins,” said Señora Vallejo.

“I shall, indeed, be glad to see him. How long it has been since a stranger of quality came to us out of the north!”

The man beside the fire chuckled at that, and got up to walk slowly down the slope toward them. Six feet away he swept his sombrero from his head and bowed his best, and he smiled when he spoke.

“I believe I have the pleasure of addressing Señorita Anita Fernandez?” he said.

“Señora Vallejo, did you speak?” asked the girl, without looking at the man beside her.

“’Twas a coyote barked,” Señora Vallejo replied.

“Indeed, my poor voice may seem like the barking of a coyote to one with a true musical ear,” the caballero said, “though some have said it is near perfect in tone.”

“Are you mumbling, Señora Vallejo?” Anita demanded.

“I am not, Anita, dear. It is the wind whistling through the olive trees.”



“Ah! We grow with acquaintance!” said the caballero, lightly. “At first my voice sounded like the barking of a coyote, and now it sounds like the whistling of the wind through the trees. We grow more musical, indeed.”

Señora Vallejo bit her lip, and resolutely kept her face from that of the man standing beside her.

“Do you suppose, Señora Vallejo,” asked Anita, “that the odious Captain Fly-by-Night will have the audacity to come to San Diego de Alcalá, as he boasted he would do? Has the man no brains at all, no sense of the fitness of things? San Diego de Alcalá is no place for gamblers such as he. He pollutes the plaza if he walks across it!”

“No doubt the creature is senseless enough to come,” said Señora Vallejo. She dabbed at her face with a lace handkerchief, and, in dabbing, dropped it. In an instant the caballero was down upon one knee, had picked up the handkerchief, and, remaining on one knee, tendered it.

“Permit me, *señora*,” he said.

Señora Vallejo’s hand went out, but there flashed from the eyes of Anita Fernandez a warning, and the hand was withdrawn. The caballero arose and tendered the handkerchief again, to have Señora Vallejo turn her back and face the girl.

“Perhaps, Anita dear, we should return now,” she said. “Evening approaches, and there will be a fog rolling up the valley.”

“As you please, Señora Vallejo.”

The girl turned from the creek and started walking up the slope. The caballero stood in the path before her, determined. Anita Fernandez stopped, and seemed to look through him and at the mission beyond. From the adobe wall hurried Pedro, the giant neophyte, who had been watching and feared an affront to the women.

“You are being annoyed, *señorita*?” he asked.

“How could that be?” she demanded, laughing lightly. “There is none here to annoy me, unless it be Señora Vallejo.”

“I beg your pardon, *señorita*. I thought I heard someone speak.”

“’Twas but the distant barking of a coyote, Pedro. You may follow us to the guest house, if you wish. I will give you something for your little girl.”

They started toward the caballero again and for a moment it seemed that they must recognise his presence. But Anita Fernandez had a subterfuge to prevent that. Just before reaching him, she turned aside, and the others followed.

“I must speak to the padre about the neophytes allowing rubbish to collect so near the mission,” she said. “It always should be burned. Look at the stuff here!”

She pointed to the caballero’s cloak, and with one tiny foot she kicked scornfully at the guitar. Then she swerved back toward the path again, and the others followed her toward the plaza. The caballero picked up the guitar and pressed his lips to the place where her foot had struck, knowing well that Señora Vallejo was watching him, though she pretended not to be.

He looked after them until the girl and woman had passed around the end of the adobe wall and Pedro had gone to his own hut. Darkness was gathering rapidly now; lights appeared in the buildings; before the door of the storehouse sat a circle of men, talking and laughing, sipping bowls of wine. Sitting on the ground, his back against a rock, the caballero watched the scene.

“A beautiful woman,” he mused. “Proud, spirited, kind though she does not suspect it, naturally intelligent, very much to be desired.”

One by one the lights in the buildings disappeared. The men before the storehouse crept away to rest. A fray called to a neophyte standing guard. And then there was no noise save for the singing of the breeze through the orchard, and the distant howling of a coyote.

Presently the caballero arose and picked up his guitar, and crept up the slope until he reached the adobe wall. He followed it to the end of the plaza; made his way slowly through the darkness to the guest house. There he stationed himself below an open window and began playing softly. Several minutes he played, knowing a neophyte stood a score of feet away, watching; and then he began to sing a love song of Old Spain, a song of strong men and fair women. Between two verses he heard the voice of Señora Vallejo.

“Anita, child, do you hear?”

“Yes, Señora Vallejo,” the girl replied, clearly. “The coyotes are growing bold again. One is howling now beneath my window.”

## CHAPTER V

### TWO GOOD SAMARITANS

It is a matter of history—that big rain of a certain year. The torrents poured from the sky at an unexpected time until the country was drenched and tiny streams swollen, and watercourses that had been dry were turned into turbulent yellow floods that carried on the surface brush and grass and logs from the hills, menacing many a rancho, undermining huts and adobe houses, ruining wells.

Returning from his ineffectual serenade, the caballero observed that the stars were disappearing, but believed it was because of a fog that came from the sea. As he reached the place where he had picketed his horse and built his fire, a drop of water splashed on his cheek. At the most, he anticipated nothing worse than half an hour's shower, and so he merely built up his fire and put some dry moss and grass to one side under his cloak, and prepared to sleep on the ground.

He slept soundly after his long journey and the unexpected events of the past two days. He awoke to find the fire out and a chill in his body, to find that water was flowing down the slope about him, and the ground but a sea of mud, with the torrent continuing to pour from the sky.

It was not more than midnight and the storm gave no indication of ceasing. The caballero stood up and threw aside his sodden cloak, picked up guitar and sword and pistol, and left the camp to hurry in the direction of the mission orchard.

It was so dark he could see nothing, and he could not locate a path. Roots half washed from the ground tripped him, water flowed down the back of his neck. On and on he stumbled, until he ran against the orchard wall. He managed to get over it, carrying his property, and searched for a place where the trees would shield him partially from the storm.

He came to a giant palm and crept close to the bole where the wind drove the rain against him, but where it was not quite so bad as in the open. And there the caballero stood, hour after hour, gradually getting colder and more miserable, hugging his guitar under one arm and his sword under the other.

Dawn came, a grey dawn that made the world look dismal. He left the semi-protection of the palm, went over the wall, and hurried back to his camp. His horse was standing with back to the tempest, his head hanging low, his tail tucked between his legs. Water was pouring down the slope; the dry grass he had gathered was drenched; the little creek was a roaring torrent rushing down the valley toward the sea.

The caballero was cold, hungry, miserable. Across the plaza he could see smoke pouring from the chimneys, and to his nostrils came the odour of food being prepared. The mission bells rang. Neophytes left their huts to hurry toward the chapel. Señor Lopez came from the storehouse and went to the guest house, carrying a huge umbrella made from skins, and there Anita Fernandez and Señora Vallejo joined him and walked across the plaza to the church beneath the protecting parasol. A fray was placing stepping stones in the mud before the chapel door.

“I must have a fire!” the caballero remarked, to nobody in particular.

He walked some distance up the swollen creek, until he came to a ledge of rock, and there he found some dry grass; but there was no possibility, of course, of using the glass-button again, since the sun was not shining. He collected a quantity of the grass and fired into it with his pistol, but no spark caught. Again and again he fired, without success, finally ceasing in disgust.

He went back and stood near the horse, looking up at the heavens. The clouds were black, ominous; there was no decrease in the volume of water that poured from the sky. There was no place near where he could make a dry camp. And it was fire he needed—fire at which to warm himself and dry his clothing and cook another rabbit, if he could kill it.

For the remainder of his life he remembered that day and the two following. Such misery he never had known before, nor knew afterward. Now he crept into the wet orchard; now he braved the open on the slope. At times he ran back and forth beside the raging creek, trying to warm his blood by the

exertion. Men and women of San Diego de Alcalá went about their business, but none gave him attention.

Each hour seemed a day and each day a lifetime. His clothing was soaked, his boots covered with muddy clay. He stood beside the horse and looked at the mission buildings and at the smoke pouring from the chimneys until he could bear to look no longer. Once he heard a child laugh, and the laugh plunged him into the depths of despair.

He rattled the coins in his purse. Worthless they were here in San Diego de Alcalá; and he would have traded them all for five minutes of bright sunshine.

He began to grow desperate. Playing the game as the men and women of the mission played it, they could not recognise his presence; so he decided to walk boldly into the storehouse, to warm and dry himself there, ignoring them as they ignored him. He would take what food he desired, and throw money in payment for it down on the counter, and walk out. They would have to recognise him to prevent it.

The caballero laughed wildly as he reached this decision and started up the slope toward the plaza. He reached the door of the storehouse and tried the latch, but the door was locked, for Señor Lopez had seen his approach. He tried a window, and found that locked also. He went to the guest house, to find the door fastened there.

For a moment he considered raiding one of the Indian huts, sword in hand, but his pride came to him then; and he walked back down the slope, his face flushed with shame because of what he already had done. He would last it out, he determined! If he died of the cold and misery, then he would die, but he would fight the battle alone without any help from those of the mission.

And then he remembered the presidio.

Fool, not to have thought of it before! He laughed again, this time in relief, as he put saddle and bridle on his horse, and then, waving his hand in derision at the group of mission buildings, he galloped toward the bay. There was the presidio only six miles away, where a caballero could get food and wine and have companionship while he dried his clothes before the roaring fire!

He rode like the wind along the highway, facing the storm as it blew in from the sea, his horse running gladly, plunging down wet embankments, splashing through the mud, wading streams where there had been no water twenty-four hours before. Up the road toward the structure on the crest of the knoll, the caballero forced his steed. Before the gate stood a sentry with a musket on his arm. The sound of laughter came from the barracks-room, and it carried cheer to the caballero's heart. Smoke poured from the chimney, the odour of cooking meat was in the damp air.

The sentry's musket came up and his challenge rang out. Through the gate the caballero could see an officer standing in the door of the nearest building.

"Your business?" the sentry demanded.

"Take me to your commanding officer! Call an Indian to care for my horse!"

The sentry's cry was answered. A corporal came running across the enclosure, an Indian at his heels. They stopped short when they saw the caballero; the Indian looked frightened, the corporal grinned.

"Well?" he demanded.

"I want to see your commanding officer," the caballero said. "I have had enough rain without waiting here for you to make up your mind."

"Dismount and follow me," the corporal said.

The Indian went forward and took the horse by the bit. A muddy and bedraggled caballero got stiffly out of the wet saddle and paced through the sticky clay to the door of the barracks-room. The officer was still standing there; he had scarcely moved.

"I want food, wine, a chance to dry my clothing and get warm," the caballero said. "There seems to be a superabundance of rain just now at San Diego de Alcalá."

"Did you ask hospitality at the mission?" the lieutenant wanted to know.

The caballero's face flushed as he met the other's eyes.

"Your manner," he replied, "tells me you know of my reception at the mission. I did not look for the same sort of reception here. I have a pass

from his excellency that should command respect.”

The caballero handed over the pass, which was wet, and the officer glanced over it.

“The pass is regular, caballero,” he said, “except that it does not name you. It cannot, therefore, have weight with me.”

“Do you mean to say you will not extend the ordinary hospitality of the road?”

“In a few words I can tell you where this presidio stands regarding yourself,” the lieutenant answered. “Your recent boast concerning an estimable young lady is well known, Captain Fly-by-Night. Also is your general reputation. Soldiers, ordinarily, welcome a man of your ilk, if he is merry and given to gambling, even if he cheats with the cards. But Señorita Anita Fernandez stands in the relation of daughter of our company, *señor*. Not a man of the post who would not die for her. And when the priests and people of the mission decide you are beneath their notice, we of the presidio stand with them, even though in other matters the mission and the presidio are as far apart as north and south.”

“Indeed?”

“Indeed, caballero. In regard to the pass—so far as I know, it may have been stolen. I’ll stand any consequences that may come from refusing to honour it.”

They faced each other while a man could have counted ten, the eyes of neither flinching, hands clenched, breath coming in quick gasps, each waiting for the other to make the first move. Like lightning the caballero’s mind acted then.

He looked into the future and into the past, considering things of which the lieutenant did not know. And in that instant of time he decided that it would be the honourable thing to accept a slight now for the good that might come from it later.

“You refuse me hospitality?” he asked again.

“I do, *señor*.”

“There may come a time when I shall call you to account for it, officer.”



“You cannot taunt me into a quarrel, caballero. It was expected that such would be your method when you found yourself ostracized, and it was agreed that none would accommodate you. An officer of standing, moreover, does not fight with an adventurer who lives by his wits and his ability to insult women and swindle men.”

The caballero choked in sudden rage and his hand went toward the hilt of his sword. But thoughts of the future came to him again, and he took a step backward and swept off his sombrero in a stately bow.

“For the time being, it shall be as you say, officer,” he said. “But do not doubt that there will be a reckoning, and when it comes I shall take the matter into my own hands, not hand you over to court-martial for ignoring his excellency’s pass.”

He turned his back and started toward the gate.

“A moment, caballero,” the lieutenant called. “While we have decided not to hold intercourse with you in a social way, it does not follow that you are entirely ignored. There are alert eyes about you, *señor*. And treason has a merited reward!”

“May I ask your meaning?”

“Leave a picketed horse long enough, *señor*, and he’ll throw himself with his own rope. I trust my meaning is clear?”

“As clear as the sky at present, *señor*,” the caballero replied. “I shall recommend to his excellency, when next I greet him, that he place an officer with brains at San Diego de Alcalá!”

He sprang to the saddle and spurred the horse cruelly. Back along the road toward the mission he urged the animal at utmost speed, careless of the treacherous ground and of what a stumble might mean. Once more he reached the slope before the mission, and picketed the horse. He stacked the saddle and bridle together, got his guitar from a corner by the orchard wall and put it with them, and covered all with his cloak. Then he started up the slope, walking swiftly.

He had but a remnant of his pride left and did not think it necessary under the circumstances to conserve that. He went around the end of the wall and splashed across the plaza, scarcely looking at the neophytes and frailes.

Straight to the church he went, opened the door, and entered. He made his way to the chapel. There was sanctuary; there none could molest him without special order; and here he stubbornly decided to remain.

But there was no warmth, no food, no drink. A couple of candles glowed. A padre knelt. Two neophytes were at work patching a hole in the wall. The caballero paced back and forth in the narrow aisle, listening to the beating of the storm outside, wondering whether a fray would speak to him and offer relief.

The neophytes went out, and in time the padre followed. The caballero did not speak as he passed, for he felt that the other would not answer. He wondered whether the entire world had turned against him. He contrasted his present condition with the hospitality he had received at Santa Barbara and San Fernando, and in the adobe house of Gonzales at Reina de Los Angeles. He longed for the companionship of the aged Indian at San Luis Rey de Francia, for his poor hut and coarse food and hard bunk.

And then his pride returned to him in a surge. He would seek sanctuary in no chapel where his presence was not welcomed by all!

Out into the rain he went again, across the plaza, down the slope to where he had picketed his horse. Back and forth he ran to warm his blood. The sky darkened, the night came. He saw the lights in the buildings again, and the odours of cooking food almost drove him frantic. In the guest house, someone was singing. He guessed that it was Señorita Anita Fernandez.

He spent that night in the orchard under the big palm, shivering because of the cold and his wet clothes, miserable because of his hunger, and when the dawn came, and the storm had not abated, he went back to the horse with an armful of dry grass he had found in the corner by the orchard wall.

Bravado came to him now. He took the guitar from beneath his cloak, and, standing out on the slope where all could see, he played and sang at the top of his voice.

Still it rained, and the creek grew broader, flooding the highway and threatening the plaza wall. The caballero sat on the muddy ground, his cloak over his head, huddled forward, grim, awaiting the end of the rain.

“The poor man!” observed Señora Vallejo, watching from a window of the guest house.

“He has brought it upon himself,” Señor Lopez reminded her. “Had he returned when I warned him he would have been in comfort somewhere along the highway long since.”

“If the rain could but wash his soul as it does his body!” sighed Anita, standing closer to the big fireplace.

“The man will die,” Señora Vallejo said. “His clothing is soaked, and he cannot build a fire and cook food.”

“Perhaps it will teach him a lesson,” Lopez snarled. “We must watch; he may try to break into the storehouse to-night.”

“Listen! He is singing again,” Anita called.

“Oh, the man has courage enough!” Lopez said. “They tell a thousand stories of his daring. The men at one of the missions were going to whip him down the highway once, and he sang them out of it. Moreover, he got them to play at cards, and finally went down the highway with a drove of mules loaded with goods he had won.”

“You are certain all the stories are true?” the girl asked.

“More stories are true than you may be told, *señorita*. It is best not to ask too much,” Señora Vallejo put in; and she frowned a warning at the storekeeper.

They sat down to the evening meal, to a table loaded with food as if for a feast. The man down on the slope was still singing.

“Perhaps he will go away after the storm,” Anita suggested. “He will be too miserable to remain.”

“And when the storm gets up and down El Camino Real, he will be forced to leave the country,” Lopez added. “He is the sort of man who cannot stand ridicule.”

Darkness descended swiftly that night, and down beside the swollen creek the caballero, now downhearted, tried to think of some expedient that would make his lot better. When the lights were burning brightly in the guest house, he took his guitar and slipped across the plaza, to stand beneath Anita’s window again and play and sing. The howling of the wind almost drowned his voice, and he doubted whether those inside could hear. Once

the giant Pedro walked within a dozen feet of him, but did not speak, and the caballero knew that he was being watched.

He crept into the orchard again, and for a time slept on the wet ground because of his exhaustion, and as he slept the rain pelted him and water dripped upon him from the fronds. Awaking to face another dawn, the third day of the downpour, his face and hands were tender from the continual washing of the water, and his hunger had become a pain.

The rain ceased about midday, but the sun did not come from behind the clouds. Behind a jumble of rocks half a mile up the valley, the caballero removed some of his clothes and wrung the water from them as well as he could before he put them on again. He scraped the clay from his boots; and searched beneath the rocks until he found a small quantity of dry grass and sticks, getting them ready for his fire when the sun should shine.

But the drizzle continued, and the sun did not show its face. The caballero stood beside the creek and watched the rushing stream, one arm around the neck of his horse. Less than a hundred feet away neophytes were toiling to strengthen the adobe wall where the water had undermined it, a couple of frailes giving them orders; but none spoke to the caballero or looked his way.

Again night came. He sat on a rock at the edge of the creek, thoroughly miserable, hoping that the sun would shine on the morrow, that he'd be able to kill a rabbit for food. He thought he heard someone splashing through the mud, and looking around, saw a dark shape approach.

Something struck the ground at his feet, and he saw the dark shape retreat again. The caballero took a few steps and picked up a package; he tore away the wrapper—and found flint and steel!

The caballero chuckled now and hurried to the pile of dry grass and twigs he had collected. Soon the welcome blaze sprang up. He threw on more fuel, stretched his hands to the fire, spread his cloak to dry. He was too busy now to speculate as to the identity of his benefactress; for he had guessed that it was a woman who had befriended him, else a gowned fray, and he doubted the latter.

The fire roared, and the caballero stood near it, first facing the blaze and then letting it warm his back, while the steam poured from his wet clothes.

The fire was good, but he needed food also—he would have to wait for morning for that, he supposed.

Another sound of someone slipping on the wet ground, and the caballero whirled around and looked up the slope. But there was silence, and he did not hear the sound again. Once more he faced the fire, and presently the sound of footsteps came to him, and this time he did not turn.

The steps stopped, retreated, and he felt sure that he heard a bit of laughter carried to him on the rushing wind. He waited an instant, then walked slowly up the slope toward his horse. He came upon another package. Hurrying back to the fire, he opened it. There was a roast leg of mutton, a bottle of wine, cold cakes of wheat-paste, a tiny package of salt, a jar of honey!

With the roast leg of mutton in his hands he did not stop to wonder as to the good samaritan who had left the package there. He ate until the last of the roast had been devoured; drank deeply of the invigorating wine; stored honey and cakes and salt away in his cloak, and then he sat before the fire thinking the world considerably better than it had been an hour before. Now and then he chuckled, and his eyes were sparkling.

For, when he had gone to pick up the second package, he had carried a brand from the fire to light his way, and he had seen footprints in the soft clay.

They had not been made by Señora Vallejo, for he had noticed three evenings before down by the creek that the feet of Señora Vallejo were not of the daintiest. Neither had they been made by some Indian woman from one of the huts, since those women always wore moccasins.

They had been made by two tiny shoes with fashionable heels, such as might have been imported from Mexico for the daughter of a wealthy rancho owner!

## CHAPTER VI

### VISITORS

The fire died down for lack of fuel, until only a small bed of coals remained to glow like a great red eye in the black night. There was no moon. The caballero, warm and dry, had spread his cloak on the ground and was stretched upon it, half asleep, listening to the rushing of the creek and the screeching of the wind that swept up the valley from the sea.

He sensed the presence of human beings near him, and without changing his position on the cloak he let his right hand slip slowly along his side until it gripped the butt of his pistol. And there he remained, trying to pierce the black night with his eyes, ears strained to catch the slightest sound.

His horse snorted in sudden fear; the caballero gripped the pistol tighter, half minded to spring to his feet, yet declining to do so for fear it might be some prowling neophyte attempting to frighten him and carry a tale back to the huts in the plaza of how the caballero had been stricken with fear in the night.

*“Señor!”* The warning hiss seemed to come from a great distance, borne on the raging wind. He knew it was an Indian who spoke; and the inflection of the single word expressed that the speaker was merely trying to attract his attention, not threatening, not warning of some imminent peril.

The caballero rolled over slowly and sat up, yawning behind his hand, like a man displeased at an interruption. Though every sense was alert, there was nothing in his manner to indicate to a watcher that he had been startled or that the unknown voice out of the night had carried fright to him.

He looked across the bed of coals, and saw nothing. He glanced at either side, but no leering face came from the blackness, no dark form slipped toward him, knife in hand to attack, or finger on lips to caution silence. The horse snorted again.

“*Señor!*” Once more the hiss, and it seemed nearer.

“Well?” the caballero demanded, half angrily and in a questioning tone.

“It is a friend who would aid you.”

A handful of dry grass and leaves remained near the fire; now the caballero arose slowly, picked up the fuel and took a quick step toward the glowing coals.

“Not that, *señor!*” came the sudden warning. “Guards about the mission will see!”

The caballero hesitated, not knowing whether to treat the man in the darkness as friend or foe. Then he laughed lightly and dropped the grass and leaves.

“Approach, then, so I may see you!” he commanded.

He heard someone slipping through the mud. Gazing across the bed of coals he saw an Indian face come from the darkness, just the bare outline of a face half seen in the night—thick black hair bound back from the forehead, two piercing eyes, an aggressive chin. The Indian stooped so that the reflection from the dying fire illuminated his features for an instant.

At the point of speaking, the caballero felt his tongue seem to grow paralyzed. Beside the face of the Indian another had appeared—and another—another, until six faces peered at him from the darkness and six Indians squatted in the mud on the other side of the bed of coals.

“We have come, *señor*,” the spokesman said.

“That is plainly to be seen.”

“At first we were not sure, and then word came to-day by a runner from an old man at San Luis Rey de Francia, who said he had given you lodging for a night, and, also, we saw how you were treated by the people of the mission and the presidio. So we came.”

“And now—?” the caballero asked.

“What is your wish, *señor*? In a cañon five miles away there is a comfortable camp, and if you desire we’ll guide you to it.”

“I am of the opinion I’d much rather remain where am.”

“We do not understand your ways, *señor*, yet we trust you. If it is your desire to remain here beneath the mission walls, undoubtedly you have some good reason. But you must have a camp, *señor*—shelter and food and drink—and those of the mission will give you none.”

“You speak truth there,” the caballero admitted.

“Thinking, perhaps, you may decide to remain near the mission, we carried with us material for your camp. We can pitch it for you beside the creek in a very short time, *señor*. When the dawn comes, those of the mission will find Captain Fly-by-Night in a comfortable teepee, with skins for his bed, an abundance of food and wine, cooking vessels, a heap of fuel. Every night one of us will fetch fresh meat and other food, and hear what you may have to say in the way of orders.”

“This kindness will be the death of me,” said the caballero.

“We cannot do too much for Captain Fly-by-Night. We may build your camp?”

“I always accept what Heaven provides. On the level spot half a hundred feet from the creek would be an acceptable place.”

The six Indians bowed before him and merged into the darkness. Chuckling to himself, the caballero sank back on his cloak and listened, but he did not release his grip on the butt of his pistol. Sounds came to him through the night from a short distance away—muttering voices, flapping skins, the squashing of wet moccasins in the mud. Half an hour passed, and then he heard the voice of the spokesman again:

“*Señor*.”

“Well?”

“The camp is prepared; everything is ready. It is best that we slip away before being heard or seen. At midnight each night some one of us will visit you, *señor*, and bring provisions. And now—is there anything you would command this night?”

“Nothing. You have done well, it seems.”

“You will be guarded, *señor*. There are friends of Captain Fly-by-Night inside the mission walls, but they must move carefully.”



“I should think so.”

“Everything is in the teepee, even to food for your horse. The fire is laid before it, and you have but to strike flint and steel. *Adios, señor.*”

“*Adios!*”

The Indian’s face disappeared again, the caballero heard the slipping steps retreating, another fragment of language, and then silence except for the rushing wind and the roaring creek.

For half an hour he waited, smiling, fumbling at his pistol, listening, and then he got up and stepped away from the bed of coals to be swallowed up in the darkness. He was taking no chances with the unknown, however. Step by step, and silently, he made a wide circle and approached the teepee. Standing beside it he listened intently, but heard nothing.

Before the crude habitation was a heap of dry grass and wood, as the Indian had said. He sent sparks flying among the fuel, fanned them to a blaze, and waited back in the darkness a few minutes longer. Then he hurried forward and threw back the skins from the door of the teepee.

The work had been well done. Boughs were on the ground, skins spread upon them. In a corner was a jug of wine, another of water, a quarter of mutton, a quantity of wheat-paste. Two rabbits, skinned and cleaned and spread on forked sticks, were beside the mutton. A dirty, ragged blanket, folded, was against the wall.

There was no fear of treachery in the heart of the caballero now. As quickly as possible he got his cloak, sword and guitar, and carried them into the teepee; he found grain and hay where the Indians had left them—near the fire—and carried a generous amount to his horse. Then he returned to the teepee, threw himself upon the blanket facing the fire, and slept.

Slept—and awoke to find the bright sun beating down upon his face, that the creek had fallen until it was scarcely more than its normal size, that neophytes and frailes were at work again repairing the base of the abode wall, and that now and then one of them looked with wonder at the teepee that had been pitched during the night.

“Curiosity will do them good,” the caballero mused.

It was a royal meal he prepared that bright morning. Steaks of mutton, one of the rabbits he broiled over a bed of coals, cakes of wheat-paste were made, and, sitting out where all could see, the caballero ate his fill and washed down the food with wine so rich and rare that he knew no Indian had taken it from his own store. It was good mission wine such as no Indian possessed unless he had purloined it in a raid.

He stretched a skin and poured half the water on it for the horse, for that in the creek was not yet fit for drinking. He gave the animal another measure of grain and wiped his coat smooth with a skin, and polished the silver on saddle and bridle, singing as he worked so that his voice carried to the plaza.

At an early hour he observed a neophyte ride away in the direction of the presidio, to return within a short time with the *comandante*. In the plaza the officer held a consultation with a fray, looking often at the teepee down by the creek, and then the man in uniform stalked down the slope, swaggering and twirling his moustache. The caballero arose as the other approached.

“It appears that you have a habitation, Captain Fly-by-Night,” the lieutenant said.

“As a temporary refuge, it will do.”

“The manner of your getting it is mysterious, to say the least. Teepees do not sprout overnight from the mud.”

“Yet it came during the night, *señor*.”

“From whom?”

“That is a question concerning myself, officer.”

“Perhaps it concerns others at San Diego de Alcalá. The frailes at the mission seem to know naught of it.”

“There are many things the frailes of the mission do not know,” the caballero replied. “There are things, also, unknown to the soldiers of the presidio.”

“You are over bold to say it, *señor*. Is your hand so strong that you can throw secrecy and pretence aside?”

“When you speak of secrecy and pretence, officer, I do not know your meaning. It is my own business how I acquired a habitation and food. I am a man of resource, *señor*. And are you not afraid that you’ll be ostracized if you are observed speaking to me?”

“It is a part of my business to investigate suspicious characters,” the lieutenant said.

“Have a care, officer! The score I hold against you already is a heavy one!”

“Your presence here, and your manifest determination to remain, are annoying, *señor*.”

“Were you at your post at the presidio, it would not annoy you, allow me to say.”

“Those of the mission——”

“I have been given to understand, *señor*,” the caballero interrupted, “that I do not exist for those at the mission. As for yourself, if you seek hospitality I have none to offer you. Suppose you give me the pleasure of your absence.”

“*Señor!*”

“*Señor!*” the caballero mocked, sweeping sombrero from his head and bowing low.

The *comandante* snarled in sudden rage and his blade leaped half from its scabbard. Taking a step backward, the caballero put hand to hilt again, and waited. Thus they faced each other beside the creek, while frailes and neophytes watched from the wall, expecting the two men to clash. But the rage died from the officer’s face, and he snapped his sword back in place again.

“You are a clever rogue, Captain Fly-by-Night,” he said. “Almost you taunted me to combat. An officer of his excellency’s forces cannot stoop to fight with such as you.”

“You fear such a thing, perhaps?”

“*Señor!*” the officer cried.

He looked for a moment at the smiling face of the caballero, ground his teeth in his rage, whirled upon his heel, and strode away up the slope, anger in the very swing of his body. Before the teepee the caballero picked up guitar and began to play and sing.

Mud flew from beneath the hoofs of the *comandante*'s horse as he galloped back toward the presidio. Frailes and neophytes resumed their work. Two hours passed—and then there appeared two soldiers, mounted, who stopped at the plaza, spoke to the frailes, handed their horses over to Indians, and strolled down toward the creek.

They did not approach near the teepee, nor did they seemingly give the caballero more than a passing glance. Yet he knew that he was to be under surveillance, that he would be watched by these men night and day, others from the presidio relieving them from time to time. And he expected guests at midnight!

## CHAPTER VII

### TWO TALKS, AND A TUNNEL

The siesta hour was over; the caballero had spent it in proper fashion in his teepee; and now, standing out in the open, he was feeding tufts of hay to his horse and caressing the animal's neck and nose.

Half a hundred yards away the two soldiers from the presidio regarded him with animosity, holding him to blame for their assignment at the mission, where none had love for them, and their absence from the barracks-room and its wine and cards, tales and laughter.

Neophytes and frailes had finished their work of repairing the adobe wall; men were grouped about the plaza; children played about the huts of tule and straw; the door of the storehouse was open and Señor Lopez stood in it talking to Pedro, the giant neophyte apparently in the service of the guest house.

Though it appeared so, yet it was not bravado that drove the caballero to cross the plaza then. It was necessity; for he had given his horse the water that remained in the jug, and needed more, and remembered that there was a well in the orchard.

Swinging the jug by one hand, he started briskly up the slope toward the wall, realising that one of the soldiers was following him at a distance, and that the other remained behind to watch the teepee.

An Indian lounging beside the chapel called to another, and the word was passed along. Señor Lopez straightened up and observed the caballero's advance; Pedro followed him inside, and the door was closed. Indian women called their children into the huts; the men remained standing in groups, but closer together, and as they talked they watched the caballero from beneath shaggy brows. Frailes went about their business as if he did not exist.

“It is a pleasant thing,” he mused, “to be treated in this manner by human beings.”

He did not betray what he felt, however. Singing under his breath as he walked around the end of the wall, he started diagonally across the plaza, looking neither to right nor left. Neophytes turned their backs upon him, and as he passed within half a dozen feet of a fray, and called a greeting in a cheery tone, the Franciscan did not answer, did not even lift his head.

He came to the wall around the orchard and swung upon it—and there stopped, poised, facing the unexpected. Señorita Anita Fernandez, Señora Vallejo and a neophyte were walking toward the well.

It was not a time for hesitation, however. He sprang down on the inside and started forward, whistling, knowing they were aware of his approach and that the girl was whispering warnings to her *duenna*. The neophyte had filled a water jug and would have turned back, but the girl instructed him to wait, and remained standing near the well, looking down the valley toward the bay. Her face was flaming, her black eyes snapped.

“Pardon, *señorita*,” the caballero said. “Perhaps it may look badly to you, but I give you my word of honour I did not see you enter the orchard and purposely follow you here, even though your *duenna* is present. I am of a family that observes the conventions, *señorita*, no matter what may be said of me.”

“Señora Vallejo, when will you cease mumbling to yourself?” the girl demanded.

“I? Mumbling? ’Tis but a frog croaking in the well.”

“That comes from sleeping on the wet ground,” the caballero observed. “When last we met my voice resembled the sighing of the gentle wind through the olive trees, if memory serves me right.”

Señora Vallejo had turned her back, but the caballero could see that her shoulders were shaking, and not with anger. Señorita Anita was deeply interested in the distant flashing of sun on the water.

“Even such rain as we have had recently could not drown my ardour,” the caballero continued. “Yet it was growing almost unbearable—the storm and the cold and misery. How can I ever find thanks enough to give the angel

who fetched me flint and steel under cover of the darkness, when I had about given up hope?”

The girl whirled suddenly, suspiciously, looking not at the caballero, but at her *duenna*; and Señora Vallejo's face resembled the sunset.

“Nor is that all,” went on the caballero. “Flint and steel might have given me fire, but naught but an angel could have furnished me, at that moment, with cold meat and wine and other supplies.”

Now Señora Vallejo whirled in her turn, and Señorita Anita turned suddenly to look down the valley again, her face flaming red. A choking sound came from her throat.

“Some fray of San Diego de Alcalá must have been a holy man, since angels make dwelling here,” the man said. “For two visited me last night within the space of half an hour and left material evidences of their visits behind. It is true I had other visitors later, who left me even a teepee, but scarcely would I call them angels, knowing their breed as I do.”

Sombrero in hand, he waited, hoping the girl would speak to him, if even in rebuke. There was silence for a moment, during which the two women did not look at each other, and the neophyte wondered whether he should call for aid.

“Señora Vallejo,” said the girl, presently, “do you not think we should be returning to the guest house? The evening air is cold, and I would not contract a cough, since I must be at my best when Rojerio Rocha comes.”

“It would be the proper thing to do; the orchard is wet.”

“And I always did dislike a croaking frog,” Anita added. “Tell that Indian to throw out the water in his jar. Nobody except a senseless being would draw water from the well now, since the storm has filled it with the surface flood.”

The caballero felt his face growing red as he glanced down at the jug he held in his hand. The girl had scored again. He looked up quickly, hearing them start to move away, and for an instant their eyes met squarely.

“Bullet nor arrow can harm me now!” he exclaimed. “My heart already is pierced!” And, with that last shot, he turned toward the curb of the well, put

his jug down upon it, and stood with his back turned toward them, laughing to himself.

He heard the girl gasp in exasperation, and exchange whispered sentences with her *duenna*. There was a step on the ground at his back, but not for the world would he turn.

“*Señor*,” a soft voice said.

He turned now, and swept his sombrero from his head again, and bowed low before her. Her face was still flaming, but she looked him bravely in the eyes.

“*Señorita*?”

“I feel that I must speak to you this once, *señor*. For the boasts you made concerning me, I forgive you freely, believing that they would not have been made unless you were in your cups. But surely you must realise that nothing can be accomplished by remaining at San Diego de Alcalá. The people dislike you, *señor*, and your presence is very annoying because of that. Will you not go back up El Camino Real?”

“That you forgive anything I may have said pleases me, *señorita*,” the caballero replied. “It shows you have a gentle heart, as was shown last night when you carried me food. I am desolated to think you have such an ill opinion of me. As for leaving San Diego de Alcalá—I cannot think of that just now, *señorita*.”

“Not even if I ask it as a kindness, *señor*?”

“Not even though you ask it, *señorita*—and I would do it for you sooner than for anyone else I know.”

“It is not pretty compliments I wish, *señor*. Will you not forget your foolish boast, and go?”

“If ever I made a boast, *señorita*, it was not a foolish one.”

“I urge you again, *señor*, to go before Rojerio Rocha comes. He is expected to become my husband, and when he hears of your boast he may take it upon himself to do something unpleasant. Will you not do as I request, since I have disobeyed my *duenna*’s orders and lowered myself to speak with you?”



“*Lowered yourself, señorita?*” Surprise, astonishment, a bit of pain was in the voice, and the caballero’s face went white for an instant as his fingers gripped the rim of his sombrero until it was torn. But quickly he recovered his composure, and bowed before her again. “I beg your pardon, *señorita*. But you mistake. It would be impossible for you to lower yourself, since angels are above punishment and accusation; it is myself—or any other man—who is elevated when you condescend to take notice of his existence.”

“I—I should not have spoken as I did,” she stammered.

“You should speak exactly as you desire, *señorita*—always. It is your privilege. As for me—it is my privilege to remain at San Diego de Alcalá, not in opposition to your wishes, but because I—I have reason to remain. And you yourself have made it impossible for me to leave now.”

“I?”

“There was some question, I believe, of my punishment at the hands of this Rojerio Rocha if I remained. That in itself is a very good reason why I should not depart, *señorita*. Have you ever heard it said that I am a coward?”

“I am sure you are not,” she replied, searching his face. “It takes a brave man to depart in the face of a charge of cowardice, *señor*. Will you not show your courage?”

“The point is well taken,” he observed. “But I have reason for remaining, though mission and presidio and neophytes and gentiles turn against me—a twofold reason, *señorita*. One part of it concerns that of which, happily, you know nothing; and the other——”

“Well, *señor*?”

“I have seen you, *señorita*; I have heard your voice and looked into your eyes. And I intend to win you for my wife, else have no wife at all!”

“*Señor!* You dare?”

“To speak the truth——?”

“I might have known insults would be my pay for speaking to you!”

“Is it an insult to have a gentleman say that he loves you above all women he ever has seen, that he loved you when first he saw you, that he hopes one

day to call you wife?”

“It is an insult coming from such as you, *señor*!”

“Ah! I beg your pardon! I had forgotten for the time being my name and station.”

“Captain Fly-by-Night would do well to always remember those things, especially in the presence of reputable persons. I forgave you the boast concerning myself, *señor*; but I cannot forgive you this latest insult to my face. Go or remain as you will, your affairs are no concern of mine longer, *señor*. Though you starve on the doorstep of the chapel, I’ll not recognise your presence!”

Señora Vallejo had been calling in a soft voice for the past five minutes. Now the girl turned from the caballero and hurried after her *duenna*. Leaning against the curb of the well, he watched her until she had disappeared through a hole in the wall and across the plaza.

He laughed softly to himself then, and picked up the water jug, swinging it foolishly at his side, chagrined to think he had not remembered that the water in the well would be ruined for the time being, wondering if Señorita Anita really thought the jug a mere subterfuge of his to follow her and seek conversation.

Turning, he looked down into the well. Surface water was seeping through the rocks of the curb, and a few feet below the level of the ground a torrent poured into the hole to splash far below.

“Where is that coming from?” the caballero wondered.

He walked to the other side of the curb and bent over to look better. Ten feet from the top was the mouth of a small cavern in the side of the well, and from this the water was pouring in a stream half a foot deep and a *vara* wide.

“Persons do not turn a drain into a well,” he observed, watching the downpour. “There is something here that needs to be investigated.”

He glanced around. No other person was in the small orchard; none was peering at him over the wall. It was almost dusk. Perhaps the soldier who had followed him from the teepee was watching through a crack in the adobe, but he could not be sure.

He picked up the jug and sauntered toward the wall, stopping where a breach had been made, instead of springing over in the usual place. The soldier had turned back, and was standing at one corner of the plaza talking to a fray, and waiting.

The caballero ran back to the wall again, looked around quickly, and let himself over the curb. Jutting rocks gave holds for his feet and hands. He lowered himself rapidly, until he was at the mouth of the small cavern.

The volume of water pouring out was not so great now. The cavern was not a small storage-place for tallow, as he had half suspected, but a tunnel. Now the spirit of exploration was on him, and he drew himself inside. Foot by foot he made his way through the narrow gorge, splashing in water and mud to his knees, the water dripping upon him from the dirt roof.

Soon he had gone so far that light from the well did not penetrate, and now he journeyed slowly, putting a foot out and feeling around before attempting a step, fearing to be plunged into a pit or another well. He had covered a distance of fifty yards when he came to a turning, and there he stopped for a moment, hesitating whether to go on.

Then he heard voices, faintly at first, the voices of women, and they seemed to come from above. He heard Señora Vallejo's deep tones raised in rebuke, the softer syllables of Señorita Anita Fernandez in justification of her act. He put out his hand to touch the wall, and found it dry and warm. The cracking of burning wood could be heard. The tunnel ended against a wall of the guest house.

"Some wise old padre did this in the earlier days," the caballero observed. "I doubt whether half a dozen men in the mission know of its existence now."

But there was another tunnel that branched away from this, and in a diagonal direction. The caballero followed it, determined to gather what knowledge he could. Less than a hundred feet, and he came up against another wall. There were no sounds here, but there was a thin streak of light entering at the end.

He crept near the streak of light and applied his eyes to the crack. The day was dying, and he could see but dimly, but enough to show that he was

looking into the mortuary chapel of the mission. Here, then, was another way of escape in case of danger, provided by the frailes of Serra's time.

His exploration was at an end now, and he faced the long, wet return journey through the tunnel to the well. He shivered at the thought of it, and decided it should not be made. Again he looked through the crack; there was no one in the chapel, and, moreover, the tunnel entrance was in a dark corner. He put his fingers in the crack and tried to pull. A section of the wall gave a little. He braced himself against the side of the tunnel, exerted his strength, and a square of adobe swung inward.

For a moment he waited, listening, then slipped into the chapel and swung the section of wall back into place, even scattering dust along the crack where his hands had gripped. Walking silently, he made his way to the main part of the church, meeting no one, arousing no suspicion. Presently he opened the door and stepped out into the plaza. He was seen only by neophytes, and his presence there did not arouse much curiosity among them, for even Captain Fly-by-Night, they supposed, attended to his devotions and confessed his many sins.

At the corner of the plaza he came face to face with an agitated soldier, who had looked back into the orchard, missed the caballero, and searched frantically and without result. The caballero grinned in the man's red face, and walked slowly down the slope.

"Now from where, in the name of evil, did that man come?" the soldier gasped. But he got no answer then, though he gathered a solution at a later day.

The caballero was building up his fire and preparing the evening meal when the soldier joined his companion beside the creek. Two neophytes hurried down the slope and made camp for the men from the presidio, building a fire and stretching a shelter of skins, and giving them food and wine. Darkness came swiftly, and to those at the mission the two fires beside the creek looked like the eyes of a giant beast about to spring on the settlement.

The caballero did not attempt a serenade this night. He sat before his fire, wondering what would occur at midnight, when the Indians were to come. The presence of the soldiers complicated matters. He knew that at least one

of them was watching him, and that, if he started to move away, one would follow.

The hours passed, slowly it seemed to the caballero. One by one the lights in the mission buildings disappeared. The heavy fog obscured the light of the moon and stars. A cold wind crept up the valley, and the caballero wrapped his cloak around his shoulders and sat nearer the fire.

## CHAPTER VIII

### A VICTOR RUNS AWAY

An hour after sunrise an Indian rode a mule furiously up the valley from the presidio. The beast was covered with lather and dust, and the rider appeared half exhausted. His screeching awoke the sleeping caballero, who went out of the teepee and looked toward the plaza to note the cause of the uproar.

Frailes and neophytes crowded around the mule's rider and questioned eagerly. Señor Lopez came from the storehouse to hear the news, and the caballero could see that his face was illuminated with a smile as he hurried across to the guest house, where he knocked on the door.

The door opened and Señora Vallejo appeared, Señorita Anita Fernandez beside her. Words were passed. Señora Vallejo turned and clasped the girl in her arms; the *señorita* hid her face against the *duenna's* shoulder; Señor Lopez laughed loudly, and a passing fray raised arms in blessing.

Indian women and children began running about, busy at nothing in particular. Lopez began giving wine to any who asked it. Straw was thrown on the mud near buildings where the sun had not penetrated enough to turn the wet clay to dust. One by one, men walked to the end of the wall and gazed down El Camino Real toward the bay.

"One would think San Diego de Alcalá expected a visit from His Excellency the Governor!" the caballero gasped. "Nothing like this transpired when I came off the highway and graced the mission with my presence."

And then, an hour before noon, a dust cloud approached from the north. It did not stop at the presidio, this dust cloud, but continued up the valley, and in time it was dispelled enough for the caballero to see that the riders were two in number, and that they were followed by a pack mule compelled to cover the ground at a gallop.

Neophytes covered the top of the adobe wall to watch; frailes ran here and there about the plaza calling orders that were given no attention; and Señor Lopez, standing in the doorway of the storehouse beside the giant Pedro, jested loudly as he quaffed wine, but in words the caballero could not hear. The two soldiers who had been the caballero's guards partook of the excitement, and left the shore of the creek to climb the slope and join in the enthusiasm.

The riders came nearer; one was a man well dressed, with his bright-coloured zarape flowing behind him; the other was an Indian who rode a mule. The red dust of the highway covered them, but they sat their saddles like men newly mounted, though it was evident they had travelled the forty miles from San Luis Rey de Francia that morning.

And now the neophytes were sending their cries down the valley:

“Rojerio Rocha! A welcome to Rojerio Rocha! Welcome to the *señorita's* husband-to-be!”

Suddenly the caballero began to give more interest in the proceeding.

“Rojerio Rocha, eh?” he mused. “The husband-to-be of Señorita Anita? Upon my soul, this is to be interesting. I presume I'll have an interview with the gentleman before the end of the day. Well, I am prepared for it. Have at you, Señor Rojerio Rocha!”

He laughed aloud like a man enjoying an excellent joke, and standing beside the teepee watched the arrival with wide and glistening eyes.

The riders stopped at the end of the adobe wall in a cloud of dust, the Indian a short distance in the rear to handle the pack mule. His master swept sombrero from head, bowed, and dismounted. Neophytes held back, but the frailes crowded forward and around him, and Señor Lopez, making his way through the crowd like a ship through tossing waves, stalked toward the new-comer with arms extended and moustaches lifted by a broad smile.

“A welcome, Rojerio Rocha!” he called. “Welcome to San Diego de Alcalá! No man is more welcome than you!”

“I thank you,” the new arrival said. He stood beside his horse, one arm over the animal's neck. Señor Lopez noted that he had broad shoulders and a high brow, that he was handsome, that his moustache was curled in the

approved fashion and his clothing bore the stamp of mode. He appeared such a man as those at San Diego de Alcalá had hoped he would be, for it was fitting that the co-heir of old Señor Fernandez should have appearance and dignity.

“How like you his looks, *señorita*?” Señora Vallejo asked of the girl, as they stood in the doorway of the guest house, and the crowd parted for an instant so they could see.

“Splendidly! If his disposition is as good——”

“Tut! Is he not a Rocha, a distant relative of the Fernandez family? You can see it in the way he stands beside his horse. Blood always will tell, dear child.”

The rider’s piercing eyes swept the company, passed over the heads of those nearest, and rested for a moment on the girl in the doorway. Señor Lopez hurled a neophyte out of his way and took a step forward, while all fell silent and waited for the first words to fall from the lips of the old *señor*’s heir.

“It gives me great pleasure, Rojerio Rocha,” Lopez said, “to welcome you to San Diego de Alcalá. I am Señor Lopez, and was Señor Fernandez’s manager at the rancho for many years before he passed away. It was I who wrote you the letter the *señor* signed telling that he wished you to inherit his property, together with his fair daughter, Anita, and expressing the hope that you two would find it in your hearts to wed. So I welcome you to San Diego de Alcalá on behalf of every man and woman here, and may you be pleased with your inheritance.”

It was a glorious smile that illuminated the face of the man addressed. For a moment he looked them over again, then extended his hand, and Lopez grasped it warmly.

“Your welcome overcomes me,” he said. “I had scarce expected it.”

“You might have known, Rojerio Rocha, that we would be glad to welcome you,” Lopez replied.

“I was not certain, not knowing the goodness of your heart. Now, as to my inheritance——?”



“The rancho of many broad acres lies five miles to the west, *señor*. Neophytes and gentiles are employed there, and we have, indeed, a happy family. Since the old *señor* died his daughter and *duenna* and myself have been residing in the guest house here at the mission awaiting your coming, but I have gone out every few days to observe how things are being cared for on the rancho. You will find storehouses full, *señor*, and the flocks and herds doing well, and besides, you inherit the good will of every man, woman and child in and around San Diego de Alcalá. And now—the *señorita*——”

“To be sure—the *señorita*!”

He continued smiling as Lopez took him by the arm and led him through the throng to the door of the guest house. His eyes met those of Anita as Lopez introduced them, and the girl’s face flushed. It was disconcerting for her thus to meet this man for the first time, knowing he was to be her husband.

She responded to his formal bow, and then would have taken Señora Vallejo by the arm and led the way into the guest house, but found it impossible, for the new-comer stepped forward quickly and took her hand and bent and kissed it.

“In all the length of El Camino Real, *señorita*,” he said, “I am sure there is not as much grace and beauty as I find here and now in this one little spot. The sight of you is worth a journey of hundreds of miles.”

And then, before she guessed what he intended, he had bent forward swiftly and pressed a kiss upon her cheek. The red flamed in her face and throat, and Señora Vallejo gasped in dismay and Señor Lopez looked surprised, but the men and women of the mission cheered.

Up the steps and into the guest house they made their way, while the caballero, down by the creek, turned to enter the teepee. The smile was gone from the caballero’s face now; his eyes were narrowed as if he were thinking deeply. And so he took stock of his rival, who had gained the first kiss, although it was no better than a stolen one.

In the guest house there was a welcoming feast, because the old *señor*’s heir was just off the highway and fatigued, with the new-comer sitting at the

head of the table presiding with as much dignity as old Señor Fernandez at his rancho ever had.

Señorita Anita was at his right hand, Señora Vallejo at his left; four frailes sat at table, and Señor Lopez contented himself with a place at the foot of it, looking upon the others with a solemn face, like a man bowed under the heavy responsibilities of a big business. He was wondering whether the old *señor's* heir would retain him as manager.

Señora Vallejo yearned for news of San Francisco de Asis, where once she had been a toast, and was accommodated with a rambling story of the doings of persons of quality there. Señor Lopez spoke of the old branches of the Fernandez and Rocha families, and thought nothing of it when the subject was changed adroitly, for he knew that the Rocha branch had fallen upon evil days the past two generations, and retained little of their once great fortune, though they retained their stiff pride.

Anita, now smiling, and laughing at times, watched the guest keenly, trying to estimate him, and found herself puzzled. Old wine was opened by one of the frailes, and she saw the man at the head of the table drink long and deeply. Little by little his dignity and poise slipped from him. His laugh became louder and not so merry, for there was sarcasm in the sound of it. His jests too, were not strictly in accordance with good taste.

Señora Vallejo bit her lips and frowned; the face of Lopez remained inscrutable—for who was he to question the conduct of the old *señor's* heir? But little Anita Fernandez, excusing herself prettily, arose and left the table, to go to a window and stand there looking out across the plaza, with dread in her heart, a feeling she neither could understand nor explain.

For some time she stood there with her back to the table, biting her red lips, watching the neophytes going about their work, and then she heard the others get up, and turned to see the old *señor's* heir stagger toward her.

“Most beautiful *señorita*, I am going out with this Señor Lopez to meet the men of the mission,” he said. “’Twill be lonesome, nevertheless, until I am again with you. This evening, *señorita*, we shall take a walk in the orchard, with your *duenna* dodging about our heels, and at such a time a man may talk of things other than business.”

He lurched forward as if to kiss her again, but she avoided him and stepped back to bow.

“*Señor*,” she said, “I dislike to mar your welcome, yet there is a thing that should receive attention at once.”

“And that——?” he questioned.

“Has not *Señor* Lopez told you of Captain Fly-by-Night and his boast? The man is here, has been here for several days, though he is treated as a nothing.”

“Captain Fly-by-Night? Here?”

“He has received a teepee and supplies from gentiles, and is camped down by the creek. His presence is an insult to me, *señor*, but we had decided to do nothing about the matter until your arrival. In the orchard last evening he was even bold enough to speak to me, and his words were words of—love. Shall this be allowed to pass?”

“He is camped down by the creek, eh?”

“He is, *señor*,” Lopez put in.

“Captain Fly-by-Night, you said?”

“It is the name he is called.”

“What would you have me do?”

Anita’s face flamed again.

“If it is necessary to tell you that, *señor*, then I am disappointed in you,” she said. “Rojerio Rocha should know how to protect the woman he is expected to make his wife.”

“I shall interview the *señor* immediately. The boast he made is known to me.”

“Allow me to accompany you, *señor*,” Lopez said.

“Thank you, but this is my private business. I’ll take my Indian servant, and go at once!”

He spoke as a caballero should speak, and the girl’s eyes grew brighter; and while the look in his face was not one of fear, yet it was scarcely one of

determination, and that puzzled her a bit.

He seemed to throw off the effects of the heavy wine with a shrug of his shoulders as he walked to the door. Señor Lopez followed him out and called for the neophyte, and went with them to the end of the adobe wall. There they spoke for a moment, and then the guest hurried down the slope toward the teepee, the Indian at his heels. His hand was on the hilt of his sword, his head held high, his shoulders thrown back. Anita and Señora Vallejo watched from the window.

The soldiers had returned to the post beside the creek, and the caballero watching them from the door of his teepee, saw them get up and glance toward the plaza. His own attention thus being attracted in that direction, he observed the advance of the latest new-comer to the mission.

He remained sitting on the skin before the doorway polishing the silver on his saddle, and did not look up as the other approached. Steps stopped beside him, there was a chuckle, then a voice:

“By all the good saints! It is Claudio!”

“Even so, *señor*,” replied the caballero, raising his head now, and getting slowly upon his feet, “and you owe me two pieces of gold. That was the wager, I believe, that you would be at San Diego de Alcalá before me.”

“So it was, caballero, and here are the coins. Ill luck attended me, while good fortune attended you.”

“Indeed?”

“This neophyte who trots at my heels—the same who served us at the Santa Barbara presidio—had a brother who possessed a horse, and I purchased it, also a mule, and got the neophyte for guide. I was not more than four hours behind you, *señor*, in starting.”

“But—in arriving——?”

“Things came to pass, *señor*. At San Fernando I made the acquaintance of a fray who wined and dined me so well that I slept overlong, afterward telling me, while I cursed, that he had done it because he feared I would kill my horse with riding. Arriving at the pueblo of Reina de Los Angeles, I made my way quickly to the inn——”

“Expecting to find me with my throat slit?” asked the caballero.

“Um! By rare good fortune, for you, it appears you did not visit the inn. I was somewhat surprised to hear it. But I felt that my chagrin was appeased when I met a certain man named Gonzales, a jovial fellow who insisted in playing host to me, purchasing wine, and playing cards.”

“And losing?”

“I believe I was the more fortunate in the game. Afterward I felt sure this same Gonzales had been losing his wealth purposely, to delay me on my journey.”

“Who can tell?” said the caballero.

“I was well received at San Juan Capistrano—then came the storm. By the good saints, how it did rain!”

“I can swear as to that, *señor*, having been out in all of it.”

“I managed to reach San Luis Rey de Francia in time, and there the storm held me up again. These things, *señor*, delayed me so that I could not win my wager, but even these things would not have caused me to lose had you spent the night in the inn at Reina de Los Angeles.”

“I can well imagine that.”

“And now they tell me here at the mission that you are Captain Fly-by-Night, somewhat of a notorious personage.”

“So they call me, *señor*.”

“You perhaps heard them hail me as Rojerio Rocha? I have inherited a great rancho, it seems, and am to wed a fair *señorita*.”

“Would it not be better, *señor*, to leave the lady out of our conversation?” the caballero asked.

“Perhaps; there are weightier things to be discussed. It seems, dear Claudio, that your presence here displeases those of the mission. They tell me you made certain ill-timed boasts concerning a young lady and her fortune, and the lady mentions you went as far as to speak to her of love.”

“Enough, *señor*! We are not discussing a lady here.”

“Let us talk, then, of yourself, Captain Fly-by-Night. Do you take me for an imbecile? Do you not fear, playing both hands as you do? Do you not dread a day of reckoning? Can it be possible you do not observe that you are caught in a trap? But enough of that! It is your own affair.”

“Exactly, *señor*.”

“Even now, I presume, they are watching from the mission buildings to see how I face you. It is expected that I’ll run you away, *señor*, or run you through.”

“Either will be difficult, I fear.”

“Yet I have my position to maintain, *señor*, and must attempt one or the other. It would suit me better to have you out of the way. If I can accomplish that myself, I may gain in the estimation of those at the mission. If I fail, there are friends of mine——”

“Why waste language, *señor*?” the caballero wanted to know.

“Will you pack up and leave, then? Will you go back up El Camino Real and attend to your own affairs?”

“I must decline, *señor*. Your own removal from this vale of tears would please me, understand.”

As he spoke, the caballero threw aside his zarape; his opponent did likewise. Face to face they stood, blades out, sleeves turned back, both grim, determined. The neophyte crouched half a score of feet away, watching every move the men before him made. Men crowded the plaza wall, others came running from the orchard, frailes knelt in prayer, but none approached down the slope, for here was a matter to be settled between two gentlemen without interruption from another source.

In the window of the guest house, Señorita Anita Fernandez turned quickly and hid her face on the ample bosom of Señorita Vallejo, and put fingers in her ears.

The two men engaged, neither a novice at the art of battling with a blade, each firm of wrist and quick of foot and eye. Now the caballero advanced, now he retreated. The steel hissed and sang and rang aloud. The minutes passed. Perspiration streamed from the faces of the combatants; their breaths were expelled in quick explosions.

“’Tis a pretty battle!” cried Señor Lopez from the top of the wall. “Have at him, Rojerio Rocha, for your own honour and your lady’s fair name! Flinch, dog of a Fly-by-Night! Ah——”

The old *señor*’s heir began a furious attack, the caballero fell back step by step. And then the recovery came! What he had done before was but clumsy fencing to what the caballero did now. He had felt out his man, he knew every trick at his command, he was ready now to put an end to it. His teeth were sunk into his lips, and his eyes flashed as he drove his opponent backward.

The neophyte gave a cry of fear and crept along the ground, fearing for his master’s life. Something flashed in his hand. The caballero, from the corner of his eye, observed it in time. Once his blade went aside, to tear through the neophyte’s shoulder, and returned to the engagement in time to ward off a thrust from the other man.

“Treachery, eh?” the caballero cried, above the ring of the blades. “Your dog of a neophyte fights for you, eh? That is the sort of man you are?”

“He did it by no order of mine,” the other gasped.

“I pollute my sword if I touch you with it! But I find it necessary, *señor*! Run me away or run me through, eh? You? Fight, hound! Stand your ground! Your wrist weakens, eh? Bah! ’Tis not worth a gentleman’s time to meet you foot to foot!”

Those on the wall were standing now, and some of them had sprung to the ground. Lopez was growling beneath his breath. The caballero drove his antagonist up the slope for a space of ten yards, laughing at him, taunting him, rebuking him, for the neophyte’s treachery.

“Do you cry for me to cease?” he demanded.

“Never, by the saints——”

“Then——!” His blade bit deep into the other’s shoulder. The old *señor*’s heir staggered, clapped a hand to his sword-arm, whirled and crashed to the ground. And the caballero, stepping back, ran his blade thrice into the turf to clean it, wiped it on his trousers, and returned it to its scabbard. He spurned the treacherous neophyte with his foot and hurried back toward his teepee.

He had anticipated what would follow, and he had scant time. From the plaza wall had come a chorus of shrieks and howls. He heard the voice of Señor Lopez raised in raging anger. Neophytes started down the slope, some of them running, armed with knives, clubs and stones, to avenge the downfall of Rojerio Rocha. The frailes called after them in vain. Half a hundred strong, urged on by Lopez and led by the giant Pedro, they rushed toward the teepee beside the creek.

The caballero had no idea of dying there, beaten by stones in the hands of Indians. He yet had work to do, he told himself, and when death did come, he wanted it more honourable than this—at least a bit more fashionable.

He picked up saddle and bridle and ran to his horse, and, putting on the bridle first, whirled to draw a pistol from his belt. The charge hesitated, stopped.

“Back hounds!” he cried. “At least one of you will fall if you come on! Who’ll be that unfortunate, eh? Back!”

He threw the saddle over the horse’s back and worked furiously to cinch it. The voice of Lopez roared out again, and once more the neophytes moved forward. Those behind crowded; their speed increased. Stones flew through the air.

The crash of the pistol came, and an Indian fell to screech in fear and pain. The caballero leaped to his saddle. His spurs raked his horse’s flanks. Straight at them he dashed, blade out and ready, and as they scattered to right and left he rode through them, slashing, and dashed away up the valley toward the distant cañon, turning in the saddle just before he disappeared behind a jumble of rocks to remove his sombrero and wave it in derision.

“Now I am surely cut off from all reputable persons,” he said, aloud; and laughed until the cañon walls sent the echoes of his merriment ringing down the gorge.



## CHAPTER IX

### THE ALARM

Scattering curses along El Camino Real at every jump of his horse, and caring not whether he killed the animal he rode, Sergeant Carlos Cassara rode like a madman.

At San Fernando he gave a bit of information to a fray; at Reina de Los Angeles he had speech with a corporal in command of the squad at the guardhouse; he sent a message to San Gabriel; and he sent a fresh steed flying over the miles that stretched to San Juan Capistrano as if the life of a nation depended upon his ride.

Miles behind him rode Ensign Sanchez and a squad not expected to maintain the fierce pace endured by the sergeant, and in their wake they left suspicion and fear.

At San Juan Capistrano, Cassara exchanged horses while he spoke in quick, low syllables to the padre. And then he was away toward the south again, eating up the miles, taking chances in the darkness on the rough highway through the hills, glad when the dawn came so that he could make better speed.

San Luis Rey de Francia loomed ahead of him in the early morning hours; the bells at the mission were ringing; neophytes and frailes were pouring into the church. Indian children flew from before his horse as the sergeant dashed up to the door of the padres' quarters, and called aloud for some man to come.

Again he changed horses, once more he whispered a few crisp sentences that made the faces of the frailes grow white, and then he was away to the south again in a cloud of dust—and behind at San Luis Rey de Francia he left an old Indian before his hut on the roadside, who wrinkled his eyes in

concentrated thought until he scarcely could see, and then called a young man and gave a message to be carried back into the hills.

Exhausted, hungry, thirsty, covered with dust and perspiration, his clothing sticking to him, the sergeant thought only of reaching his destination. At the top of every hill he looked ahead, always hoping to see San Diego de Alcalá in the distance. And when he did see it he gave his horse the spurs and urged the beast to its greatest speed, and bent low over the animal's neck like a racing Indian.

He flew up the highway like the wind, knowing that his approach would be noticed by the sentry at the gate of the presidio, and hoping that the *comandante* would be at his post and not visiting at a rancho or talking with a padre at the mission six miles away.

At the bottom of the knoll his horse fell, and Cassara went over the animal's head to the ground, but was upon his feet almost as soon as he struck, and running toward the gate. The sentry cried a challenge, but Cassara did not answer. Could not the fool see his uniform, he wondered? And then he would have fallen himself had not the man at the gate thrown out an arm and caught him.

"Your lieutenant!" he gasped.

A corporal came running at the sentry's cry; he aided the soldier to half-carry, half-drag Cassara toward the barracks-room, in the door of which the *comandante* was standing, attracted by the sudden uproar. Sergeant Cassara had no time now for the niceties of discipline; his salute was merely the suggestion of one, and he gripped the lieutenant by the arm to keep from falling as the corporal let go of him.

"Private information—from the north!" he managed to gasp.

Cassara was known the length of El Camino Real as a soldier of strength and hardihood, and to see him in this state told the *comandante* that unusual things were happening. He grasped his inferior around the waist and helped him to get to a private room, where the sergeant sank upon a stool and threw his arms on the table before him to brace himself.

The lieutenant offered a cup of wine and Cassara tossed it off, trying to gather breath enough to speak. With a wave of his hand the lieutenant ordered the other soldiers from the room, then closed the door.

“Now, what is it that brings the famous Sergeant Cassara to our post like a dying man?” he demanded.

“An uprising—greater than any we have yet known! It has just been discovered, barely in time.”

“Gentiles, I suppose?”

“And neophytes!”

“What? Neophytes, too—against the missions? Or is it against the presidio only?”

“It is against every white man, woman and child in every mission, presidio and rancho,” the sergeant said. “Perhaps even now it is too late to prevent the success of the thing. It has been planned with diabolical cunning. Every post will be attacked simultaneously, every white man slain except a few chosen frailes and a few renegades.”

“Renegades?”

“The ones who have plotted the thing. This is no murderous raid planned by a few disgruntled gentiles. It is the greatest thing we yet have had to endure, I tell you! Here—I have written orders for you! The Governor is coming down El Camino Real with a force. We in the north are prepared and ready, but here in the south difficulties are expected. Here is the hotbed of mutiny at present—and here one of their leaders!”

“Their leader—here?”

“Your orders! You see the first? Get him, dead or alive, sparing no effort, and promotion is yours! Get him if you would not have this post wiped off the face of the earth! Get him—Captain Fly-by-Night!”

“Fly-by-Night!” the *comandante* exclaimed.

“The smoothest renegade unhung! He is the brains of the thing! For months he has been at work planning it, and half that time he was an associate of the Governor, playing at cards and dice with him, drinking and eating with him. He even came south recently with a Governor’s pass in his belt. At Santa Barbara we gave him refreshments, the cur! And when he won a mule from another traveller and continued his journey south—in haste he was,

mark you!—we were even pleased to think he had won. May the good saints let me face him with blade in hand again!”

“Again?”

“I faced the cur once—at Santa Barbara—and he disarmed me almost with a single pass. But I did not know him then! Let me face him now, when I know what he is! ’Tis a clever cur! He fooled a fray at San Fernando—the fray aided him and detained a traveller of merit. A good Governor’s man at Reina de Los Angeles sat up and watched while the scoundrel slept like a baby. Only at San Juan Capistrano and south did he meet rebuffs, and then not because any knew of his perfidy, but because he had seen fit to insult the name of some rancho girl——”

“Ah!” the *comandante* cried. “There will be promotion for me in this!”

“Catch him first! You little know your man!”

“Do I not? Did I not refuse him hospitality recently because of that same insult? Did I not almost cross blades with him within the past forty hours, and remembered barely in time that an officer does not fight with an adventurer?”

“It perhaps were well for the officer you remembered that,” the sergeant muttered.

“Bah! Captain Fly-by-Night, eh? A boaster and braggart!”

“Think not that! He is a fighter, that man, as well as a scoundrel! And you have him here?”

“He camps like a fool beside the creek at the mission, believing himself secure, no doubt, perhaps meeting his Indian gentiles and doing his plotting almost inside the mission walls.”

“Get him! Do not let him escape and reach his Indians, or nothing can stop the attack. The dogs know their conspiracy is discovered, and may move sooner than was expected. Those in the north wait for the attack to begin here at San Diego de Alcalá. Runners will carry the news, and the raid will flash up the coast like fire before a gale!”

“It will be an easy matter to get him,” the lieutenant observed, getting up from his stool.

The beating of horse's hoofs came to them through the open window; they heard the sentry's challenge and quick steps in the barracks-room, a knock at the door.

"Enter!" the *comandante* called, and a corporal hurried into the room.

"There has been trouble at the mission," he reported, standing at salute. "Rojerio Rocha, who is to wed the Señorita Anita, rebuked this Captain Fly-by-Night for his conduct, and they fought."

"The result?"

"Señor Rocha was wounded. The neophytes attacked Captain Fly-by-Night then, but he mounted his horse and escaped. He has gone up the cañon. Rocha demands that he be pursued; some others think this should not be, since it was a fair duel."

"Escaped!" Sergeant Cassara cried, getting half up from the stool. "He will be with his Indians within the hour—perhaps he has been warned. He'll strike the blow earlier!"

But the lieutenant was already rushing toward the door.

"Sound the trumpet!" he cried. "Into the hills after that man! Get him, dead or alive—remember that! Let only two men remain here at the presidio. I have kept my hands off the dog because I had no orders to the contrary—but I have orders now! Here—one of you give aid to this exhausted sergeant who brought the news!"

But Sergeant Cassara had no need of aid at that moment. He had sprawled over the end of the table as if a man had run him through from behind, his head pillowed upon his arms, and he was snoring.

## CHAPTER X

### OUTLAWED

The caballero stopped his horse on the crest of a hill a mile from the mission and looked back at the valley. For more than an hour he had been riding aimlessly, aware that it would be worse than useless to return at the present time and face the angered neophytes—angered not so much because of their love for the man he had wounded, since they never had seen him until this day, as because of the pain, they thought, his defeat would cause Señorita Anita Fernandez, whom they had learned to adore.

And now, in the distance, he observed a squad of horsemen leave the plaza and start out along the road toward him, and he saw the sun flashing from steel and knew them for soldiers.

“I did not think it of him—that he would have me pursued because of a duel,” the caballero said, aloud. “The thrust could not have been serious. Heaven knows I have used it many a time, and never death came from it yet.”

He watched until the horsemen were within half a mile and then remembered that he sat his steed against the sky and could be easily seen. He was seen—for he heard the soldiers’ cries and saw that they were spurring up their horses.

The caballero did not know this country as the troopers did, but he made his way down the side of the hill to the floor of the cañon, where there was a narrow trail, and along this he galloped swiftly, knowing well his horse was as fresh and swift as any that followed.

At the end of a mile he stopped to listen, and heard the beating of horses’ hoofs and the cries of their riders. He went on along the cañon, hoping he would not find himself cornered against the side of some steep hill where there would be no way of escape.

There was a curve in the trail presently, and rocks prevented him seeing what was beyond, but he did not slacken his horse's speed. He took the curve on a run and emerged into an open space where there was a tiny stream, a few dwarfed trees, green grass and wild flowers—an oasis in a desert. Scores of teepees stood along the brook, heaps of ashes told where fires had been. The caballero remembered his Indian visitors had spoken of a camp in the cañon, and supposed this to be the place.

But no horde of gentiles rushed from the teepees to accost him and demand his business, and it was apparent that the camp had been deserted. On the opposite side of the open space a trail led off toward the south, and the caballero, without even pulling rein, rode toward it, determined to follow it until he threw off pursuit.

His horse splashed across the brook and sprang into the mouth of the trail, to half whirl with a snort of fright and start up the side of the rocky hill. Swinging far out to one side and standing in his stirrups, the caballero pulled on the reins and jerked the beast back into the path—and an Indian grasped the bridle.

“*Señor!*” he shouted.

“Out of my way! The soldiers pursue!”

“Swing me up behind you, *señor*. There is a way of escape!”

“Haste, then!”

The Indian vaulted to the horse's back; the animal dashed away up the trail.

“The soldiers will travel slowly, *señor*, until they are past the old camp,” the Indian shrieked in his ear. “They will fear an ambush because you rode straight up the cañon. Watch to your right for an arroyo—turn into it!”

There was scant time for speculation with the troopers at his heels, and the caballero had no reason for believing the Indian was attempting treachery, especially since his pursuers were soldiers. He came to the arroyo and whirled the horse into it, sand and gravel flying in a cloud behind as he rode. Far in the rear there was shouting, and a single shot as some soldier fired his pistol, thinking he saw the quarry.

“On, *señor*,” the Indian urged.

The horse was having heavy going in the sand with the double burden on its back, but the caballero urged the animal to do its utmost. The arroyo ran into another cañon fringed with stunted trees, and continued into a sort of basin, where there seemed but the one way in or out. It looked like a death trap.

The Indian sprang to the ground and ran ahead. He parted a clump of brush, and the caballero saw the mouth of a cave big enough for a horseman to enter. He did not hesitate when his guide motioned that he was to ride inside, but he did not ride in—he dismounted and led the horse, and one hand gripped the butt of his pistol.

The Indian closed the brush about the entrance and turned to lead the way, walking a few paces ahead of the caballero, and soon they were in darkness.

“Follow closely, *señor*,” he said. “It would not do to have a light here, but the floor is level and safe.”

Since he was this far, there was nothing else to be done, so the caballero followed, half expecting to come to combat at any moment, straining his ears for whispers ahead or sounds of the pursuit behind. They reached a large-sized chamber, and the Indian took him by the hand to guide him across it, and on the other side they entered a narrow tunnel, made a turning, and so came to where they could see a streak of light in the distance.

“It is safe to stop here, *señor*,” the Indian said. “The soldiers do not know of this cave beneath the hill, and, if they found the entrance, they would fear to enter without torches. At a late hour you can leave safely. Just ahead is a way out, and it is on the other side of the hill.”

“So your camp in the cañon is abandoned?” the caballero asked, sitting on a boulder.

“We slipped away early, *señor*, a few of us at a time, not taking the trouble to remove the teepees. The word has been sent to all, and men are leaving every rancheria and village. We obeyed as soon as we received your message.”

“As soon as you——? Yes, of course!”



“By the middle of to-night nearly all will be on the Fernandez rancho, *señor*. Every hut will be crowded, and there will be a big camp in the cañon there. It was wise to make the gathering-place there, *señor*, where hundreds of men may hide until all is ready. And from there it is an easy five miles across the hills to the mission.”

“I understand that.”

“We considered it clever of you, also, to send the word from San Luis Rey de Francia and in a roundabout manner. It was well that we were warned that all had been discovered, and that the big sergeant from Santa Barbara had come along El Camino Real to put missions and the presidio on guard.”

The caballero sat up straight and looked keenly at the face he scarcely could see in the gloom.

“I did not know that,” he said.

“You did not know it? The old man beside the roadway at San Luis Rey de Francia sent out the warning. This sergeant told the frailes there that the conspiracy was known, that the Governor was coming south with soldiers, and that in the north leaders had been seized and thrown in prison to be shot. But Captain Fly-by-Night, the greatest leader of all, was at San Diego de Alcalá and was to be taken immediately, before he could join the Indians—that was the word, *señor*. Thank Heaven you were not taken!”

“So they have orders to take Captain Fly-by-Night, eh?” cried the caballero. “Now I know why those troopers were eager to catch me.”

“What did you think, *señor*?”

“I had an argument at San Diego de Alcalá with the man they call Rojerio Rocha, who arrived this morning—a sword argument, gentile—and I ran him through. I supposed the soldiers sought me because of that. Catch Captain Fly-by-Night, eh?” The caballero rose and paced the floor of the cave, laughing to himself so loudly that the gentile before him cautioned silence. “So all is known, eh? I am to be taken dead or alive, I suppose? Now I am, indeed, cut off from all reputable persons.”

“Then now is the time to strike the blow, *señor*. We can be victorious if we strike it before the Governor comes. We can wipe the mission and presidio from the earth, *señor*! We can devastate every rancho! And when we start,

the word will run up the coast, and at other posts and missions our friends will strike. We cannot fail, *señor*! Give the word—give the word to-night!”

“If I counsel that you wait?”

“Why delay? Other leaders have been seized. If we do not strike successfully, suspected gentiles and neophytes will be slain by hundreds by the Governor’s men. It is all in your hands now, *señor*. You will be like a king! Give the word to-night!”

“If I think it best to delay——?”

“I am afraid, *señor*, that the men will not do as you order, in that case. They are frightened now. They know they are lost if they do not strike immediately. They may even turn against you——”

“Hah!”

“It is to be expected, *señor*—many of them will pay forfeit with their lives if the conspiracy is not successful. Come with me to the rancho as soon as night falls, *señor*—and give the word. Every hour we delay they will be making preparations at the mission and presidio.”

“At least,” replied the caballero, “I’ll go with you to the rancho at fall of night.”

The Indian showed his delight in his face. Without a word he slipped away down the cave toward the streak of light in the distance, and the caballero stood beside his horse, listening, waiting, trying to pierce the gloom with his eyes.

“Dead or alive, eh?” he muttered. “I would I had slain this pretty gentleman at San Diego de Alcalá when I had the opportunity!”

It was an hour before the gentile returned—an hour during which the caballero often led his horse through the cave to the exit and looked out over the valley, but dared not leave until he received the Indian’s report. And then the native slipped in past the rocks and stood before him.

“I have been over the hill, *señor*,” he said. “The soldiers burned the camp in the cañon and then went back. They have been scattered over the hills, and two rode away down the valley, probably to spread the alarm and warn

rancho owners to watch for you. It will soon be dark, and we can leave this cave.”

“The soldiers will remain in the hills for the night?” the caballero asked.

“They would fear to do that, *señor*, if they think we contemplate an attack. They will return to the mission, perhaps, and spend the night there, and go into the hills at dawn again. Two men remain at the presidio with the sergeant who brought the warning, I heard them say. If we could take the presidio to-night, *señor*, and get the arms there——”

“It may be a trap,” the caballero said. “I know the tricks of the soldiers, remember. It would be better to be guided by me in these matters.”

The gentile replied nothing, but the expression of his face told that he was not pleased. For another hour they remained in the cave, scarcely speaking, and then the Indian crept to the entrance, remained there for a time, and returned to say that it was time to go.

Emerging from the cavern, they made their way slowly, and as silently as possible, down the slope to the floor of the cañon, and along this they hurried, the Indian leading, the caballero walking beside his horse.

Out upon a plain trail that ran to the south the caballero mounted, with the gentile behind him. At a trot they went along the trail, stopping now and then to listen for sounds of other horsemen, the caballero waiting at every likely ambush until the Indian had made an investigation.

For a time they followed another arroyo, finally to come into a broad valley where there were fields of grain and horses and cattle. At the crest of the slope lights glittered in the buildings of the rancho.

But the Indian did not indicate that they were to go toward the lights. He whispered directions in the caballero’s ear, and they circled the buildings, and so came to the bank of a creek flowing from a group of springs. Down this they made their way to a small basin. A voice hailed them; the gentile answered; they went on. And then they turned the base of a hill and came within sight of two score campfires and groups of teepees, where half-naked gentiles danced around the flames, and others squatted on the ground watching.

In an instant they were surrounded and questions hurled at them, menacing at first, better-natured when the caballero's guide made himself heard and gave the identity of the man with whom he rode. A young chief ordered his followers to one side, and himself took the caballero's bridle, and led the horse past the fires to a teepee at the end of the row. There the caballero dismounted and sat upon a skin spread on the ground. No word was spoken while a man brought out food and wine and the caballero ate.

One by one other chiefs made their appearance to sit before the fire in a circle. In the distance groups of warriors gathered to look at their leaders and talk in low tones.

"We have had a messenger, *señor*," a chief spoke, finally. "He came from the mission at nightfall. All is known to the soldiers, this man says. They have orders to capture you, dead or alive. The Governor is coming south with a large force. Our friends in the north wait for us to act. And we await the word from you."

"You will be guided by me in this matter?" the caballero asked.

"If you counsel immediate attack, *señor*. What is to be gained now by delay? The soldiers from the north may arrive within three days. If we strike now, we succeed before they come."

Grunts of approval came from the others, and the caballero, looking around the circle, read in the faces there that the words of the spokesman expressed the sentiments of all.

"We have considered the matter to-day," the chief went on. "Our leaders in the north have been seized. Of all white men who aided us in forming this plan, you alone are at liberty. We thank you, *señor*, for what you have done. We want to follow you, yet. But we cannot unless you give the word now. Our race is strong in itself, *señor*; often before we have waited on the words of white men and been betrayed."

"What is it you want me to do?" the caballero asked.

"Give the word, *señor*! Our friends at San Luis Rey de Francia will be ready to strike the blow two nights from now, and it is proper we strike together. What say you, *señor*?"

"I counsel longer delay," the caballero replied.

“Can you give us good reason?” the chief demanded. “Your words are peculiar to our ears, *señor*. We had expected you would be eager to make the move. Many things have mystified us, and we are suspicious because of what has happened before. As I said, we have considered the matter, and we have reached a decision.”

“What is it, then?”

“Either give us the word now to attack in two nights’ time, or we attack without your word, *señor*. To be certain there will be no treachery we will hold you prisoner here, but well treated, until the attack is begun. We do this because of the aid you have given our cause. And after it is over you shall be treated with respect, and no man will harm you. Lead us in two nights’ time, *señor*, or we strike without your leadership and keep you prisoner until the work is done.”

The caballero swept the circle with his eyes; every man there seemed to approve.

“There are many plans to be made yet,” he said. “I must counsel delay for a time.”

“We have made all plans while awaiting you, *señor*. It is but for you to lead. The plans may be discussed in half a day’s time, and changed if we decide they should be. If there is a rancho you wish spared, or a man or woman saved——”

“Do I not know what is best in this matter?” the caballero demanded. “Do as I instruct, or I will have nothing further in common with you!”

“That is your answer, *señor*?”

“It is. I counsel more delay!”

“Then we have decided. You will remain in this camp until the blow is struck. I regret, *señor*, that your ideas are not ours, but we have gone too far to risk failure. Our friendship for you remains the same; it is merely a disagreement between leaders in a council of war. You will remain in the camp as we ask, *señor*?”

“Suppose I prefer to ride?” said the caballero.

“We cannot take that risk, *señor*. If you leave, we must consider you an enemy.”

Another series of grunts came from the circle; again the caballero read determination in the faces that confronted him. He got up, and the others did likewise.

“I suppose I may have a teepee, food, picket my horse?” he asked.

“You shall have every courtesy, *señor*. This teepee is yours, food will be furnished, you may picket your horse behind you.”

“So be it!”

The caballero caught the reins from the Indian who had been holding them and led the animal to the rear of the teepee. The chiefs scattered to their own huts; the men resumed their dancing around the fires. The caballero threw the reins over his horse’s head and started to fumble at the cinch of the saddle.

The spokesman turned his head aside for an instant to look at the dancers, and in that instant, the caballero vaulted to the horse’s back, shrieked a cry in the animal’s ear, gathered up reins and applied spurs, and dashed past the chief and down the arroyo.

Shrieks of surprise and fear rolled from a hundred throats. The group about the first fire scattered; the horse kicked the embers in the faces of the gentiles. Down the line of fires the caballero rode like a madman, hurling Indians right and left, while behind the chiefs, realising what he was doing, yelled orders to take him, screamed for horsemen to go in pursuit, called for weapons.

Pistols exploded, bullets whistled past him as he rode. Unscathed he reached the darkness and dashed down the valley, while the hoofs of hard-ridden ponies pounded in pursuit. He fired his pistol in the face of an Indian sentinel who would have sprung at the horse’s head—and then he rode madly, blindly, trusting to the sure-footedness of the steed he bestrode.

The animal took the backward track, half maddened with fear and gunning like the wind. The caballero bent low over the beast’s neck and let reins fall free. He did not fear being overtaken, but he did not know what was ahead. Soldiers sought him—dead or alive. Indians would slay him without

hesitation now, fearful he would use treachery against them. El Camino Real was watched. Rancho owners were on the alert for him. He was an outlaw in truth, and in a strange country.

Mile after mile he rode, until his horse began to stagger in its stride, and then, emerging from the mouth of a cañon he saw lights in the distance and stopped to reconnoitre. The wash of the sea came to his ears. The horse had circled the valley—and the lights ahead were in the presidio.

“Now I *am* cut off,” quoth the caballero, “from the society of all persons, both reputable and disreputable! Riding alone, however, I shall not be hindered by the opinions of followers. And—by all the saints!—I have much work to do!”

## CHAPTER XI

### AT THE PRESIDIO

Not a light showed in the Indian huts of tide and straw that clustered near the presidio. From behind the walls came no whisperings of conspiracy, no cries of children in their dreams, no mumblings of women. Since nightfall they had been slipping away down the coast and back into the hills—the men to hurry to their camps, women and children to seek refuge in the wilderness until the war should be over—exactly as they had done in every uprising since the coming of Serra and his coadjutors.

Even the mangy curs that generally infested the road were gone, and so there was none to bark and snap at the heels of the caballero as he made his way slowly toward the presidio, walking silently, holding the scabbard of his sword so it would not strike against boot or spur, stopping every few yards to peer into the night, to listen for some sound above the wash of the sea that would apprise him of the nearness of danger.

Standing beside the bole of a palm he looked up at the structure atop the knoll. The gate was closed, but light came over the wall, and he could hear the sound of voices raised in argument. Then there came to his ears the shrieking of an Indian, a raucous Spanish voice raised in anger and command, the sound of a lash striking into bare skin.

He left the tree and crept through the shadows, avoiding the front, going to the left. Standing against the wall he listened again.

“Tell us, dog!” Sergeant Cassara was shouting. “Tell us, or by the saints we’ll have your hide in strips! Be stubborn before your betters, will you?”

The lash fell again; again the Indian shrieked; coarse laughter smote the air.

“’Tis well we caught one of you!” the sergeant was saying now. “Sneak away like the coyotes you are, will you? Where is that camp—tell us!”

“*Señor—señor—I cannot tell!*” the Indian screeched.



“Will not, you mean! Cannot, you hound, when every gentile and neophyte within a score of miles knows of it? Where have the others gone, then? Answer me that!”

“One by one they slipped away, *señor*.”

“And you do not know where, eh?”

“I—I cannot tell, *señor*.”

“Will not, you mean?”

“*Si señor! I will not!*”

The Indian’s voice changed; the caballero listening by the wall knew what the change meant—stoical resignation to his fate was upon the red man now; he expected to be beaten, perhaps slain, and he was ready.

“Now, by all the saints, this thing passes a jest!” the sergeant cried. “With the dogs a hundred to one against us, it is proper we should have all information, else soldiers may ride in one direction while gentiles advance from another and sweep all before them. And here is a man admitting he knows where the conspirators’ camp lies, and refusing to tell his betters. For the last time, hound, will you speak?”

“I cannot tell you, *señor!*”

“You realise what is to happen to you if you do not?”

“It is easy to guess *señor*.”

The caballero hurried on around the wall until he came to a small rear gate, used generally to take in supplies. It, too, was barred on the inside; but it was studded on the outside with heavy bolts, and the caballero, using these for footholds and handholds, made his way laboriously to the top of the wall.

He raised his head carefully, and peered over. All was darkness in that corner of the enclosure. He pulled himself up and dropped over, and for an instant crouched in the shadows against the wall, listening. But no challenge rang out, and he decided the two soldiers left behind with Cassara were inside the barracks-room.

Silently he walked across to the wall of the building, and silently he followed it until he could peer through a window. He looked into an officers' room, but through the open door he could see the interior of the barracks-room proper.

An Indian stood in the centre of it, his hands behind his back, his body tall and straight, his face expressionless. Before him was Sergeant Cassara with lash in his hand. The two soldiers sat to one side on stools before a small table with wine cups before them.

Sergeant Cassara swung the whip through the air, and the lash curled around the Indian's body. There was no shriek this time—the gentile's eyes closed for a moment, flickered, then opened wide, and his body swayed forward a bit as the sergeant jerked the whip back.

“Speak!” he commanded. “Tell us the whereabouts of the camp, dog!”

Again the lash was raised. The caballero did not wait to see the result. He walked on around the building, and came to the open door. There he took his pistol from his belt, gripped it for action, stepped into the path of light, took a quick step—and had entered the barracks-room and was standing before them.

“Allow me to tell you the location of the camp, Sergeant Cassara!” he said.

The whip dropped to the floor and the sergeant's hand dropped to the hilt of his sword. The two soldiers had sprung to their feet, but muskets and pistols were on the other side of the room, and the muzzle of the caballero's weapon menaced them.

“Stand as you are!” the caballero ordered. “At least I will drive the soul of the first man who moves to eternity. As you are!”

“Captain Fly-by-Night, by all the saints!” Cassara cried. “Hah! He walks into a trap!”

“Beater of gentiles, he spares you the instant death you deserved!” answered the caballero. “Move if you like! This pistol of mine gets one, and, as for the others——”

“The others, perhaps, when we do move, will live to see you shot!” Cassara growled.

“Indeed? Careful there, soldier! Your hand may be itching to grasp a pistol, but there is a sure cure here for the itch!”

The Indian slipped like a shadow toward a window.

“Stop!” the caballero commanded. “I have need of you, gentile. You are a brave man to refuse these soldiers information. See if you are brave enough, now, to turn them into helpless slaves. There are thongs in the corner, I perceive. Get them, and fasten the hands of that nearest soldier behind his back!”

“Now by all——” Cassara began.

“Swear not, sergeant! It amuses me to have this done. It was information you desired, I believe, and I am going to give it you, also ask some in return.... Fasten those bonds well, gentile!... I understand, sergeant, it was you came dashing along El Camino Real with word that I was to be taken, dead or alive?”

“I had that pleasure, caballero!”

“Um! And by what right——?”

“By right of order from his excellency, caballero. Your description came down the highway along with news of the uprising you had planned. Captain Fly-by-Night, eh? Swindler, gambler, thief! If the saints spare me and place me before you with naked blade in my hand——!”

“You had that privilege once, I believe!”

“Hah!”

“And may have it again one day, sergeant.... Gentile, take the second soldier now, and when you have bound them, make them sit on their stools, and tie their legs. We are to have some conversation, and I cannot watch three men well and talk at the same time.”

The Indian went about his work gladly, remembering the many beatings he had received, and groans from his victims told that he was careful to make the bonds tight enough. Watching the sergeant as a hawk watches its prey, never letting the muzzle of his pistol waver, the caballero stood just inside the door, smiling, humming a bit of song. In time the two soldiers were bound to their stools, and the Indian stood to one side.

“Get more thongs, gentile,” the caballero ordered. “Make them strong for the sergeant here.”

“You dare to order a dog of a gentile to tie me up like a pig?” Cassara cried.

“I pay you the compliment of considering you too dangerous to be allowed free, soldier.... At your work, gentile, and fear not. A move from the man will send a bullet tumbling into his heart. Lash his hands well!”

If looks could have killed, the caballero was a dead man already. Sergeant Cassara’s eyes flamed, his lower jaw shot out, his face turned purple in rage. But he made no move while his hands were being fastened securely, for the caballero was not smiling now, and the sergeant knew he could expect a shot if he made a move. But he could talk!

“Caballero,” he said, “for this you shall die! If ever I am free and stand before you, I’ll have your life if I am forced to take it with my bare hands!”

“You are bloodthirsty, *señor*.”

“May I live to be the laughing-stock of El Camino Real if I do not wipe out this insult you have put upon me!”

“You have orders to take me dead or alive, have you not?”

“I have, caballero!”

“Do you blame me, then, for having you trussed up? I value my life, sergeant, and at present I value my liberty. There are things to be done.”

“And there are things to be undone, thanks to your treason—things that will cost scores of good lives!”

“Indeed?... Put him on his stool now, gentile, and see that his great legs are fastened to it.... Careful, sergeant! My trigger finger shakes with nervousness this night!”

“Your heart will quiver with fear before you die, caballero.”

“We grow tragic, eh? Now, sergeant, since you are safe and comfortable, I am at your service in the matter of granting information. You wished to know where the hostiles have their camp, I believe? It is on the Fernandez rancho, sergeant, five miles beyond the mission.”

“It is likely you speak the truth.”

“However, I am speaking the truth, sergeant. The camp is where I have said. Gentiles and disloyal neophytes are gathering there every hour, as they are gathering near San Luis Rey de Francia and at other points along the coast.”

“You are bold to say it? And what do you here with a price on your head, caballero?”

“I came to seize the presidio, sergeant. I have accomplished that, I believe.”

The sergeant volleyed curses.

“What a soldier you would make, were you a loyal man!” he said, his outburst over.

“And, since I must dine and sleep, I intend to do it here,” the caballero went on.

“Hah! Sleep here, will you, caballero?”

“Si, in the presidio, sergeant mine. You think, perhaps, to get free of your bonds while I sleep, and capture me in turn? You must indeed have given little attention to what was transpiring.... Gentile, fetch wine and food from the rear room!... Why, sergeant mine, suppose I tell you that the blow has fallen, eh? Suppose I say that while you played with this Indian your soldiers have been slain in the hills, and the mission sacked and burned?

“Suppose I tell you that flame and steel are sweeping the coast to-night, and that around the wall of this presidio I have a hundred good men anxious to have your life and the lives of these two soldiers here? Suppose I merely had a fancy to capture the three of you single-handed and have a gentile tie you up? Eh? Think you I can sleep here to-night in security?”

“Renegade!” the sergeant cried.

“Why not give me thanks for entering alone and saving your life, instead of letting you be cut to pieces by hostiles?... Ah, you have the food and wine, gentile? Place them on the table!”

The caballero put the pistol back in his belt and drew off his gauntlets, and advanced toward the table, to draw up a stool and begin devouring the food. Neither of the soldiers spoke a word; Sergeant Cassara sputtered meaningless syllables in his wrath. Slowly, deliberately, the caballero ate

his meat and bread and drank his wine, afterward dipping his hands into water the gentile fetched, and wiping them on his zarape.

“I have been thinking,” he said, “of having some amusement. What do you say, sergeant, to a game of cards?”

“With Captain Fly-by-Night? Did you ever play an honest game, *señor*?”

“An abundance of them, sergeant mine. What say you to a game now? We can make the stakes alluring.”

“I can guess now how you won the mule at Santa Barbara.”

“Indeed? Perhaps I can propose a more interesting game now, sergeant.... Gentile, close that door and bar it!... You are anxious, you say, to stand before me with naked blade. Let us play, then, and if you win you’ll have that chance.”

“And, if I do not win——?”

“If you lose, sergeant, you are to walk from this building, without weapons—and take what comes!”

The sergeant shivered. He visualised a throng of maniac hostiles crouching against the wall silently, waiting with eager hands to grasp him. He imagined tortures and indignities without a chance of resistance prior to a terrible death. He knew the caballero was watching him, yet the picture overcame him, and for the first time he could not meet another man’s eyes.

“Well?” the caballero asked.

“Make it that I can have a naked blade, at least, and die fighting as a soldier should, caballero. If you have good blood in your veins, if ever you rejoiced in the name of gentleman, grant me this!”

“You are taking the flavour out of our game. I did not think you would beg favours.”

“Beg favours of you! Then I do not, caballero. Do as you will with me—I’ll have none of your game.”

“Yet I must have some amusement before I go to sleep. Suppose you three soldiers have the game between you? Dice with death, eh? The two who

throw lowest will be given to the hostiles. The one who throws highest will receive life and liberty.”

“I live or die with my comrades, caballero! I do not gamble with them in a matter of life or death!”

“Sergeant Cassara,” said the caballero, “you are a good soldier and a loyal man.”

He arose and bowed, and walked to the door. Taking down the bars and motioning for the gentile to stand there, he went out into the darkness. Near the wall he listened for a time, but heard nothing. He was quite sure the remainder of the soldiers would spend the night at the mission, else in the hills, but it was best to be certain and not be caught like a rat in a trap.

Returning to the barracks-room, he closed and barred the door again, drank another swallow of wine, and stepped across to the officers’ room.

“I leave you until morning, *señores*,” he said. “Your fate will be decided then.... Gentile, attend me!”

And then, followed by the Indian, he entered the other room and closed the door behind him.

“I can trust you?” he asked the gentile.

“To the death, *señor*. You saved me from a beating. And are you not Captain Fly-by-Night?”

“Fetch me quill, ink and paper from that shelf. So! I have a message to write.”

“I am to carry it, *señor*?”

“No. You are to slip outside, climb the wall, and take station at the corner of it. If you hear horsemen in the distance you are to warn me at once—you understand?”

“But the others——”

“What others?”

“The hundred men waiting outside, *señor*.”

“Ah! ’Twas a jest at the expense of our sergeant. There has been no attack yet. And I am here alone.”

“Then you are in grave danger, *señor*? How does it happen you are here alone, when the soldiers hope to capture you? Why are you not at the camp?”

“That is my business, gentile!”

“But the camp—! You have betrayed it! You have told the true location to these men!”

“Do not let that concern you, gentile.”

“It is, perhaps, a trick to fool them, to draw them into a trap?”

“Did I not say for you to attend to your own affairs, gentile? In a moment I shall be angry. Watch outside, as I instructed. If any one approaches, warn me at once. Look in at the window now and then, and be sure those in the other room do not get free. And come here to awaken me in three hours’ time.”

“It shall be done, *señor*.”

The gentile went out; the caballero sat at the table and wrote his message, and read it, and laughed lightly.

“I risk capture perhaps, but I must get some sleep,” he told himself. He extinguished the lantern the gentile had carried from the other room, barred the door, saw that the window was fastened securely, and stretched himself on the floor close to the wall.

A pounding on the door awakened him; he sprang to his feet.

“*Señor! Señor!*” the voice of the Indian was calling.

“I am here!”

“The time is up, *señor*!”

“Ah! From the din, I supposed the Governor approached with a large force!”

It was a yawning caballero who threw open the door and stepped into the barracks-room to face three wide-awake soldiers with angry faces. Sergeant



Cassara was mumbling curses under his breath again, and tugging at his bonds. The caballero smiled at him pleasantly as he advanced to the table and took the wine cup the gentile had filled.

“It desolates me to leave such good company,” he said, “but duty calls. Have you been worrying these past few hours, sergeant, that the hostiles outside the wall would enter and tear you limb from limb?”

“I suppose you will hand us over to them, renegade! Be a man for once! Release but one of my arms, give me a sword and let me face you!”

“The Governor has need of your sword-arm, I believe. As for the hostiles waiting outside, sergeant—please to remember that I said ‘suppose’ when I spoke of them. I am a truthful man and would not be considered otherwise. If you have felt fear, then I am sorry, for there was no cause. This gentile here is perhaps the only one within half a score of miles at present.”

“Hah!” the sergeant cried.

“If it was a subterfuge, consider that it was necessary, for I was forced to have food and sleep, and you had orders to take me dead or alive.... Gentile, go outside and watch!... And you, sergeant, attend me closely. The blow has not fallen yet; I said ‘suppose’ when speaking of that, too. What I told you about the location of the Indians’ camp is true. Pass the word along. And pass the word also that the hostiles will attack night after next, both here and at San Luis Rey de Francia. Attend me! By the saints, I speak truth! It is a warning I have brought you at risk of losing liberty.”

“What mean you?” Cassara cried. “You, Captain Fly-by-Night, giving information like this? Ah! You are a double traitor, eh? The hostiles have disowned you? You hope to gain pardon from the Governor by aiding us now to overthrow the conspiracy you have created?”

“Who can tell?” the caballero replied, smiling and drawing on his gauntlets. “There may come a time when many things will be explained. *Adios*, sergeant! Give my compliments to His Excellency the Governor. Ah, yes! I have written a message!”

He spread out the paper and tucked one corner of it in the sergeant’s belt, and for an instant fumbled with the man’s bonds, so that they could be loosened in time by hard work. Then he waved a hand in salute and passed out into the night.

“Gentile,” he said, as the Indian opened the gate for him, “you may come with me to where I left my horse. You have done more to-night than you imagine, and while you perhaps are a bloodthirsty wretch not worth consideration, yet I’ll repay your kindness with another. I give you this advice—start now toward the south, make good speed, and do not stop until San Diego de Alcalá is but an elusive memory far in the back of your mind. By doing that you may live long and prosper. If you do not understand, I cannot help it, and I have no time now to teach you understanding. I must ride far before dawn.”

---

Back at the presidio, Sergeant Cassara threw aside the thongs, and tore the paper from his belt. The written words stared up at him:

To the man known as the *comandante*: At the mission there is a man known as Rojerio Rocha, whom it would profit to watch. This is but a bit of advice given freely by the man known as Captain Fly-by-Night.

## CHAPTER XII

### A TRAGEDY

Señor Lopez turned from the window of the guest house and threw wide his arms in a gesture meant to indicate that there was a finality to his statement that would brook no reply.

“It is madness, Rojerio Rocha!” he exclaimed. “You are a wounded man!”

“Wounded? A scratch in the shoulder! My neophyte servant lost twice the blood, and he is as active as ever this morning. Would you have me show less endurance than an Indian cur?”

“You do not realise the state of the times, *señor*. You heard what the *comandante* said yesterday when he passed this way in pursuit of the odious Captain Fly-by-Night? ‘’Tis a widespread revolt,’ he said, ‘and may break out at any time. This Fly-by-Night heads it. He is here to see the culmination of his plans.’ Would that you had run him through!”

“I would that I had, *señor*!”

“In the shadows of our mission walls he has met his gentiles and conspired, no doubt. We do not know which of the natives here at the mission are corrupted and which are loyal. Now that his conspiracy is known and he has been driven to the hills, he may gather his horde of savages and attack at any time. So I say it would be madness, Rojerio Rocha, for you to go to the rancho this morning.”

The younger man stopped pacing the room and stood before the fireplace in an attitude of determination.

“Rumours of Indian uprisings are as thick as buds on a pepper-tree,” he said. “The rancho is only five miles from the mission. Señorita Anita and Señora Vallejo can ride in a *carreta* while we ride horses. I am anxious to see the rancho of which I have inherited the half. Things may be going to ruin there.”

“Of course, there are the soldiers—” Lopez began.

“Let some of them accompany us. They are looking for this Captain Fly-by-Night, and they are as like to find him in the neighbourhood of the rancho as elsewhere. Your Indians will not attack if we have half a dozen troopers along, and they will not attack in daytime at any rate. If things do not look as they should we can return this evening. It is but a journey of five miles.”

“Your argument is a good one, Rojerio Rocha, but I still think it would be madness to make the trip.”

“I wish it. I am tired of the mission already. Was it not the intention for me to take over the rancho immediately and wed Señorita Anita after a proper interval? If you hope to be continued in the post of manager, Señor Lopez, do not begin our acquaintance by opposing everything I wish.”

Lopez turned away at that and walked to the window again, although he did not like the tone of this Rojerio Rocha and imagined there were unpleasant times ahead. And now the mild Señora Vallejo crossed the room to rest a hand on the younger man’s arm.

“Perhaps it would be better, Señor Rocha, to take the advice of Señor Lopez,” she said, in her soft voice.

“You are a very good woman, *señora*,” he replied, “but a poor contributor to a council of men’s intentions.”

The *señora*, her face flushing, went quickly back to the fireplace.

“And I do not fancy the trip,” Señorita Anita put in, with more spirit than Señora Vallejo had shown. “I think, Señor Rocha——”

He whirled upon her, and she ceased speaking.

“*Señorita*,” he said, “I am proud to know you, and allow me to say I am quite sure you were taught not to interfere in any arrangements the head of the family might see fit to make.”

“Allow me to say that you are not the head of the family yet,” the girl returned, half angrily.

“I am, however, half owner of the rancho, I believe, through your father’s will, and I think you may trust me, *señorita*, to handle these affairs.”

“As to that, you have shown no credentials yet,” the girl burst out.

“Anita!” Señora Vallejo cried.

“Well, he has not!”

“You doubt me?” the young man wished to know. “I shall show my credentials, prove my name and station, at the proper time, *señorita*, but certainly not here at the mission. I regret we have had this little unpleasantness, for I would win your good favour, but I am firm in my determination to go to the rancho this morning. Perhaps my wound has made me sensitive.”

The girl crossed the room toward him, all apology, and when she spoke her voice was softer than it had been before.

“I ask you to pardon me, Rojerio Rocha,” she said. “I had forgotten that you were wounded in defence of my good name. Since I hope to carry out the wishes of my dear, dead father, I would be friendly with you, and I hope that true affection comes. And perhaps I did wrong to voice my opinion in this matter, being but a girl. It shall be as you wish, *señor*. We go to the rancho.”

“Excellent, *señorita*! Señor Lopez, you will see that a carreta is prepared? Have saddles and bridles put on the horses, too, and I’ll send my neophyte to get his mule. We should start within half an hour.”

Señor Lopez bowed and hurried from the guest house, trying to keep from showing his anger, giving orders about the carreta and horses. The wounded neophyte, who had been waiting outside the door, went to get his mule, staggering slightly and walking slowly because of the blood he had lost, but expressing lively satisfaction in his face. The animal was picketed down by the creek, and after putting on bridle and saddle the Indian led it back toward the plaza to wait until the others should be ready.

And there he heard a quick step behind him, and a heavy hand descended on his shoulder and grasped it so that he cried out with the pain as he whirled around. His eyes blazed for an instant, and then the fire in them died out and a look of fear came into his face, and he shook like a culprit, trembling.

“Ah!” rumbled a deep voice he had reason to dread. “So we find our runaway neophyte here at San Diego de Alcalá, eh? You prefer it to the Santa Barbara presidio, I take it. What have you to say when I suggest that I fasten you to a post and give you the beating you deserve?”

The neophyte did not answer, and neither did he attempt an escape, but his body seemed to shrink and he could not meet Sergeant Cassara’s eyes.

“Like a thief in the night you ran away!” the sergeant went on. “Without asking permission you left Santa Barbara, where you got good food for the little shiftless work you did, and received a beating only every day or so to keep you in order. What are you doing here, dog? It has been guessed by me these many days that you are disloyal. You would conspire to slay your betters, eh? Answer me!”

“Par——”

“Do not say it! You must be a pretty rogue with a heavy conscience to cry for pardon eternally.”

“*Señor!* You hurt my shoulder!”

“Why do you flinch?”

“There is a sword-thrust through it.”

“And how got you that, cur?”

“Captain Fly-by-Night gave it me yesterday.”

“Never did I expect to call blessings down on the head of that rogue, but I do so now. And curses also that his blade did not find your black heart. Ran you through, eh? Well, you are not punished enough. You shall have a beating yet!”

The sergeant started to walk toward the end of the plaza, not releasing his grip on the Indian’s shoulder, dragging the unfortunate after him. Other Indians stopped their work to look, some of them muttering. A fray hurried toward them. But before he reached the sergeant’s side to protest Cassara felt his own shoulder gripped and whirled about with a snarl, letting go of the neophyte and starting to reach for his sword.

“By what right do you man-handle my servant?” were the words dinned into his ears.

“Your servant? Ah, ’tis the young gentleman who lost the mule at Santa Barbara in a game of cards, eh? You finally reached San Diego de Alcalá, then? And what mean you about a servant? This Indian dog is a runaway neophyte from the Santa Barbara presidio, as you know, having seen him there, and I am about to render punishment.”

“Runaway he may be, but he also is my servant, and I’ll thank you to release him.”

“Then you are not in proper company, *señor*. This cur, as I happen to know, is disloyal. He may cut your throat while you sleep and open the gates to a savage horde. But if you would have him for servant, take him, and watch and beat him well. There will be time for me to attend to him later; at present there are other duties to be performed. Where, may I ask, can I find a man known as Rojerio Rocha?”

“I am so known, sergeant.”

“Ah! You don’t mind telling your name now, eh? This is different than it was at Santa Barbara? So you are Rojerio Rocha? I have been told it might profit me to watch you.”

“What do you mean by that?” the other demanded angrily.

“The meaning is not clear to me. I have but received a warning, *señor*, and, being a good soldier and these being turbulent times, I never ignore a warning, no matter from what source it comes nor whom it concerns. What is your business here?”

“I still retain the Governor’s pass, sergeant.”

“Captain Fly-by-Night has a Governor’s pass, if it comes to that, yet he scarcely is a reputable person. I believe, in passing, that you had the honour of crossing blades with him yesterday?”

“I did,” said the other, his white face flushing red.

“And the cause of your quarrel?”

“I do not recognise your right to question.”

“Since my *comandante* is away in the hills chasing this Fly-by-Night I am ranking officer here and do as I please, Señor Rocha. I ask the cause of your

quarrel because I would know the extent of enmity between you and judge as to the value of the hint I have received.”

“You mean I have been denounced by this Fly-by-Night?”

“Precisely, *señor*.”

“Hah! And how did you receive the hint, as you call it? Is communication open between you and Captain Fly-by-Night, regarding whom there is an order to take, dead or alive?”

“There was a way of communication,” the sergeant admitted, chewing vigorously at his moustache and his face flushing in turn.

“I scarcely think you need credit any warning concerning myself that Fly-by-Night would give. He perhaps hopes to cause me annoyance. We fought because of a boast he made regarding a certain young lady.”

“Over a woman, eh? If there is a woman in it I am inclined to wash my hands of the matter. A saint can turn liar when there is a woman concerned. You might inform me, however, to set my mind at rest, regarding your business here.”

“I have inherited half of the Fernandez rancho, sergeant, and have come to take possession.”

“The Fernandez rancho!” the sergeant gasped. “It is there, so this Captain Fly-by-Night has informed me, that the hostiles are gathering.”

“That is nonsense. I am going out to the rancho immediately with some ladies, and four soldiers as guards. Would I make the journey if there was danger, especially with ladies along?”

“Perhaps you are well informed,” the sergeant retorted, “and perhaps, again, you are not.”

“It appears you give considerable weight to the statements of this Fly-by-Night.”

“There are times when a man is forced to do so, Señor Rocha,” the sergeant replied, flushing again. “Does this runaway dog of an Indian go with you?”

“He does, naturally, since he is my servant.”



“You may be walking into a trap. Yourself, four soldiers and some ladies would be a great catch for the hostiles.”

“I’ll take care of myself, sergeant, thank you.”

“Um! Since I have a sort of roving commission at the present time, I think I’ll ride along.”

“I have not asked for your escort, sergeant.”

“Nevertheless, I think I’ll ride along toward the rancho. Your four soldiers will pay more attention to discipline with a sergeant along. Besides, I wish to see this far-famed San Diego country; and, at least, it may pay me to watch this Indian servant of yours. Yes—I believe I’ll ride along!”

“You force me to say that you will not be welcome, sergeant Four soldiers are enough.”

“As to that, I penetrate many places where there is no welcome. I am not supersensitive, Señor Rocha, and my feelings cannot be injured easily, I assure you. It will not be necessary for me to ride beside the carreta I see you have ready. I can ride ahead, behind, to one side.”

“This is almost past endurance.”

“You are a wounded man, and of course cannot endure much,” the sergeant observed, whirling on his heel and walking toward the other end of the plaza. Behind him he left a young man with angry face, who gurgled imprecations.

Señorita Anita came from the guest house now, dressed for the journey, and Señora Vallejo walked behind her, still muttering protests against the trip to the rancho at this time. They got in the carreta, and it started out along the road up the valley. Two soldiers rode ahead and two behind.

On one side of the carreta Señor Lopez guided his horse and tried not to show his displeasure; on the other side trotted a young man who talked to the ladies half the time, and spent the other half glowering at the mounted sergeant, who galloped about the country far to one side, now disappearing behind a ledge of rock, now coming into view at the crest of a hill, but always near.

Just behind the carreta rode the neophyte, a bundle of clothing across the mule in front of him. There was frank fear in his face whenever one of the troopers approached him, and always he glanced toward his master as if expecting a signal or command.

The road followed an arroyo for a mile, and then emerged on a broad, open space where cattle grazed, thousands of them dotting the pasturage. Sheep were on the hillsides, and to the left were fields of grain.

“Is it not a splendid inheritance, Señor Rocha?” Señora Vallejo murmured.

“It is, indeed,” he replied, and he showed no great amount of enthusiasm.

Señorita Anita frowned. On this rancho she had been born and reared; here she had played as a child, and here the frailes from the mission had come to teach her. In an enclosed space near the ranch-house her mother was buried, and her father.

She remembered how her father had laboured through disappointments to triumph to make this a profitable home; how seeds and bulbs had been imported that there might be beauty there; how proud he had been when the flocks and herds grew and new buildings were erected.

And now here was his half-heir scarcely giving the place a glance after having manifested such eagerness to reach it. A little lump came into Señorita Anita’s throat, and she would not look at the man who rode beside the carreta, but glanced away toward the distant hills; and a tear trickled down her cheek.

Now they had reached the top of the slope, and in the distance the buildings of the rancho could be seen, white against the green background. To one side were long, low adobe structures around which many Indians were gathering.

“Too many of the men are inactive,” Señor Lopez growled, anxious for the younger man to think he had the best interests of the rancho at heart. “The overseers are not firm enough in handling them. At this time of the day nearly all should be at work in the fields. It appears that nine-tenths of them are about the buildings.”

He continued to frown as they neared the ranch-house, and finally rode ahead at a gallop toward the adobe structures. The Indians did not make a

pretence of being busy as he approached. Some glowered at him as he passed, others deliberately turned away as he would have spoken to them in rebuke. He reined in his horse before one of the buildings and glared down at a score of men sitting round the doorway and stretched on the ground.

“What means this, dogs?” he demanded. “Why are you not at work?”

Not a voice answered him; some glanced up and then away again, while others ignored his existence.

“Where are your overseers?” he demanded next. “Where is Antonio, José? Answer, one of you!”

“We have seen neither this day, *señor*,” one of the men replied.

“Do not talk to me with a crooked tongue! Go to the fields, or I’ll take the whip to you! As for Antonio and José, we’ll see whether they can drink wine and waste time while I am away!”

Not an Indian moved to do his bidding. The carreta had stopped before the ranch-house now, and two of the soldiers left it to ride toward Lopez, sensing trouble.

“Rojerio Rocha!” Lopez called, but the man he addressed was assisting Señorita Anita from the carreta, and did not answer.

“Are the dogs mutinous?” one of the soldiers asked.

“Uncivil beasts, all of them!” Lopez replied. “Get about your work instantly, animals!”

He rode toward them as if to crush those nearest beneath the hoofs of his horse. Angry mutterings came from the throng, and some of the Indians sprang to their feet menacingly. An old man in the doorway of the building shouted something Lopez did not understand, and the mutterings ceased in an instant and the men scattered, some going toward the fields, others into the buildings.

Lopez turned to call Rojerio Rocha again, and saw him disappearing into the house with Señorita Anita and Señora Vallejo. The other two troopers had dismounted, the carreta was rumbling away toward the stables, and the neophyte servant was standing near his mule looking back along the road,

for in the distance Sergeant Cassara sat his horse and contemplated the rancho.

Lopez started to ride slowly toward the house, the two troopers following. Came a scream from a woman's throat—then another—a man's voice raised in surprise! The two soldiers near the house ran in at the door. Lopez and the others spurred their mounts and dashed to the building, there to throw themselves from their saddles and rush inside.

They heard the troopers ahead of them running into the patio. A woman was crying hysterically. And then they reached the patio themselves, to stop beneath the arched veranda dumbfounded at the scene confronting them.

Señora Vallejo was standing against the side of the building, her face hidden in her hands, sobbing violently. Señorita Anita Fernandez had fainted in Rojerio Rocha's arms. And the two troopers stood near the small fountain in the centre of the patio, where there were two bodies stretched on the ground. Lopez gave a cry of consternation as he hurried up to them.

Here were Antonio and José, the two overseers of the rancho, each sprawled on his face with arms outstretched, each with the hilt of a knife showing between his shoulder-blades!

## CHAPTER XIII

### THE EAVESDROPPER

Watching from the distance, Sergeant Cassara observed that the Indians of the rancho were leaving their adobe buildings in groups, and, instead of going into the fields to work, were hurrying down the slope toward a cañon.

The neophyte who waited in front of the ranch-house mounted his mule after a time, and went toward the cañon himself, urging on his steed as soon as he was a short distance from the building, until the animal was running with head down, covering the ground with great leaps.

Already the sergeant had seen the soldiers and Señor Lopez run into the ranch-house, and he was contented no longer to remain a hundred yards away and speculate as to what was transpiring. Sergeant Cassara was a man who enjoyed getting all his information at first hand.

He put spurs to his horse, therefore, and galloped up the road to the ranch-house, to stop at the corner of the veranda and sit there on his mount for a moment, listening. He heard the low whimpering of a woman, and the excited voices of men, and finally dismounted and walked around the corner of the house, and so came to the patio.

“So! There has been murder done here?” he exclaimed, after surveying the scene. “Are you all struck dumb and thoughtless? Why stand like so many statues and do nothing? By the saints, there seems to be not an ounce of decision amongst you all! You who call yourself Rojerio Rocha would do well, it seems to me, to carry the *señorita* into the house where she will not have to face this bloody scene when she comes from her faint. One of you troopers assist the *señora*, also. And you, who are named Lopez, why not start in to investigate this matter?”

“What can be done?” Lopez asked.

“First, who are the victims?”

“The overseers.”

“They have been beating the Indians, I suppose, and some have taken revenge while the overseers took their siesta. A long siesta they are enjoying now! Get the bodies away, in the saints’ name! Help him, soldiers! And then it will be time to deal with the gentiles.”

Lopez called for the house servants, but none answered. There was not an Indian woman near the place; no children played about the huts in the rear; and the men, of course, had gone toward the cañon. Sergeant Cassara stood at the end of the patio and sneered as Lopez began to realise these things.

“This man who calls himself Rojerio Rocha and takes such a high hand with affairs evidently was not well informed as to conditions,” the sergeant suggested.

“I asked him not to come to the rancho to-day,” Lopez returned, “but he would have it so.”

“He insisted, eh?”

“*Si, señor.*”

“But why bring the ladies into danger? Do they not have brains at the mission in these days?”

“He insisted, also, that the ladies make the journey.”

“Ah! He did? Well, the thing that appeals most to me now is for you to start your carreta back toward the mission as soon as possible, and make as good time as you can getting there. The ladies will have to get over their fright first, of course. I do not like the air hereabouts—it smells rank of conspiracy and murder.”

“I agree with you, *señor*,” Lopez admitted.

“And while we are waiting for these same ladies to settle their nerves, why not round up some of these gentiles and propound a few leading questions? Perhaps we can beat an answer or two out of the dogs.”

“As soon as Señor Rocha returns from the house, sergeant. He is master here now, and must supervise this business. I do not care to make a move without his permission.”

“You do not, eh? I am an independent being, thank the good saints! I suggest you prepare the *carreta* for the return journey, while I ride after these gentiles I saw sneaking down into the cañon, and see what can be discovered. You may follow later if this Señor Rocha is kind enough to allow you to do so.”

The face of Lopez flushed at the sergeant’s tone, for Cassara was not careful to refrain from expressing his contempt for a man who would await the permission of another in such business. He ran to his horse, sprang to the saddle and galloped down the slope, leaving Lopez to glare after him. He did not follow the trail taken by the Indians, however, but rode far to the right and circled a butte, and so approached the cañon from the opposite side, warily, stopping his horse now and then to listen.

After a time he dismounted and crept forward, dodging from rock to rock, bush to bush, until he reached the edge of a precipice and found the floor of the cañon stretched far below him.

He saw an Indian camp where fully half a thousand warriors had gathered. They seemed to feel secure in their strength, for they made no attempt at secrecy now. Some were dancing about their fires, others were donning war paint, others guarded a herd of ponies. The Santa Barbara neophyte was talking to a throng of them, throwing out his arms in passionate gesture, and his hearers shrieked their approval.

“This looks like a bad business,” Sergeant Cassara admitted to himself. “So Fly-by-Night did not tell an untruth, eh? What object the rogue can have in betraying his poor dupes is more than I can fathom. To-morrow night they will attack, he said. I wonder if that is the truth, too?”

For several minutes he watched the camp, trying to estimate the number of men there, and to see what they possessed in the way of weapons, gathering information that would be of value to the *comandante*. He got up from the ground to make his retreat then, and in so doing glanced across the cañon to the slope beyond.

Señor Lopez and the four troopers were galloping toward the cañon.

Two ideas flashed through the sergeant’s brain—that Lopez and the soldiers were riding unexpectedly into great danger, and that they had left the two women and Rojerio Rocha alone at the ranch-house.

There was not time for him to reach his horse and ride to intercept them, to warn them of their danger. To screech an alarm would avail nothing—it was doubtful if the others would hear, and if the Indians heard they would guess someone approached and prepare for the meeting. It would be worse than useless for him to charge down the side of the hill, if trouble came, and attempt to aid the others—such a course would be suicide in the face of such a throng; and Sergeant Cassara was a good enough soldier to realise his duty to his comrades and superiors, to realise that it was for him to carry an alarm to mission and presidio.

Helpless to warn or aid, he crouched behind the rocks at the top of the hill and watched the drama unfold below him. Lopez and the troopers reached the crest of the hill and dashed down toward the cañon proper. Cassara saw an Indian sentinel flash a warning back to the others. A few commands, and the dancing around the fires stopped, and gentiles crept up the slope, dodging behind shrubs and rocks, weapons in their hands.

With Lopez in the lead, the little cavalcade swept around the end of the butte and into the cañon, into the midst of a swarm of half-frenzied natives, and stopped with gentiles grasping at the bridles. Cassara could hear Lopez shrieking something above the din, saw the troopers draw sabres, rein back their horses, and try to clear a space around them. The Indians crowded forward, menacing, screeching their cries, more and more of them gathering about the five riders, until only the heads of the mounted men could be seen above the horde.

Striking with their sabres, the troopers were trying to clear a space in which to wheel their horses and retreat. An arrow flew from the side of the hill—a trooper reeled in his saddle and fell over his horse's neck, and a chorus of shrieks arose at this first blood.

The troopers drew their pistols and, firing in the faces of the savages nearest; several Indians fell; and then the riders were the centre of a maelstrom of raging, fighting, bloodthirsty gentiles and neophytes who fought with one another to pull the troopers from their horses, to lay hands on the manager of the Fernandez rancho, a man many of them had reason to hate.

“It is the beginning,” Sergeant Cassara heard himself muttering.



He closed his eyes for an instant, for it is one thing to be in the centre of a savage combat and quite another to view one at close range and yet have no part in it, and when he opened them again the Indians had scattered, the five horses were running wild with gentiles trying to capture them for the loot of silver-chased saddles they presented, and on the floor of the cañon were five mutilated things that so short a time before had been men.

Now the Indians were dancing about their fires again, this first small victory having added to their frenzy, and their shrieks could be heard a great distance. Cassara knew his duty now—to mount and ride, to reach the ranch-house and aid in saving the women there, if he could; to continue to the mission and spread the alarm, and have those soldiers seeking Captain Fly-by-Night recalled from the hills before they were cut off one by one and slaughtered.

He saw the Santa Barbara neophyte mount his mule again, and heard him shrieking at the others, though he could not catch the words. He started to slip away, back from the edge of the precipice to his horse, and as he got upon his feet he saw another horseman galloping from the ranch-house toward the cañon.

Loud curses came from the throat of Sergeant Cassara then, curses at what he considered the man's foolishness, for the rider was Rojerio Rocha.

"The fool has left the women alone!" he gasped. "By all the saints, I'd like to run him through for the worthless, senseless thing he is! Let them alone in the ranch-house, he has, and rides toward danger like an imbecile! Can't he hear those yells, the fool? Can't he tell something is wrong?"

Crashing through the brush, stumbling over the rocks, Cassara rushed toward his horse and vaulted into the saddle. His spurs raked the beast's sides cruelly; with a snort of pain and surprise the animal ran wildly around the butte, sending showers of gravel down into the cañon. The sergeant bent low and gripped the reins, lifting the horse in its great jumps. On and on he rode, circling the knoll so as to approach the house from the opposite side.

He came within view of it—and pulled up his mount sharply. He was too late. Rojerio Rocha was in the centre of a horde of shrieking Indians. They did not pull him from his horse, and they seemed to be making no effort to attack him. But they had turned the animal's head, and fully two hundred of

them were rushing it back toward the houses running alongside, some mounted on ponies and some afoot. In an instant Cassara had judged distance. The Indians were within fifty yards of the adobe buildings, within one hundred yards of the house. And he was fully three hundred yards away.

Sergeant Cassara hesitated a moment. He never knew fear, and was not the sort of man to surrender another man and two women to a savage band without making an effort to rescue them, even if it was certain he would die in the attempt.

But he could not save these people, he knew, and would only lose his own life. And if he died in the patio of the ranch-house at the hands of frenzied gentiles who hated the uniform he wore, there would be none to carry the alarm to the mission.

And now the throng had reached the house and rushed into the patio, Rojerio Rocha still mounted on his horse. A bedlam of shrieks and screams assailed the sergeant's ears. He thought of the two women who had ridden out in the carreta—the dignified *señora*, the dimpling *señorita*—and cursed the man whose obstinacy had brought them there.

“Torture—and worse!” he exclaimed. “May the saints see that this Rojerio Rocha suffers thrice for every bit of pain those women are caused!”

And then he wheeled his horse, sent home the spurs, and dashed down the road toward the distant mission.

---

The *comandante*, back from his fruitless search of the hills for Captain Fly-by-Night, saw the flying horse in the distance, caught the glint of sun from the sergeant's sword and called to his soldiers. Frailes ran to the end of the adobe wall to watch the approaching horseman.

Less than twenty neophytes remained at the mission now—all day they had been sneaking away one at a time and hurrying to the camp on the rancho—and of those who remained it was a question which were loyal.

“’Tis our famous sergeant from Santa Barbara!” the *comandante* cried. “He rides like that because the matter is urgent, you may be sure.”

The foam-flecked horse stopped at the end of the wall with forefeet in the air as the sergeant swung himself backward in the saddle and sprang to the ground. Even as his feet struck the turf his hand snapped to his cap in salute. He was breathing heavily, but he was a soldier of experience, and did not shout his news aloud like a frightened child.

“Something of moment to report, *comandante*,” he said.

The *comandante* drew himself up and returned the salute—he was a soldier of experience, too.

“Regarding hostiles?” he asked, while the frailes hung on his words.

“Regarding hostiles, *señor*.”

“Follow me to the guest house, sergeant; you can give me your report there. Have one of the men attend to your horse. Is it of a military nature only, or should the frailes hear?”

“They can hear it, *comandante*.”

They crossed the plaza, the lieutenant leading the way. There was no haste in their manner. If there were disloyal neophytes about, they would learn nothing from the way in which these soldiers conducted themselves. Behind the lieutenant and sergeant walked four frailes, their heads hanging, sensing what they were to hear. Another fray remained in the plaza, and every neophyte there knew he was being watched.

The lieutenant threw open the door of the guest house, and they entered, and the door was closed again. The frailes stood against the wall in a row awaiting the blow they expected. The *comandante* threw back his shoulders and took a deep breath, and snapped out his order:

“Report, sergeant!”

“Five hundred or more hostiles are camped on the Fernandez rancho. They are dancing and putting on their paint. I followed when Señor Lopez and Rojerio Rocha took the women there. Four troopers escorted them.”

“I am aware of that.”

“Two rancho overseers were found knifed. I made an investigation and found the hostile camp. Lopez and the four soldiers rode into the cañon where the camp is located and were slain——”

“All?”

“All,” said Cassara.

“The others?”

“Señor Rocha rode toward the cañon as I was starting to return to the house to make an attempt to rescue the women. The hostiles seized him and took him back to the house. Before I could cover the distance they were in the patio—fully two hundred of them. I knew it would be useless to attempt a rescue then, so rode to report.”

“And the women——”

“Were in the house, *comandante*!” Sergeant Cassara said.

The frailes groaned and bowed their heads in resignation. Further explanation was not needed. They realised the situation fully; such situations had been met by frailes since the sainted Serra first set foot in California and began his great work of creating the mission chain.

“There remains one thing to do, then—prepare for defence,” the *comandante* said. “We have twenty soldiers, eight frailes, about a score of neophytes believed to be loyal, and half a dozen ranchers who happen to be in the mission. Ensign Sanchez and his squad from Santa Barbara should be here in the morning. The squad is a small one, but every man is a man in such times. At least, we can put up a pretty battle. If we can hold out until the Governor arrives”——a pause——“Hah! Five or more to one, eh? How like you the odds, sergeant? Frailes, you know your duties, I believe. If you feel like hesitating in the work of preparing for carnage, remember those two women!”

But they were fighting priests, those men. The expressions that came into their faces now were not such as come into the countenances of cowards and weaklings. Their gowns remained, but beneath them the priests had been transformed into soldiers in an instant of time. They passed before the lieutenant and sergeant, walked to the door, opened it and went out, each to do what he could in the plan for defence.

The *comandante* and Sergeant Cassara faced each other for an instant, like men who understand without resorting to words, then Sergeant Cassara saluted and followed the frailes out of the guest house and into the plaza.

And back of the fireplace, against the guest house wall in the old tunnel, crouched Captain Fly-by-Night, who had heard all that had been said; who remembered a proud, flushed face, a dimple, two snapping black eyes, a voice so sweet and low that it struck to the heart like the breath of a song—and who prayed now that the black night would come quickly!

## CHAPTER XIV

### UNMASKED

It was to Anita's old room in the house at the rancho that she was carried after the sight of the two murdered overseers had caused her to faint. Señora Vallejo, assisted by one of the troopers, followed, and when Anita had been put on the bed the older woman crouched at the foot of it, still weeping hysterically. The trooper hurried back to the patio.

"Get some of the native women, Rojerio Rocha!" the *señora* commanded them, trying to control herself. "Tell them to bring cool water."

She went to Anita's side as the man left the room, opened the girl's dress at the throat and began chafing her hands, meanwhile looking toward the door and patting the toe of one shoe on the floor because Rojerio Rocha was so long about his task.

Señorita Anita moaned and opened her eyes, and Señora Vallejo, clasping her in strong arms, they wept again together, still terrified by the recollection of what they had seen, a gruesome sight for which they had not been prepared.

Then the door was thrown open and Rojerio Rocha stood before them, his sombrero in his hand.

"Ah! Señorita Anita is herself again?" he said. "That is well, indeed, for there is not an Indian woman about the place, nor a male servant. They have run away, it seems."

"Run away?" the two women gasped in unison.

"Nor is that all. All the Indians employed at the rancho have deserted the buildings and fields and are hurrying toward the cañon near by. 'Tis a well-ordered piece of property I have inherited, it appears."

He laughed and swaggered across the room to a window, to look down into the patio. The women were quick to sense some change in his manner, and again fear gripped their hearts.

“Run away?” Señora Vallejo exclaimed again. “What does it mean? There is danger—grave danger? Rojerio Rocha, let us return to the mission immediately. Ah, if you only had listened and had not come!”

“Enough of that, *señora!*” he cried, whirling toward them.

“Have you forgotten your gentle blood, that you speak in such a tone to a woman?” Anita demanded, sitting up on the bed.

“There are times when a woman must be brought to her senses, *señorita*. Allow me to handle this affair in my own way. I am going down into the patio now, and do you both remain in this room until I return. At that time I may have better information to give.”

He went out without looking at them again, closed the door behind him, and they heard the bolt shot into place. Anita sprang to her feet and ran across the room to try the door before the beating of the man’s steps had ceased to be heard. It was indeed fastened.

“I am beginning to hate him!” the girl exclaimed. “It will be difficult, I fear, to do as my father wished. And I—I am beginning to be afraid. The house is so quiet. Señora Vallejo, can you hear Indians shrieking in the distance?”

“I have heard them for some time,” the *señora* replied. “We have walked into a trap, I fear.”

“Why do the men not start to return to the mission immediately? Señor Lopez and the four soldiers surely can guard us well, and one of them ride ahead for help if we need it.”

“It may be possible,” said the *señora*, “that the Indians have run away merely because they fear punishment for the killing of their overseers.” But she said it merely to allay the girl’s fears, not because she believed it.

There was a clatter of hoofs at the end of the patio, and the two women hurried across to the window in time to see Señor Lopez and the four soldiers dash away. They turned to the right toward the cañon, and the women could watch them no longer; and so they stood before the window and looked down into the patio, awaiting the return, watching Rojerio

Rocha as he paced back and forth beside the fountain, now fumbling at the hilt of his sword, now pulling at the pistol in his belt, always with head bent and a scowl on his handsome face.

In time he stopped at the end of the patio and shaded his eyes with his hands to look toward the cañon. A chorus of shrieks and cries came from the distance. They heard Rojerio Rocha laugh, and then he grasped the reins of his horse, jerked the animal around and vaulted into the saddle to gallop away.

Clasped in each other's arms, silent, fearful, the two women remained standing before the window. An hour passed that seemed like an age. And then they heard the cries and shrieks again, doubled now, seemingly coming nearer—cries and shrieks that the older woman translated as easily as if they had been spoken words. Even the girl seemed to recognise a new note in the bedlam, for she looked up into the older woman's face wonderingly, questioningly, and she felt Señora Vallejo's arms tighten about her.

"What is it?" she asked.

"The blood cry—I know it well."

"And it means——"

"It means that the fiends have had blood, that there has been murder done."

"Ah, yes! The overseers."

"I did not mean the overseers," Señora Vallejo said, turning her face away and looking out of the window.

"You mean that Señor Lopez—the soldiers—Señor Rocha——"

"Some of them, perhaps all. We shall know soon."

The girl moaned and hid her face against the older woman's shoulder and tried to shut out the cries by putting fingers in her ears. But she could not shut them out, and in time ceased to try.

"They are approaching," Señora Vallejo said.

"Coming here?"

"Here or else to the adobe buildings. And we have not a weapon in the room, nor any man to protect us. The door is locked—we cannot escape and



attempt to hide.”

“Oh, why did he lock it?” the girl cried.

The end of the building shut off the view as they looked from the window. But they knew the horde was approaching, and rapidly, and with the blood shrieks were mingled other cries the meaning of which Señora Vallejo could not understand at first.

“They are acclaiming someone,” she said, finally. “Some chief who has performed a murderous assault, I suppose. May the saints curse the man whose treason agitated them!”

Then she grasped the girl and drew back from the window quickly, letting the draperies that hung there fall back into place. An Indian had appeared at the end of the patio—a tall, young Indian streaked with war paint and with a musket in his hand. They watched as he glanced around the enclosure, then slipped like a snake past the fountain to the door to listen there. Finally he whirled around and ran to the end of the patio again, to wave his musket and shriek at the others.

Then, like a wave breaking on a rocky beach, the horde poured into the patio—dancing, shrieking, screeching—charging across the veranda, splashing through the water of the fountain, tearing at the palms old Señor Fernandez himself had planted and tended until they were grown.

And, in their midst, sitting his horse with shoulders squared, his face devoid of all expression, was the man Señor Fernandez had said his daughter was to marry.

“They have brought him here to kill him!” the girl moaned. “And, the others——?”

“Dead, else ridden for help,” replied the *señora*. “If we had but a poniard \_\_\_\_\_”

The horse had stopped beside the fountain. A chief grasped the animal’s mane and was shouting to the maniacs who shrieked around him. They stopped their dancing and their cries died down. Half a dozen men raised hands to take the rider from his horse and carry him toward the door, half a dozen more led the animal from the patio, scores ran toward the adobe buildings, and others gathered in groups in the enclosure to hold animated

conversation, now and then screeching their enthusiasm and shaking muskets and bows above their heads.

Señora Vallejo drew the girl back from the curtained window, and they stood at the foot of the bed, still clasped in each other's arms, looking toward the door. They heard steps in the corridor outside—the steps of but one man, it seemed—and they feared a skulking gentile reconnoitering, one who soon would send a shriek ringing through the house to inform the others he had found women there.

Silence for an instant, then they heard the bolt withdrawn. Another instant, and the door was thrown open.

“Rojerio Rocha!” Señora Vallejo exclaimed.

He closed the door behind him, bowed before them, and advanced a step into the room.

“You have come to say that there is no hope?” the woman asked.

“I have come to say, first of all, *señora*, and you, *señorita*, that there is absolutely no danger for either of you, if you are obedient.”

“No danger? What mean you, Rojerio Rocha? No danger with that mob of howling savages in war paint, crowding the patio and overrunning the house?”

“They are not overrunning the house, *señora*, pardon me. None are in the house except chiefs and a few servants. Already they have the fires going, and a roast of beef is being prepared. You shall have food soon.”

“Are you an imbecile in truth?” the *señora* cried. “You trust such wretches? Do you not know that, if they do not slay us at once, they are but playing with us as a cat plays with a mouse before she kills it? Where are your brains, Rojerio Rocha? Is there to be no attempt at rescue? Give us at least a poniard, that we may protect ourselves or take our own lives to save honour! Where is Señor Lopez? Where are the troopers? Have they ridden for help?”

She stopped speaking, standing before him with her hands clutching at her breasts—fear-stricken, desperate, but angry above all.

“Señor Lopez and the four troopers,” he replied, “rode down into the cañon to make an investigation, disregarding my orders to the contrary. They are dead.”

“Dead?” Anita cried.

“Dead, *señorita*.”

“But you——? Why have they let you live, Rojerio Rocha? They will torture?”

“I already have informed you that no harm shall come to you if you are obedient.”

“And, to be obedient——?”

“Is to remain in this room, *señorita*, and you, *señora*, until you are told you may depart elsewhere. Food will be fetched you regularly; you may have anything you wish. Be not afraid of the Indians in the patio and surrounding the house. They are not a menace—they are here for protection.”

“Protection?” sneered the *señora*.

“Your protection—and yours, *señorita*—and mine.”

“Yours?” the women cried.

“What mean you?” the *señora* demanded, as an afterthought.

“That these Indians call me master. Do you understand? That I am their commanding officer. That the time to drop the mask has come, *señora*, and you may consider the mask dropped. To-night and to-morrow we prepare; to-morrow night we take the mission and presidio. After that the other things will follow—every rancho and village will be visited.”

“You—you——!” Anita gasped.

“You will get used to the idea, *señorita*. Within half a score of days I shall be a king. You did not think to wed the ruler of the coast, did you, *señorita*? Why did you think I am so anxious to come to the rancho to-day? Because my armies had been gathering here, *señorita*, and because it was my place here, instead of at the mission. And I desire to get you here, with the *señora*, where you will be out of harm’s way until after we have succeeded. As for

Lopez and the troopers—they walked into the trap, and we have five men the less to fight to-morrow night.”

He laughed loudly and took another step toward them, and the women recoiled.

“You realise—what you are saying?” the *señora* gasped.

“Fully, *señora*.”

“You—Rojerio Rocha—with the blood of the Rochas and the Fernandez in your veins—you turn renegade, lead hostile Indians, play at treason, countenance murder and rapine? Fear has turned your brain! You could not do such a thing!”

“It takes a man with good brain to do it, and travel on the Governor’s pass at the same time,” he returned, laughing again. “Rest assured I speak the truth, *señora*. It has taken much planning, but soon we see the culmination.”

“But—this Captain Fly-by-Night——?”

The man’s face darkened.

“A meddling fool,” he said, “who shall be sent to eternity if ever I cross blades with him again. A nothing, a novice—this man of whom you speak! Captain Fly-by-Night, eh? The fools sent out alarms concerning him, eh? They chase him and hunt him like a mad bull—while I am guest at the mission, and smile, and send out my plans and orders under the very noses of the frailes. I do not deny this man has had his uses. But I command—not he!”

The first horror was over now; full realisation was coming to the women. Señorita Anita stepped out to the middle of the room and confronted him, and she showed no fear now. Her head was lifted proudly, her breast heaved with emotion, outraged pride and anger struggled in her face for expression.

“So it was all a farce?” she cried. “You and this Captain Fly-by-Night were not such deadly enemies as report had it, eh? Partners in treason you were, playing your nefarious game! And the duel down by the creek—how came it he ran you through? Was that a part of the game, too?”

“We fought because of an argument concerning Señorita Anita Fernandez, I believe.”

“Traitors fell out, and you would say it was over a woman? Say, rather, that you both sought leadership—that there was one general too many! Say, rather, that even before the culmination of your plans you fought regarding the division of the loot—myself being desired by both pretty traitors!”

“Say what you please, *señorita*, so long as you let the fact remain that this man of whom you speak has nothing in common with me. As for yourself—you please me very much, and I shall claim you when this more serious business is at an end.”

“Claim me—you? Renegade! Traitor! Take you for husband? Do you suppose my father knew your true character when he made his request? He never had seen you, Rojerio Rocha, but he supposed—because you had Fernandez and Rocha blood in your veins—that you were a gentleman and true. Marry you, Rojerio Rocha? Marry a man the Governor calls friend, and who plans to stab his friend from behind?”

“Marry, or come to me without marriage—as you wish,” the man said. “Your will against me will not be so strong, I think, when things are at an end and I become master.”

“Rather would I wed this Fly-by-Night—this gambler and swindler and thief and wronger of women—this man who made immodest boasts concerning me. And before I’d do that, I’d take my own life, Rojerio Rocha! Call in your savage friends and let them torture, and slay me! Never can I hold up my head again, whether your conspiracy is successful or no! That a man of my family and blood should do this thing——! Where is the pride of the Fernandez now? This stain never can be washed away!”

“A truce as to your foolish pride! Enough of heroics, *señorita*, and you, *señora*! We’ll talk further of these matters at a later day. At present remember that I am master here. You will remain in this room, and food will be fetched. Every comfort you wish will be furnished. And when things are settled again, I take you for wife, Señorita Anita, whether you wish it or not. These Indians will not allow you to escape, yet they will protect you. Had I left you at the mission, you might have been injured by mistake during the fighting. Calm your fears and make the best of things, and try not to change conditions you cannot affect. There is no need for fear—already the gentiles look upon you as their queen.”

“Their queen! I, a Fernandez, queen of savages, over a kingdom purchased by treason and steeped in blood? Have I not shame enough with which to contend? Go—go!”

She turned half from him, sobbing, hands held to face. Señora Vallejo had collapsed at the foot of the bed. There was silence for the moment, and then the man’s laugh rang out—raucous, sneering, malevolent.

“By the saints, you are beautiful when aroused!” he cried. “These heroics will not outlast the day, I vow! If I took you in my arms, perhaps——”

She heard his quick step, and turned to confront him. So they stood for a breath, a foot apart and then the man laughed and raised his arms.

One of her hands darted forward and then, when she sprang back to avoid him, she gripped the poniard he had worn at his belt. Her arm drove it forward. Her head was half turned away as she felt it strike his breast. She dropped the weapon and covered her face with hands again, waiting for the crash that would tell her his body had fallen to the floor and that she had slain a man.

But the crash came not, and in its stead there was a muttered exclamation of surprise, and a chuckle of relief.

“Your blow was strong and sure, *señorita*,” he said. “Fortune favours me in that the point struck on the buckle of my sword-belt. As for the poniard—I intended leaving it with you, that you would feel more secure. I always did fancy a woman of spirit. You will make a right royal queen for such a warrior as myself.”

“Go—go!” she cried.

“Immediately, though I dislike to leave such good company; yet there is work to be done and the time is short. Within a short time an Indian will come with food, and if there is anything you lack for comfort, you have but to command.”

He turned his back deliberately and walked to the door, and she could not nerve herself to pick up the poniard and strike again. She felt herself reeling and knew that reaction soon would be upon her. But she bit her lip cruelly to force herself to gather her scattering senses, and once more she addressed him.

“Send no Indian with food. I do not eat what traitors prepare, and neither does my *duenna*. And when that door is opened again after you are gone—no matter by whom—I plunge this dagger into my own heart, Rojerio Rocha, and so pay in part for the stain you have put upon our family. I swear that I’ll do this—and there will be no belt buckle to turn aside the point!”

His face sobered for an instant, for there was no mistaking her determination. He threw open the door and looked back toward her and finally laughed again.

“*Adios, señorita,*” he called. “When hunger makes you forget what you have just said, you may call to someone in the patio and they will carry me word.”

He went out and closed the door. The girl heard the bolt shot into place. One moan came from between her lips, and then she collapsed at the foot of the bed beside Señora Vallejo.

## CHAPTER XV

### THE WAY IN

An hour after nightfall the well in the orchard at the mission gave forth a man. Mud and dust were mingled on his clothes, the ends of his moustache drooped, and there was a scraggy beard on his face. The dainty caballero was gone, and in his place was a warrior of stern visage and flashing eyes, who stood beside the well curb for a few minutes listening and then lost no time in crossing the orchard and climbing the adobe wall.

Once outside, his progress was rapid over the uneven ground. Now he walked and now he ran, making his way to the crest of the slope behind the mission buildings. He turned west and hurried on, making as little noise as possible, stumbling over rocks and roots and small brush, for there was no moon and a man could see scarcely two feet in front of his face.

He came to a small dry watercourse and turned into it, running continually now through the heavy sand, less liable to attract attention, but panting from the exertion. Finally he stopped, listened again and appeared to be uncertain of his surroundings. A soft whinny came to his ears, and with a subdued gasp of thankfulness he ran on.

Beneath a ledge of rock in a natural cup in the earth his horse was picketed. Working swiftly, the caballero put on saddle and bridle and led the animal from beneath the ledge and down the watercourse. A few minutes later he had mounted, and the horse was trotting slowly along the crest of the hill.

The caballero did not under-estimate his danger. He knew the *comandante* might have sent troopers to scout in the surrounding country in an endeavour to learn the intentions of the hostiles. Men and women were driving in from the villages and every rancho was sending its people to the protection of the mission, for the alarm had gone out that afternoon, and he did not wish to be seen by any of them. Moreover, scouting Indians might be met, and these the caballero feared most of all, not alone because of an



attack they might make, but because they might give chase, drive him out of his course, delay him when delay was the last thing he desired.

Yet he rode swiftly where he could, and trusted a great deal to his horse, not following the principal highway, but breaking a new trail over the hills, avoiding the cañon where the old Indian camp had been, striving to reach the Fernandez rancho from the opposite side, where it was less likely sentinels had been posted.

He had to guess at his location continually; had to stop now and then to listen for sounds that would have meant danger; had to use caution and make speed at the same time, a difficult thing under such conditions.

In time he saw the reflection from fires ahead of him, and knew he was not far from the cañon where the Indians had been camped.

He approached warily, riding slowly around the base of the butte as Sergeant Cassara had done. Dismounting, he threw the reins over his horse's head and went forward alone, silently, foot by foot, fearing a stumble over a stone might attract the attention of some Indian sentinel and cause an alarm.

He reached the edge of the precipice and looked down. Scores of fires were burning; scores of Indian warriors were dancing; the groups of teepees told how the savages had gathered, gentile and neophyte, for this attempt to drive white men from the coast country and reclaim the territory for their own.

For several minutes the caballero watched the scene below, noting especially where a group of chiefs had gathered before a large wigwam as if for a conference. Then, fully determined, he slipped over the edge of the precipice and started down to the floor of the cañon, a perilous descent made more perilous by the fact that escape would be difficult if his presence were discovered.

He reached the bottom, and for a time rested behind a clump of bushes, where the light from the fires did not penetrate, breathing heavily because of his exertion, listening to the chatter of a band of neophytes near—neophytes who already quarrelled regarding the division of certain goods in the mission storehouse.

Forward again, toward the wigwam, keeping out of the light from the fires, going step by step and cautiously, now backing into the brush when he came across a slumbering hostile, now daring a nearer approach to the fires when the country made it necessary.

He reached a jumble of rocks directly behind the wigwam, and stopped to rest again. He heard Indians shrieking in the distance, heard the sound of galloping hoofs, and saw riding down the line of fires the man he had warned the *comandante* to watch.

“Then I was right, after all,” the caballero said, and gripped his pistol for use in case of discovery.

The chiefs were standing now, awaiting the approach of their white leader with evident courtesy, and one of them stepped forward and grasped the reins of the horse as he dismounted. An Indian took the horse away; the chiefs and their white leader sat down before the fire.

“You have satisfaction, Señor Rocha?” one of the chiefs asked.

“Things appear to be as I had wished,” was the reply. “We will attack tomorrow night, as we have planned. The men have all arrived?”

“Except perhaps half a hundred who will be here by morning,” said a chief. “A scout came in some time ago, with the report that they are preparing for defence at the mission.”

“Hah! Small good it will do them, except to cause us more annoyance.”

“A soldier warned them, *señor*, it is said—a big soldier who belongs not to the presidio here, but at Santa Barbara.”

“I know him; I expected as much. Do some of you remember this certain soldier when we attack, and take account of him. There has been nothing seen of the man who tricked you?”

“None have seen him, *señor*. Either he has ridden up El Camino Real to spread the alarm, or else is hiding in the hills.”

“He is not to be slain, remember. I want that word passed around. That man is mine when we take him prisoner. Small wonder it is that he did not ruin our plans!”

“How were we to know, *señor*? Those at the mission treated him like a pestilence, and he led our men to believe he was who he seemed. We did not guess until he came here to the cañon and escaped when we would have held him prisoner. Yet he is an outlaw now—both white men and red seek him.”

“There is amusement to be found in that fact,” was the laughing reply. “Remember that man is mine when he is taken. And remember, also, what I said about a guard to be left behind here at the rancho. The women in the ranch-house are to be kept in their room, and no one is to enter. No harm is to be offered them. The younger one is to be my wife, you understand, and the elder must remain with her to keep her from being frightened.”

“It will be done, *señor*,” the chief replied, “though every man wants to join in the attack on the mission.”

“Say to those left behind that I’ll see personally they receive their share of any loot.”

“Very well, *señor*.”

“And now let us consider the plans for attack. It will be a task of some hours, but we want no mistakes!”

The caballero waited to hear no more. Step by step he withdrew from the wigwam and went back into the brush. One thought rang in his brain—no harm had come to Señorita Anita Fernandez and her *duenna*; they merely were being held prisoners.

It was more difficult getting back to the crest than it had been descending, and there was as much need for caution. Through the darkness the caballero fought his way upward, fearful of dislodging pebbles and starting an avalanche that would betray him, grasping carefully at projecting rocks and roots, straining his muscles while the perspiration streamed from his face and neck, urged on by the thought of the scant time he had for his purpose.

In time he reached the top, and for a moment was stretched exhausted on the ground, gasping for breath. Then he arose and walked slowly toward where he had left his horse, alert again, fearing discovery at every step.

He mounted and rode slowly around the base of the butte, and then across a pasture where there was no reflection from the fires in the cañon. He could

see the lights in the ranch-house, heard Indians screeching around it, and before one of the long adobe buildings there was a great fire where the hostiles were cooking.

The caballero estimated the task he had set himself to do, and strove to keep from feeling downhearted; for it seemed almost an impossible thing with a couple hundred hostiles scattered about the place. How was he to reach the house, enter it, rescue two women and escape again?

He stopped his horse in an angle of fence that protected the yard of the ranch-house from grazing herds, and fastened the animal there, then went forward afoot, keeping in the shadow of the nearest adobe building.

He was within half a hundred yards of the Indians about the fire, but they seemed to be giving all their attention to the preparation of food, trusting sentinels posted on every road and trail to give warning of approach.

He came to another horse tethered to the fence, a splendid animal belonging to the rancho. It evidently was being used by some chief or scout, for saddle and bridle were on it, and remembering that he would need a second horse, he untied the beast, led it back to his own, and fastened it again.

Then he went forward once more, this time swinging far out to one side and reaching a clump of palms planted long ago by Señor Fernandez for a windbreak. From there he could get a good view of the house. The patio was filled with Indians; hostiles were on the front veranda; they slept against the walls and roamed through the vegetable garden on the other side of the building.

A room in the front of the house was illuminated, but none except Indians were in it, and they seemed to be servants. To the rear was an additional half-storey, and here was another room with a light in it; and as the caballero watched the windows he saw a shadow cast on the curtains.

The draperies were heavy and of brocaded stuff, yet the outlines of the shadow could be discerned plainly. Here was no squaw or hostile brave—here was a white woman dressed in the mode of the times, and the shadow, passing and repassing before the window, told the caballero she paced the room in an agony of fear.

Now he stretched himself on the ground and began worming his way forward like an Indian, stopping every few feet to listen, keeping to the

shadows, ready to curl up and pretend to be asleep if any came near, hoping he would be taken for a sleeping hostile. Fifty feet from the side of the house he stopped, disheartened as he realised the futility of the plan. No human being could reach the house and enter without being seen, not with Indians scattered every few feet along the walls and others continually running back and forth from the veranda to the patio. He would have to resort to a trick.

But tricks were not easily planned under such conditions. No expedient could he contrive; every plan was rejected as being worse than useless.

He heard a commotion behind him, and realised that the hostiles were driving up the horses of the rancho in preparation for to-morrow night's raid. Two or three hundred head were in the drove now milling near the fence before the house. Cries of relief came from the herders as they sprang over the fence and hurried toward the house for wine and food; and relief came to the caballero as he crouched in the shadows, for now he believed the way was clear.

He slipped back to the clump of palms, made another circle, and so gained the fence, to climb it and slip along it silently until he came to bars directly before the ranch-house. Working swiftly to throw them down, he then slipped back again and circled the drove until he was behind the high-spirited, half-frightened animals.

He grasped pistol in one hand; zarape in the other. A moment of silence, then a shot, a screech, the snort of a frightened steed, the sudden crowding of those nearest him—then the drove was in frenzied fear—rearing, kicking, plunging—striving to flee from this unknown horror that had come behind them out of the night.

The leaders broke through the bars; the others followed. By scores they stampeded into the yard, carrying all before them!

Shrieking hostiles fled from the raging beasts; a chorus of cries came from the Indians scattered along the walls. Around the end of the building and into the patio itself the animals fled, crashing into the arches, stumbling across the fountain, tearing down vines and trees—flying menaces of hoofs and teeth that scattered gentiles and neophytes as a volley from troopers never would have done.

The caballero stopped beneath the palms to recharge his pistol, and then he slipped quickly to the wall of the house and the nearest window. The yard was clear save where mangled bodies of hostiles told of the horses' frenzy. Another moment—and the caballero was inside the house, standing in a dark room directly under the window where the shadow crossed and recrossed as a woman paced the floor.

## CHAPTER XVI

### THE WAY OUT

Hysterics were over, weeping at an end. Señora Vallejo now sat on the end of the bed looking straight before her, and on her face was an expression that told she was resigned to whatever Fate had in store for her, that pride and breeding and blood had come to her rescue and she would be craven no more.

She held the poniard their last visitor had left behind. None other had come; neither food nor water had been offered them. And until Anita Fernandez, her spirit broken, went to the window and called down to the patio, none would come, they knew; and Señora Vallejo knew, also, that Señorita Anita would die of starvation before she would give in and ask mercy at the hands of the man who had wronged her.

The *señora* watched as the girl paced back and forth, her hands clenched at her sides, suffering from shame and crushed pride.

“Will you not rest, Anita?” she asked, presently.

“How can there be rest for me,” the girl demanded, “when a man of our blood is doing this thing?”

“He is but a distant relative—very distant.”

“Were he a million times removed, yet he is of a branch of the Fernandez family. Whether this revolt is successful or not, always will it be said, in speaking of it, that a Fernandez was the instigator. It is not to be endured!”

“Yet we must endure it!” the *señora* replied.

“Would death wipe out the stain, I had not lived this long! Why did you take the poniard from me, Señora Vallejo? Give it me again!”

“Death would not prevent the revolt, *señorita*, and you are young to die.”

“And what remains but death? Would you have me take this man as husband—this man with his treasonable soul and bloody hands? Would you have me reign queen over a nation of ignorant savages, with a throne, sitting on a daïs of white men’s bones? How he lured us here, so we might not be hurt at the mission, so he could hold us until his nefarious work is done! What dupes we have been! If he wins, what hope is left? If he loses, how could I ever face the good frailes and the soldiers and other decent men again? Nothing but death is left—and even that will not wash away the stain!”

A sudden noise in the fireplace in the corner—not much of a noise, to be sure, but enough to be heard in the silence that followed the girl’s outburst. She stopped in the middle of the room, looking toward the pile of wood there. Señora Vallejo turned with fear in her face, and thus they remained, breathless, wondering if they were about to face a new horror.

Again the noise—as if a dagger were being used to pry the blocks of stone and adobe apart. Then a stone fell—and another—and then there was silence for a moment, while the *señora* and the girl gazed spellbound. The elder woman ran to the girl’s side and clasped her in her arms; her hand gripped the hilt of the poniard.

A third stone fell with a clatter. Again, silence. Then a head appeared, slowly, inch by inch, first the crown of black hair now covered with dust and soot, then a sooty brow, two piercing eyes, a moustache that looked absolutely disreputable now, a well-formed mouth that flashed open in a smile and showed two rows of even white teeth, an aggressive chin!

The two women scarcely breathed; their eyes seemed to be bulging from their sockets. Two hands gripped the edge of the fireplace, more blocks of adobe bulged, and the man himself stumbled into the room, bowing before them and throwing wide his arms as if to indicate the state of his apparel.

“*Señorita! Señora!*” he said, and bowed again, once to each of them.

“’Tis Captain Fly-by-Night!” the *señora* gasped.

“Such I am called, sweet lady. ’Tis unceremonious, I realise, to call upon ladies without being announced, especially when they are in a bed-chamber, and twice especially when a man enters by means of a fireplace that is none too clean. My condition desolates me, *señora* and *señorita*, but



circumstances are such that I am unable to appear before you properly shaved and dressed in clean clothing. I trust you will overlook the matter this once? It never will happen again—if I can prevent it.”

“You? Here?” The *señorita* had found her voice now.

“I do not wonder you have difficulty in recognising me——”

“Troubles are not heavy enough upon us but we must endure your presence?” she asked. “It is like Captain Fly-by-Night to affront women when they are unprotected, to offer violence——”

“Have I offered violence, sweet *señorita*?” he asked pleasantly. “Have I said or done what I should not?”

“Why are you here? Why do you crawl through the chimney like a thing of evil? For some good purpose?”

“Possibly; you may be the best judge of that. My purpose is to remove you from here—the two of you—and take you where there are neither traitors nor hostile Indians—to the mission, to be precise. I understand the close of another day will see siege and perhaps bloodshed at this same San Diego de Alcalá, yet it would be better for you to withstand the one and see the other than to remain at the Fernandez rancho. For surely you realise your situation here. If this revolt fails, as it will, you will be at the mercy of furious gentiles. If it succeeds—well, if it succeeds, you will at least be at the mercy of the traitor who caused it to succeed——”

The girl interrupted him again.

“You speak boldly of traitors, Captain Fly-by-Night. What about yourself?”

“You consider me one?” he asked.

“Is not the fact well known, *señor*? Did not word come from the Governor that your perfidy was discovered, and that you were to be taken dead or alive? Have you not been fugitive these two days past?”

“Ah, yes! His Excellency the Governor has, intentionally or not, caused me some annoyance by that same order. I must speak harshly to him when next we meet. It is true also that I have been fugitive and forced to use my poor wits to exist, with both soldiers and redskins trying to run me down or run me through.”

“So your Indians have turned upon you? You are a double traitor, perhaps. It was only recently I learned that this Rojerio Rocha, who—Heaven help me!—is of a distant branch of my family, is a renegade dealing with hostiles; and he as good as told me, here in this very room, that you also were a renegade, that you fought for leadership, since it was considered one white general was enough. I believe he intimated, too, that you fought concerning myself, regarding the question as to whose property I was to be after your plans had been carried out. ’Tis like Captain Fly-by-Night to heap these additional insults upon an unprotected girl!”

“This man you call Rojerio Rocha said all that, eh? Hah! How my blade will sing when we meet!”

“He expressed a wish to stand up to you again, I believe. ’Twere a pity you did not slay each other!”

“When next we meet my blade shall do more than pierce his shoulder, *señorita*, I promise you.”

“Almost could I forgive your baseness and your cruel boasts concerning myself, if you did that! Almost could I forgive your treason if you took the life of the man who has put the stain of disloyalty upon our name!”

“You speak freely of treason, *señorita*. I am no traitor.”

“You—no traitor?” She threw back her head and laughed loudly, scornfully.

“May I suggest that you lower your voice?” he queried. “If you bring hostiles into the room all my plans will have gone awry.”

“Your plans, *señor*?”

“To remove you and the *señora* to the mission, *señorita*.”

She dropped the *señora*’s arms from about her and took a step toward him, and again her hands were clenched at her sides and her eyes blazed.

“Do you think I would stir a step from this place with you?” she demanded. “Do you think I trust you? Do you imagine you have skill enough, if I were willing, to get two women out of this house, put them in a carreta and drive them to the mission—when the roads are watched, when there are plenty of horses and ponies here for hostiles to use in chase?”

“’Tis a difficult proposition, I admit, yet I think it can be solved successfully.”

“Leave this house with you?” she stormed at him. “Go to the mission? How could I look a fray in the face again? How could I even speak to my good padre? How could I go to the presidio, where the soldiers were wont to call me the regiment’s daughter? ‘Daughter of an accursed family that spread murder and robbery throughout the coast country,’ they would say now. Here I am, Señor Fly-by-Night, in the home of my father, with his good name besmirched by a traitor, and here I remain, hoping death will come quickly, even before I know whether this treasonable plot succeeds.”

“The task will be more difficult than I had imagined,” quoth the caballero.

“Go with you? Trust you?” she went on. “To what purpose? You would steal me from this Rojerio Rocha, eh? A pretty pair of rogues!”

Now he walked swiftly to her side and looked down into her blazing eyes, and when he spoke it was in a voice she never had heard before.

“*Señorita*,” he said, “I swear to you by all the saints, by my dead mother’s honour, by whatever you will, that I mean you no harm, and that my sole object is to rescue you from this place and take you to the mission, there to hand you over to your padre. I have come here to-night at much risk, since both white and red men seek me. I have used subterfuge and device to reach you safely. And you must allow the rescue!”

Señora Vallejo would have spoken, but he silenced her with a wave of his hand and looked at the girl again.

“And I say to you I am no traitor, *señorita*,” he went on. “Never have I raised my hand against His Excellency the Governor, never have I conspired with Indians. In time, things may be explained; for the present I ask you to believe me.”

“Yet you are Captain Fly-by-Night—gambler, swindler, wronger of women!”

“Which has nothing to do with this present rescue.”

“Save this,” she added, quickly, “that Señorita Anita Fernandez does not trust herself with Captain Fly-by-Night, no matter what the circumstances.”

The caballero sighed and turned on one heel to walk back to the fireplace, there to stand for a moment in thought.

“It is, in a word, a difficult proposition,” he confessed. “Here I am in this house after having difficulties, trying to be a hero and rescue a damsel in distress, also her *duenna*, and the damsel refuses to be rescued.”

“Then depart as you came!” the *señorita* said.

“The damsel,” he went on, scratching his head and not even looking at her, “does not fully appreciate the condition of things. She does not realise in other words, what is for her own good in this matter. The *duenna*, not having spoken, naturally leaves things to the caballero——”

“I remain here, Captain Fly-by-Night,” Señora Vallejo interrupted. “And do you show what small spark of manhood you may have left by quitting these women’s quarters, where you are an uninvited guest.”

“Excellent! Always insist on the proprieties, even with half a thousand red wretches within call ready to commit every crime known to man!” the caballero replied. He looked up suddenly, and the women were frightened at the expression that now came into his face. “You, *señora*, and you, *señorita*,” he went on, “say you know my reputation as Captain Fly-by-Night. Suppose I say to you, then, that I am a desperate man, that we are done with pleasantries, and that you must do as I say or expect violence? You understand me, do you not? I am done with playing. Now you must obey!”

His voice was stern as he bent toward them and volleyed the words. His eyes seemed to flash in rage, and with two strides he had reached the head of the bed, and tore from it a scarf Señorita Anita had worn, and turned to approach the girl.

His movements were so swift that there was no time for the woman to act. He grasped the girl around the waist, and with the scarf he stifled her scream of fright in her throat.

“Not a word from you, either, *señora*!” he commanded; and began winding the scarf around the girl’s head, so that she could make no sound. He picked her up, then, and carried her to the bed and put her upon it, and in a moment had torn the bed covering to strips and tied the girl’s hands behind her back

and fastened her feet together. Two frightened eyes looked up at him, a low moan came from her, but that was all.

Señora Vallejo was crouched by the fireplace, half stunned with fear, clutching at the poniard. He whirled upon her and she opened her mouth to scream; but he reached her side in time to clap a hand over her lips and choke the scream back into her throat. Once she struck at him with the poniard; and he laughed lightly as he grasped her wrist, took the weapon from her, and placed it in his belt beside his own.

“Listen, *señora!*” he said. “You will do as I say in everything, without making the least sound, for, by all the saints, if you as much as utter a gurgle I’ll slit your throat like I would a rabbit’s. You understand me, *señora?* I am master now. Let fear paralyse your vocal cords if you would save your life!”

He hurried back to the bed and picked up the girl, then strode to the fireplace again.

“In you go, *señora!*” he ordered. “’Tis but a drop of six feet, and though there is dust and soot it will not harm you. Drop straight into the darkness, and when you are at the bottom stand still. And not a gasp, else your blood will mingle with the soot!”

“I—I can’t!” the *señora* gasped.

“Then will I be saved trouble by slitting your throat and leaving you here! Down, *señora!*”

Trying hard to stifle her sobs of fear, the bulky *señora* placed her feet in the hole and slowly lowered herself until her head was on a level with the floor. There stopped, with eyes bulging, until the caballero made a motion with the poniard. And then she let go and dropped, to fall with a thump at the bottom of the chimney in a shower of soot.

The caballero listened a moment, until he was sure nobody on the floor had been attracted by the sound, and then he lowered the girl down the chimney, and followed to stand beside the *señora* in the darkness.

“The window!” he whispered. “Allow me to say, *señora*, that we are going through the window to the yard, then across the yard to the fence, where I have horses waiting. I advise you to move silently and listen for my orders,

and obey them, for the least slip will mean discovery, and that will mean a quick journey for you to a land where there are neither hostiles nor neophytes—let us hope! The window, *señora*!”

“I—I cannot!”

“Then you will be found here on the floor with a slit throat! I am not a man to be trifled with, I assure you! And as for saying that you cannot, a person can do many impossible things when death is behind them and gaining steadily. The window, *señora*!”

The caballero looked out first to see that the coast was clear. There were no Indians on that side of the house now. The majority of them were in pursuit of the fleeing horses, following the stampede, and others were in the patio discussing what had caused the animals to become suddenly insane with fear when it was apparent to all sensible persons that there was nothing of which to be afraid.

He stepped back and motioned to the *señora*, and she began the task of getting through the window and to the ground below, finally falling with a grunt to the sward. In an instant the caballero stood beside her, with the *señorita* in his arms.

The *señora* was guided by whispers now, but they were accompanied by such direful hisses that she continued to tremble with fear. Each instant she expected to feel steel pierce her back, thinking the caballero but awaited an excuse to put her out of the way, and so carry off the *señorita*.

They reached the clump of palms and rested there for a moment while the caballero listened to the sounds that came from the black night about them. Then they went forward again, slowly, careful to make no noise.

Now they had reached the fence, and because of the caballero’s whispered threats the *señora* managed to climb it. They came to where the horses were tethered, and there the caballero commanded silence while he listened again, fearing someone might have found the horses and was waiting to see who would claim them.

“That steed will be yours, *señora*,” he said, pointing it out.

“I cannot ride,” she moaned.

“Then here is where you acquire that accomplishment, *señora*, else here is where you die. It desolates me that there is not a lady’s saddle on the mount, but it was impossible to provide one. However, the night is dark——”

“Ride a man’s saddle? Never!” the *señora* gasped.

“Then I am quit of one trouble, and the horse will not be needed, since I mean to carry the *señorita* on mine.”

“Ah, *señor*, for the love of the saints——”

“Mount, *señora*! Up, as I aid you! We cannot remain here until dawn!”

In imagination she saw him reach toward his belt, and fear gave her strength. Señora Vallejo got into the man’s saddle, and bent forward to grasp the horse’s mane, feeling as much fear for the animal as for the man.

“Do not strangle him, *señora*,” the caballero suggested lightly, and sprang into his own saddle, with Señorita Anita before him.

The girl had ceased moaning some time before, but the caballero did not remove the scarf. Though he could not see because of the darkness, he sensed that her eyes were flashing angrily and that yet she did not trust him fully, did not believe he was making this rescue in good faith.

He urged his horse forward, and bent over to catch the rein of Señora Vallejo’s animal, and so moved away from the fence, guiding his own mount with his knees, holding the girl and leading the steed that the *señora* clutched violently by the mane, expecting every moment to be hurled to the ground.

They made a great circle, getting a butte between themselves and the rancho, and then the caballero urged the animals into a trot. No fear of death could stay Señora Vallejo’s tongue then. Two shrieks came from her throat in quick succession so like Indian wails that the caballero thanked his saints nobody would be attracted by them. But he felt called upon to stop the horses and make a statement.

“Another chirp like that, *señora*, and your body is found here in the pasture at daybreak,” he warned. “Clutch the horn of the saddle and leave the animal his hair. Bounce, if you will, but do not scream.”

And he started the horses again, and the *señora* bounced, and though she screamed no more, yet she breathed ladylike imprecations upon the caballero and all horses, no matter of what breed. Faster and faster he urged the steeds, until the *señora* was in a panic of fear, had given up all hope and expected death momentarily beneath the horse's hoofs—but clung on, nevertheless.

Now the caballero stopped and listened, and then began unwrapping the scarf from the *señorita's* head. She gave a gasp as it fell away, a sob, another moan.

"*Señorita!*" the caballero said, and his voice was soft again.

"*Señorita*, will you not speak to me and say that you forgive? There was no other way, believe me, for you were so determined. You did not trust me, and time was short and the danger great. It was to save you."

"From one shame for another?" she asked.

"Not for all the world would I wrong you, offer you harm, hurt your feelings!" he said. "You do not understand, *señorita*. Back there at the rancho there was naught but danger for you, no matter what the outcome of this revolt. It is better you are at the mission with decent people, and there I am taking you now. It were better to die there, *señorita*, with your *duenna*, and go to death unsullied, than to live and be at the rancho when this revolt is over."

"Unsullied!" she cried. "How can that ever be now, since Rojerio Rocha has done this thing?"

"I would not dwell on that, *señorita*, at the present time. The night is passing, and we must hurry on to the mission, and we can make none too good time considering the *señora's* horsemanship." She was sure there was the sound of mirth in his voice. "I ask you only to trust me for the time being, and to do one other thing—when the fighting begins at the mission, repair to the guest house with your *duenna* and remain there, despite any orders to the contrary. Do this, and I swear you'll never meet death at the hands of hostiles."

"How can you promise that, when you dare not approach the mission or presidio yourself?" she asked.



“Trust me, and ask no questions.”

“I cannot forget you are Captain Fly-by-Night. It is almost an insult to be rescued by such a man.”

She felt his hands grip her for an instant, then the pressure of them relax, and to her ears came a whisper so low that even Señora Vallejo could not hear.

“*Señorita!* Since first I saw you I have longed to hold you in my arms as I am doing now. Since you taunted me down by the creek I have loved you. You are mine, though you think it not. And do not now speak of insults, else will I crush your red lips with mine! What I have been, or who, or what or who I am now—still I love you as a strong man loves, with my whole heart—and for you I would gladly die if it would save you pain.”

He started the horses again, since she did not answer. Neither did she struggle to get from his arms, as he had expected she would do. For half a mile they rode in silence, carefully, making their way over the hills toward the mission, avoiding all roads and trails. And then, suddenly, two arms slipped around his neck to pull down his head, and a voice breathed into his ear:

“Prove your words, Captain Fly-by-Night. I am motherless, fatherless, and the man who was to have been my husband has cast shame upon my family. There seems just now no future for me among reputable persons. Who am I to taunt you with your past and reputation—I, daughter of a family of traitors?”

“Do not speak so, *señorita!*” he said.

“I do speak so! Perhaps you are more the man than I have thought. May I put you to the test?”

“Gladly will I stand it!” he said.

“Then prove at least that you will help remove this stain on our family name. Prove that you are not partners with the man who put it there. Prove that, though outcast at present, and pursued by white men and red, you are a loyal man. Do one thing for me, Captain Fly-by-Night, and I will try to think better of you, and I will go on to the mission freely and remain in the

guest house looking to you for help, as you have suggested. I can promise nothing more, but, if this much will content you for the time being——”

“Name what it is you would have me do, *señorita!*” he said.

“A thing that perhaps you will not dislike. Kill me this Rojerio Rocha!”

## CHAPTER XVII

### “PERSPIRATION, SEÑORITA!”

As she spoke he had imagined a score of things she would ask him to do, but never this. He realised by her words and the tone of her low voice how the girl had been struck to the heart by the thought of a member of her family—no matter of how distant a branch—turning traitor and renegade.

There had been a quality of vehemence in her sentence that had struck him like a blow. Unconsciously he started, and unconsciously his heels swung back and his spurs dug into the flanks of his horse. The movement was mechanical; he had seemed to try to dodge her sentence as he would have touched his steed to dodge the blow of a mounted swordsman.

With a snort of fright at this unexpected and unmerited severity, the horse sprang to one side, almost unseating its rider and hurling him and the girl to the ground. The animal Señora Vallejo rode reared suddenly, and the *señora* gave a shrill screech and tried to clasp her steed's neck. But the unexpected application of spurs to his mount saved the caballero's life, perhaps, for even as the horse sprang a musket spoke and a bullet whistled past uncomfortably close, and an Indian sentinel's shrieking challenge came out of the night, to be caught up by another far to one side, and by still another, until it seemed that they had ridden into a hostile camp.

The caballero clasped the *señorita* closer and galloped madly after the horse the *señora* rode, for the woman was shrieking in her fright and the caballero was afraid she would be thrown and injured. Another musket spoke from a thicket as they flew past, and for an instant the caballero loosened his grip of the reins and swayed forward in the saddle, but almost immediately he sat straight again and peered ahead, trying to locate the other horse.

The footing was secure here where the ground was comparatively level, and soon he rode beside the other steed and reached out to grasp the reins. Gradually he forced both animals to a canter, finally to a walk.

“It desolates me to think you have sustained fright, *señorita*, and you, *señora*,” he said. “Luckily the horses sensed our enemies and galloped of their own account, else one or more of us might be slain, wounded or prisoner now. That was the last outpost of the hostiles, I imagine; nevertheless it will repay us to move with caution the rest of the distance. ’Tis but another mile to the mission, and soon we will be in the midst of their sentinels, if they have any out. One force is as dangerous for me as the other.”

“I doubt whether I can ride the other mile,” said the *señora*, gaspingly. “Do you ride on and save the *señorita*; if the hostiles catch me I shall die as becomes a woman of my blood.”

“You’ll die immediately with a slit throat if you do not ride on!” the caballero announced, angrily; and the *señora* moaned and rode on; only the *señorita* detected the note of amusement in the caballero’s voice.

They had come out upon the highway now, knowing that no hostile would be there so close to the mission, and the caballero slowed the horses to a walk again, letting the eager *señora* ride a few feet ahead.

“Some minutes ago you asked me a question, *señorita*,” he said. “Rather, say that you issued a command. So you would have me slay this Rojerio Rocha?”

“He should pay the penalty for the infamy he has cast on our name, *señor*. And you would like to slay him anyway; you have said so yourself.”

“I am making a point of that, *señorita*—am I slaying him for you or for myself?”

“I care not, as long as he is slain. I would you could do it before the attack begins! Yet you do not seem eager to aid in saving the good names of Fernandez and Rocha, it appears. Is it true, then, that you both are leaders of the Indians, but jealous of each other’s leadership?”

“I have told you I am no traitor, *señorita*.”

“Casting a stain upon my name is not enough cause to have you kill a man, then?”

“The man has done enough to merit death, no doubt.”

“If that is not enough, there is more—a personal insult.”

“Personal insult, *señorita*?” he asked.

“He—he told me that after the attack had succeeded he would make me his wife. When I told him I would sooner die than wed such an infamous traitor he said—said that I would come to him, marriage or no marriage——”

“By the saints! He said that?” the caballero cried. “Is there no drop of gentle blood in his veins?”

“My blood, *señor*,” she reminded him.

“No more your blood than the water of that creek, *señorita*. Do not protest! I know not what strain flows in his arteries, but it is none like flows in yours. The man dies, *señorita*. I regret but one thing—that I cannot slay him twice, once for you and once for myself. He has a heavy score to be settled, this man!

“But here we must stop. It is but two hundred yards to the mission, and I dare not approach nearer. Moreover, I have things to do before dawn. May God and the saints guard you, *señorita*, and you, *señora*, during the trials that are to come. I regret that you’ll have to dismount, else ride with the *señora*——”

“Gladly will I walk the remainder of the way,” Señora Vallejo said, “if you will aid me to the ground. I doubt, however, whether I can use my legs for several minutes.”

“Walk slowly up the roadway,” the caballero instructed. “You will meet guards, no doubt. If they challenge, you must answer immediately and inform them of your identity. I will try to attract their attention when you have gone a little way, and let them know you are approaching.”

He helped the *señora* to the ground, then returned to his horse and reached up for the *señorita*.

“You have not untied my feet and arms,” she reminded him.

“*Dios!* That I should have forgotten that! Can you ever forgive me, sweet lady? So many things have happened lately that I am beginning to have a poor memory.... There! Take a step or two to restore circulation. Hold to my arm——”

“Your arm is wet!” she exclaimed.

“Perspiration, *señorita*. There—I think you can walk now. Remember what I have said—remain in the guest house when the attack begins, no matter what others may wish you to do. As for this man who insulted you—he shall pay the price. *Adios, señorita!*”

He carried her hand to his lips and kissed it, though she made futile effort at withdrawal.

“*Adios*, Captain Fly-by-Night,” she said; and disappeared in the darkness.

The caballero waited until the sound of the women’s footsteps had died away, then he mounted his horse again, took out his pistol, and fired into the air. A quick challenge came from the distance.

“Attention, *señores!*” he called. “Do not fire at the roadway—Señora Vallejo and Señorita Fernandez come!”

An exclamation of incredulity answered him; he heard Anita calling in her own voice; then he slapped the horse Señora Vallejo had ridden and sent it back up the road, and swung his own mount toward the hill.

““*Señor*, your arm is wet,” he mimicked. “By the saints, that was rare indeed! ‘Perspiration, *señorita*,’ said I. Hah! Excellent—if it was not so inconvenient—and painful!”

---

In the guest house a few minutes later Señorita Anita Fernandez happened to glance down at her hand. She gasped in surprise and understanding when she saw blood on it.

## CHAPTER XVIII

### FOES IN WAITING

A grey dawn came that morning to San Diego de Alcalá, for the heavy fog hung like a pall over the valley, rolling in great billows against the hills. The mission bells rang, and into the church trooped frailes, soldiers, ranch owners, loyal neophytes, none appearing more devout than those same soldiers whose license and cruelty had done much to make the Indians dissatisfied and undo the work of the frailes. Collectively they may have been a boisterous, fighting, drinking, gambling lot—but individually they were properly religious.

The *comandante* had taken charge and done everything possible in preparing the defence. It had come to a question of deciding between presidio and mission, for there were not men enough to defend both. It was a question, too, which the hostiles would attack first—the presidio offered arms and ammunition, food and wine; the mission offered more loot. Did the savages have greater hatred for the soldiers or the “long gowns”?—that was the question the *comandante* would have liked to have had answered.

Sergeant Cassara, pacing the plaza after service, pulled at his long moustache and waited for his officer to appear. There were some things Cassara had not fathomed. With his own eyes he had seen the savages take Rojerio Rocha to the house at the rancho, and he knew that the women had been there. And now, so he had been told, both women were back at the mission, and unharmed. This was something new in Indian warfare.

The *comandante* came from the church, two of the older frailes with him, and went toward the padres' quarters, Cassara falling in behind. Since there was no other officer here, Cassara, by virtue of his long experience, had been appointed a temporary second in command.

Inside the building, with the door closed and a man on guard outside to prevent interruption, the frailes sat down at a long table, the *comandante* at

the head of it, Sergeant Cassara at the foot. There was silence for a moment, and then the lieutenant lifted his head and looked down the length of the table, ignoring the frailes and gazing straight into Cassara's eyes when he spoke.

"Ensign Sanchez of Santa Barbara is due this morning with twenty men, unless he has met with disaster on the highway. I understand from the courier who arrived late last night that Sanchez has picked up some good fighters along the way, especially at Reina de Los Angeles, where the old pirate, Gonzales, now a godly man, and some of his cronies joined the standard."

"Give me a score of men like this Gonzales and we sweep the hostiles into the sea!" Cassara exclaimed.

The lieutenant rebuked him with a glance, and the sergeant, his face flushing, turned to look through the window.

"Not a man among us but is worth a dozen Indians," the *comandante* went on. "Yet we are not more than a hundred if Sanchez arrives in time. We can expect no help from San Luis Rey de Francia—on the other hand, Sanchez may see fit to leave a part of his force there. Two hundred good men are coming south with the Governor, who has taken care of things in the north and now hopes to stamp out the rebellion here. But they cannot arrive for perhaps two days more. *Señores*, we must hold out until then! And my scouts report that the savages number at least a thousand now, and are well supplied with arms and ammunition."

No man made answer; there seemed no answer to make. The *comandante* had stated the gist of the matter, and it was for him to make any decisions he wished.

"Is it to be the presidio or the mission?" a fray asked, after a time of silence.

"The mission," the *comandante* said. "I have decided that. I am having arms and ammunition moved here from the presidio."

"I thank you, *señor*," the fray returned. "We would rather die on the steps of the church, if we are to die in this manner."

"Now who prates of dying?" Cassara burst out. "Is this a council of war or a funeral? If we are going into this fight already whipped, then I mount my



horse and trot up to San Luis Rey de Francia in search of men of spirit!”

“Peace, sergeant!” the *comandante* cried. “There will be fighting enough! I believe all our plans are made, *señores*. It desolates me to think we have not sufficient force to make a sally and carry the fighting to the enemy, but we dare not risk it. The renegade who commands the hostiles probably has prepared for that.”

“And what renegade commands?” Cassara desired to know. “Name him, for the love of the saints, so I’ll know him when we meet face to face!”

“The matter appears to be undecided,” returned one of the frailes. “We had thought this Captain Fly-by-Night was the renegade, and think so yet, knowing his character, but it seems the Indians have turned against him \_\_\_\_\_”

“Or have pretended to turn against him and are playing a deep trick,” Cassara interrupted. “What has become of the scoundrel?”

“’Twas he fetched the women back to the mission unharmed,” the *comandante* replied.

“*Dios!* ’Twas he? Will someone explain this business?”

“Señora Vallejo appears to be on the verge of hysterics and will say little,” a fray responded, “except that this Fly-by-Night invaded a room occupied by the women at the rancho, and forced them to accompany him. He conducted them here in safety. His object in so doing is not known fully.”

“Hah! And this Rojerio Rocha—what became of him?”

“I can learn nothing from the women regarding Señor Rocha, except that Señorita Anita gasped out he is still at the rancho, and that it is too horrible to mention. The hostiles are holding him for torture, perhaps. There is deadly enmity between Señor Rocha and Captain Fly-by-Night.”

“Hah! Is there, by any chance, a possibility that this Señor Rocha himself is a renegade and leads the hostiles?” Sergeant Cassara demanded.

“*Señor!*” the fray cried. “Rojerio Rocha is of a distant branch of the Fernandez family, heir to the old *señor*, and is to wed the Señorita Anita. Moreover, I happen to know that he is a personal friend to the Governor.”

“The trunk of a tree cannot always control its branches,” the sergeant observed, “and most certainly cannot prevent any foul bird from building nest in them. That is a deep saying—eh, fray? Ponder over it while you are waiting for the fighting to begin.”

“I think your suspicion is an injustice,” the fray returned. “It is more likely this Fly-by-Night has held Rojerio Rocha for torture, since he knows Señor Rocha is expected to wed our Anita, and he himself has made boasts that he would win her.”

“At any rate, this Captain Fly-by-Night is a clever rogue,” the sergeant declared. “Hah! I have a score or two to settle with that fine caballero when next we meet!”

“And I!” the *comandante* added.

“May the saints give him to my blade!... Is there more to be done before the imps of Hades descend upon us?”

A fray reported.

“I have had all water casks filled, as was ordered, for human use and to fight fire. There is not a break on the four sides of the plaza except at the end of the adobe wall; and there we left room for Ensign Sanchez and his men to enter.”

Cheers came to them now from the plaza, and the sergeant rushed to a window, then whirled toward the others with a glad cry.

“Sanchez has come!” he shouted. “And that dear pirate of a Gonzales is with him. Now bring on your gentiles and disloyal neophytes and your renegades and your Captain Fly-by-Night! Hah! My ensign has come!”

He ran to the door, hurled it open, and sprang out into the plaza, his sword clattering at his heels.

“Hah! I am myself again!” he roared. “Ensign I salute you! Comrades, it is a treat to see you again! How like you El Camino Real in haste, eh? Gonzales, good pirate, come to my arms!”

They laughed as they surged forward and around him, slapping him on his broad shoulders, grasping at his hands, crying jests and strange oaths at their happiness in seeing him again.

“Look around you, comrades!” the sergeant invited. “What you see you like, take it! While our ensign greets the *comandante* here—a fine fellow, by the way, but not quite up to our Santa Barbara standard—I’ll show you what has been done in the way of defence. There is a corner from where a man can command the slope——”

Gonzales interrupted him with a slap on the back so hearty that it took away the sergeant’s breath.

“A truce to your blabbing!” cried the former pirate. “Thrice have I opened jaws to ask a question, and always you spoke again before I could have a word. Where is this precious Captain Fly-by-Night? If already you have slain him, then—by the saints!—I’ll have at you myself! Hah! Where is the rogue?”

“Ah, wouldst see Captain Fly-by-Night?” the sergeant asked. “A rogue, is he? Now when did he cross your path, good pirate? Is he your friend or foe?”

“Is he? There’ll be one sergeant less for the hostiles to combat if you dare intimate the man to be friend of mine! A pretty scoundrel! Where crossed he my path? Hah! Like a whirlwind he descended upon the pueblo of Reina de Los Angeles one night, as you know very well, Cassara mine! ‘Fray Felipe of San Fernando says I am an honest man, and that you are one,’ he states. ‘I would sleep until an hour before dawn,’ he states. ‘You will care for my animal and give me a couch and food?’ he states.”

“I dare say he got what he requested,” Cassara put in, trying to choke back a laugh.

“Did he? The rogue! Did I not sit up all night, musket in hand, pistol at belt, sword ready, to guard the wretch? Did I not have my Indian prowling around the house alert for sneaks? Did I not rub down the scoundrel’s horse? And in the morning did I not ride with him a short distance on his way and give him my blessing? Hah! ‘These are turbulent times,’ I suggested to him. ‘So I have understood,’ he states. ‘Perhaps you think me a man I am not,’ he states. To my face, the rogue! And, in my wisdom, I wink one eye and slap him on the back and send him on his way. *Dios!*”

“We all make mistakes,” Cassara observed.

“He warned me of another traveller, and I play with this same other man and lose good gold, seeking to delay him. I do delay him—to find I have hindered the Governor’s good messenger and given aid to the renegade. And you ask me why I want to see him? Hah! Where is he to be found?”

“Answer me that, good pirate, and I bless you! My blade waits for him!”

“After I am through,” Gonzales suggested.

“I have first claim,” Cassara declared.

“The man is mine, I say. If he dares show his face, all must stand aside and let me at him!”

“Hah! Stand aside for you, pirate?” Cassara cried. “Captain Fly-by-Night comes to me, and I would have all men know it!”

“Now, by all the good saints, this passes a jest! I say the man comes to my blade. Have I not the better right?”

“There are three of us,” Cassara said. “The *comandante* here at San Diego de Alcalá has a score to settle with the rogue. Yet I think I shall spit him \_\_\_\_\_”

“By what right? Wherein has he put shame upon you?” demanded Gonzales.

“Hah! As to that——”

“Speak, Sergeant Cassara, and let these men judge. Why have you the better right?”

Cassara’s face grew purple suddenly, for there came to him a vision of the barracks-room at the presidio, himself and two soldiers bound hand and foot and fastened to stools, a grinning gentile watching them—while Captain Fly-by-Night slept in an adjoining room.

“Let the men judge!” Gonzales was shouting.

Cassara choked in embarrassment. Tell the outrage this Caballero had put upon him—tell it to the grinning troopers? A courageous man was the Santa Barbara sergeant, but not courageous enough for that.

“I fight you for him!” he roared, and started to draw blade. Nor was Gonzales a bit backward. In an instant their swords had crossed, in another

they would have been at it. But Ensign Sanchez, who had come from the guest house with the *comandante*, interposed his own blade and separated them.

“A truce to such quarreling!” he ordered. “This Fly-by-Night is my quarry, *señores*! He is to be left to me, I would have all men know. Did he not make a dunce of me at Santa Barbara? ‘Can you conceive a reason why a gentleman might not want his name shouted for all men to hear?’ he asked. ‘You know the state of the times, I take it.’ Hah! Did I not wine and dine him? He comes to my blade!”

“Now, by the saints! If this rogue appears at any of the four points of the compass, he meets a *señor* awaiting him!” Cassara said. “’Tis to be a matter of luck, then.”

A fray entered the conversation.

“Were Rojerio Rocha with us, no doubt he would want to claim this Fly-by-Night,” he said.

“Rojerio Rocha had his chance at him,” Cassara replied.

“And did not you?” Ensign Sanchez demanded. “Did he not stand up to you at Santa Barbara?”

“Devil and Hades!” the sergeant cried. “I shall go mad! Hah! May the imps of evil, even, pity the scoundrel when I meet him! The more I think of it—Juan and Claudio, eh? Hah! Play cards for a mule? ‘Not that pack of cards, *señor*,’ the wretch says. ‘This is to be a game of chance, not of skill,’ he says. Fury! ‘Do you keep up your fencing practice,’ he says. *I shall go mad!*”

Cassara swept his naked blade in a great circle at arm’s length, and the others sprang out of his way roaring with laughter. Across the plaza stamped the irate man, stopping before the store house to lift a water jug and drink deeply.

And then a neophyte stopped before the *comandante* and ensign and bowed respectfully.

“*Señores*,” he begged, “allow me to say it is an easy matter to settle this quarrel. I am Pedro, servant at the guest house, and I swear by the saints I am a loyal neophyte and ready to die for the frailes and the *señores*.

Moreover, I have been servant to the Señorita Anita since she has abided at the mission——”

“But the quarrel, man! How settle it?” laughed the *comandante*.

“This Captain Fly-by-Night boasted concerning the *señorita*, thus insulting her; did he not? Do you four *señores* fight bravely against the others—and let me kill this Fly-by-Night!”

A roar of laughter answered him. He bowed again, but did not turn away, and they saw he was sincere in his request.

“This Fly-by-Night appears to be loved with an enduring affection,” Ensign Sanchez said, sarcastically. “I suppose we must leave the matter to chance, and each of us pray the rogue falls to his blade.”

## CHAPTER XIX

### CASSARA SEES A GHOST

Men spent the afternoon in boisterous revelry, for all preparations to withstand a siege had been made and they awaited the attack, but they grew silent toward evening, pondering over what might occur.

Their nervousness was apparent. Scarcely one inside the plaza but had participated in outbreaks before, and scarcely one that had not sustained wounds. But other revolts had come unexpectedly, as rain from a clear sky, whereas this was anticipated, of much moment, and naught could be done to prevent it.

Dusk came, and a heavy fog rolled up the valley from the distant bay to grow heavier as the hours passed, and shut out moon and stars. Not a light was to be seen in any of the buildings at the mission; not a torch burned on the plaza.

Soldiers were at their stations, whispering to one another, striding back and forth nervously, fumbling at their weapons. Frailes prayed in the church. Trusted neophytes carried water and cold food, and stood by to handle ammunition when the time came.

Scouts had been sent out—a small number, since the defenders of the mission were limited, but experienced men, both white and red, who could be depended upon. A mile from the plaza, on every side, they watched for the approach of the foe, ready to sound the warning and then make their way in to aid in the defence.

Hour after hour passed without event. The *comandante* and Ensign Sanchez paced the plaza praying for action, knowing their men could not endure the suspense much longer without giving way to their feelings and violating orders as to silence.

In the guest house, Señora Vallejo was upon her knees like a pious woman, and Señorita Anita stood beside a window looking out at the dark night, biting her lower lip, clenching her tiny hands, and thinking of the shame upon the name of Fernandez.

She half regretted that she had not come out openly and told her padre the truth concerning Rojerio Rocha; yet she had not, hoping against hope that something would occur to prevent his perfidy becoming known. Perhaps his Indians would turn upon him and everyone think he had died a loyal man. Perhaps Captain Fly-by-Night would perform the service he had promised, and let the soul of Rojerio Rocha from his body before he actually had engaged in shedding the blood of good and loyal men.

Sergeant Cassara and Gonzales appeared to be the only ones at the mission not bothered by the waiting. They sat against the adobe wall in a corner, speaking in whispers of other uprisings, jesting at times, Gonzales recalling the days of his piracy and Cassara making envious comments.

Midnight came, but no alarm had been given. Not a sound broke the monotonous stillness of the night, yet the quiet was in itself ominous. Frequently the *comandante* and ensign stopped their pacing to look toward the north, in the direction of San Luis Rey de Francia, wondering what was transpiring there, half fearing to see the glare of flames through the fog, conjecturing as to the whereabouts of the Governor and his force.

Then a shot—far distant, toward the south! In an instant every whispering voice was stilled, every man was on his feet holding weapons ready. Just the one shot, and then the ominous quiet again! Had some scout fired at a shadow, at some animal moving over the ground? Or, had he gone down to a quick death as the shot was fired, and so could give no further warning?

Ten minutes passed—then another shot came, this time some distance to the right of the first. It was answered by shrieks from half a hundred throats, shrieks there could be no mistaking. A score of shots sounded now, and the cries increased in volume.

At the mission there was many a sigh of relief—inaction and uncertainty were at an end. Sergeant Cassara got up from the ground, took a hitch at his belt, and turned toward his friend.



“Well, old pirate, let us get to our gruesome business,” he said. “A plague on these hostiles who have no better sense than to assail men of our standing and courage! Many I shall kill presently who would have lived many years had they not listened to a renegade. You take the left side, Señor Gonzales? Very good!”

Now the scouts were running in, closely pursued, and scattering shots came from three directions. Yet the scouts stopped long enough to give the first surprise.

Around the mission at nightfall great heaps of dry grass and wood had been piled, and now the men running to the protection of wall and buildings stopped on their way to set these piles afire. Instantly the flames sprang up, illuminating the ground for a great distance; and in the glare half-naked forms were revealed.

Gonzales fired the first shot, and a hostile fell. A trooper cheered. A bedlam of sound answered him. And then the roar of musketry broke out, and the battle was on.

Charging redskins scattered the dangerous fires as they advanced, scattered them so that the flames licked at the dry grass and spread in a great circle around the mission, giving the defenders greater advantage than they had enjoyed before. The shrieking horde seemed to be advancing from every side, oblivious of their losses. Volleys of musket slugs were rained against the wall and against the buildings. Clouds of arrows fell.

But the defenders, settled now to their work, spent no time in cheering, but shot methodically and with good aim, cutting down the number of their foes, crying now and then for ammunition, urging on comrades in quiet tones.

A hundred of the thousand hostiles met death in the first half-hour of the attack because of the fires that had been set. But the nine hundred others rushed on, urged by their chiefs, charging to the very walls, hurled back again and again, but always returning to the charge. Now the ground was dotted with dead and wounded men.

Inside the plaza frailes were busy at surgery, for the defenders had not escaped unscathed. Firebrands had been thrown and extinguished. The first impulsive, enthusiastic attack had failed.

The hostiles drew away, and the fires died out, and the darkness descended again.

Now those inside the mission strained eyes to see and ears to hear, trying to find shadows in the darkness, firing now and then where it was believed an enemy lurked. Every foot of the high adobe wall was watched by keen eyes. The quick rustling of a bush in the wind was the signal for half a score of shots. And the only answer was silence—a menacing silence charged with promise of death.

An hour passed, during which soldiers felt their nerves at the breaking-point. Then a chorus of shrieks assailed their ears, coming from a corner of the plaza. A sudden rush, a fusillade that took toll of the defenders, and then a hand-to-hand conflict where muskets were dropped and knives and pistols used!

“Hah! Come on, hostiles!” the voice of Sergeant Cassara roared. “Have at you, followers of a dog renegade! Charge, will you? Cross blades with a sergeant of Santa Barbara, eh? There, hound! There, cur! There, dog! Come on—more! Let us make a quick end of it.”

“At them!” Gonzales was bellowing in his great voice. “Make them walk the plank, the curs! String them up at the yardarm! No quarter, wretches! Hah! Try to split open an honest pirate with a blade, will you? There, misguided imbecile!”

Dead and wounded Indians fell inside the wall. Determined men ran from other parts of the plaza at the *comandante*’s command. Foot by foot they cleared the top of the wall, then caught up muskets and poured a hot volley into the struggling, frenzied mass below. Side by side, swords and poniards in their hands, they held their places while the loyal neophytes behind them reloaded muskets and pistols.

The hostiles were beaten back; they attacked at another point. Like waves breaking against a rocky shore they surged against wall and buildings and rolled away again, leaving their dead and wounded behind.

They concentrated an attack against the storehouse, trying to make a breach in the wall, and failed. They battered at the windows of the church in vain. Always strong adobe confronted them, every foot guarded by determined

men who shot cheerfully and well and answered not at all to the frenzied cries, save by discharge of firearms.

Again a retreat and an hour of quiet, and then another rush at the corner of the adobe wall, a rush more determined than the others, and that almost won at the outset. Other parts of the plaza were left unprotected as the entire strength of the garrison gathered to repulse the charge. Storehouse and church were abandoned for a time, except for a few men in each place to give alarm if a counter-attack was started.

The hostiles were driven back, but the defenders had sustained heavy losses. There were dead white men just inside the wall; three wounded troopers groaned as they staggered across the plaza to receive medical aid; and Sergeant Cassara howled maledictions upon renegades and hostiles as Gonzales bandaged a bad cut in the Santa Barbara soldier's shoulder.

"Save me my blood, good pirate!" he cried. "Stop its flow, for the love of the saints, before I lose so much that I am weakened! If I were to meet this Fly-by-Night and had not the strength to stand up before him——"

"Hah! I'll attend to the renegade in your name and my own, comrade!" Gonzales replied. "You can lose twice this blood and still fight. 'Tis a clean cut and soon will heal—just a mere prick in the skin. You have been living too soft; in good condition you scarcely would notice a slash like this. In my pirate days——"

"Spare me your pirate days!" Cassara cried. "A mere prick in the skin, eh? Give me my blade!"

"It were best for you to rest here beside the wall for the time being, comrade, and get back your strength."

"My strength? A mere prick in the skin? Hah! My blade, good pirate!"

A chorus of shrieks came from the wall; the hostiles were attacking again. Gonzales turned and ran to his place when he heard the *comandante* screeching orders. Sergeant Cassara staggered to his feet, stood for a time with legs spread wide apart until he could walk without reeling, then picked up blade and returned to the combat.

Gonzales, firing and using blade by turns, realised that the sergeant stood beside him again.

“Hah! At them, brave soldier!” he cried. “To your right, man! That cur almost had you! Easy—easy! You still are weak.”

“Prick in the skin!” Cassara hissed, and sent his blade home again.

Another rush, and for a time the defenders of the wall settled down to desperate work. The hostiles seemed to be getting the better of it. Half a score of times they broke over the wall, some to fall inside dead and wounded, others to fall back before the infuriated counter-assault of the defenders.

Cassara, cutting and slashing savagely, felt blood flowing from his wound again and realised that he was growing weak. A film seemed to be before his eyes, his blows came not so frequent and swift.

“Hah! ’Ware on your left!” he heard Gonzales shout.

As through a screen the sergeant saw a giant hostile swinging at him with a bludgeon. Cassara drew back and swung his sword, but not in time to cut down his enemy. He felt a terrific blow on the side of his head, his senses reeled, and he fell backward off the wall with the vengeful shriek of Gonzales ringing in his ears as the pirate ran the hostile through.

For several minutes he remained huddled on the ground while the fight raged about him, and then he began crawling to one side, following the wall, trying to get where he would not hinder the others, and remain away until he recovered strength.

Propped against the wall of the storehouse, he watched the conflict on the other side of the plaza, too weak to stand, his head swimming, scarcely able to lift an arm. Shadow-shapes came and went before him; the shrieks seemed far away.

“By the saints—!” he gasped. “A club—a club to render me senseless! Carlos Cassara, who has stood up to good fighters, to be beaten down by a common club in the hands of a gentile cur! A mere club! Hah! I shall go mad!”

He tried to wipe the film from in front of his eyes and peer at the wall. It seemed to him that the shrieks had redoubled, and he sensed that his comrades were giving way before the onslaught of the enemy. He tried to cry encouraging words, but merely made a rattling noise in his throat.

“Mere—club—” he gasped.

Someone rushed before him. A firebrand fell in the plaza—and by its momentary glare Cassara saw a man standing with a pistol a score of feet away.

“Wha—what—?” he began mumbling. And then, suddenly, realisation came to him. This man before him was Captain Fly-by-Night, the renegade. He was here, in the middle of the plaza! What did it mean? Had the attack on the wall been a subterfuge? Had hostiles invaded the church and now were attacking the defenders in the rear?

Fear for his comrades clutched at the heart of Sergeant Carlos Cassara. He gathered his remaining strength and tried to stagger to his feet, but could not. He still was sick because of the blow he had received, and from loss of blood. Huddled beside the wall of the storehouse, he drew air deep into his lungs, and expelled it in a series of shouts that rang out above the din of battle.

“Ho! Hah! Behind you, comrades! They are behind you! Captain Fly-by-Night is in the plaza!”

The glare of the firebrand died out, and, as it died, Cassara saw Fly-by-Night turn and face him for an instant, glance back at the wall, then flee toward the church and enter it.

“Behind you!” Cassara shouted again. “Fly-by-Night behind you!”

Now some of the men had run from the wall and were gathering around him, Gonzales at their head.

“He was—there! He ran into—the church!” Cassara went on.

Roaring a challenge, Gonzales rushed across the plaza with half a dozen men at his heels. Another firebrand struck inside, and its glare revealed every corner. Gonzales rushed into the church, weapons held ready. The men with him searched every nook and corner, but none was there except the two men left on guard. A soldier ran for the firebrand and carried it into the church contrary to orders; but its light revealed no renegade crouching and ready for sword play or pistol shot.

Gonzales and his men hurried back to the plaza and stood over Sergeant Cassara again.

“The blow on your head turned your wit,” the pirate said. “You saw Fly-by-Night, eh?”

“I swear by the saints he stood before me, watching you on the wall.”

“Take no oath by the saints until your head is better, sergeant mine, else you perjure yourself. There is no sight of the man in plaza or chapel—and the men guarding the church saw no one.”

“I tell you he was here! *Dios!* Cannot a man believe his own eyes?”

“’Twas your imagination. The blow caused you to see this Fly-by-Night along with stars and meteors.”

“I saw him——”

“Then you saw a ghost!” Gonzales declared. “Rest you easy, sergeant mine, and frighten us no more with old women’s tales of hostiles at our back.”

“I tell you——”

“Tell it to the ghost if he comes again!” Gonzales snorted; and hurried back to the wall, where the hostiles, beaten off again, were retreating to prepare for another assault.

Sergeant Cassara propped himself up against the wall of the storehouse and gazed into the darkness, half expecting the sound of a stealthy step near him. The weakness came again, and his head sank forward. He struggled in vain to keep his eyes open, keep his senses alert. And just before he lapsed into unconsciousness he gripped the hilt of his sword and moaned into the night:

“I shall go mad! By the saints! I shall go mad!”

## CHAPTER XX

### ANOTHER VISITOR

The dawn!

Some trooper started the cheer when the first faint red streak began to show through the fog, and the others took it up, until all the defenders at the mission were hailing the day except the frailes busy with their prayers.

The dawn meant that no more could the hostiles approach under cover of darkness, make unexpected attacks in certain quarters, or slip up unnoticed until within a few feet of the walls. Now they could be observed easily on every side, and an open charge could be met by a concentrated defence.

As the day broadened and the fog began to lift a constant pattering of musket slugs beat against the walls, and flaming arrows were still being discharged. Neophytes carried food and water and wine to the men on the wall and at the windows of the buildings, and they ate and drank as they fought, trying to pick off enemies when head or leg or arm showed.

Every boulder had a hostile behind it, every pile of debris, and they were intrenched behind the wall of the orchard, from which comparative security they showered bullets against those of the mission.

Dead and wounded gentiles and traitorous neophytes dotted the ground on every side of the plaza. Eight defenders were stretched in a row near the wall, victims of the conspiracy. More than a score wounded had been quartered in the church, where the frailes attended to their injuries as well as they could, for the church was where the last stand would be made if necessary.

A nervous, anxious *comandante* paced the plaza, scarcely speaking to his men. Ensign Sanchez, from a position near the end of the wall, had glass to eye, searching El Camino Real for a cloud of dust that would tell of the

approach of the Governor and his force, fearing as he looked that it would not be possible for his excellency to arrive until the end of the day.

A great deal depended on what had transpired at San Luis Rey de Francia. There was a chance the Governor would have to stop and give aid there and could not continue to San Diego de Alcalá. It was certain the hostiles knew the Governor was coming, and would attempt to gain possession of the mission before his arrival.

Sergeant Cassara still sat against the wall of the storehouse, and Gonzales, down on his knees beside him, was holding a wine cup while the sergeant drank. Gonzales had suffered a minor wound, but made little of it.

“Together, we have not lost enough blood to dye a lady’s handkerchief,” he said. “’Twas the knock on the head made you faint, sergeant mine.”

“Carlos Cassara to be knocked on the head with a club!” the sergeant groaned. “I shall go mad!”

“Another man would have had his skull crushed by the blow. How feel you now?”

“Excellent well, good pirate, except my neck be so stiff I cannot turn my head.”

“Hah! Dost want to look behind you to pick out a way to run?”

“Now, by all the saints——”

“’Twas but a jest, Carlos, my friend. You are able to fight again?”

“Let the dogs but attack and I’ll take my place beside you,” the sergeant boasted.

“You have seen no more ghosts?”

“’Twas no ghost! ’Twas Captain Fly-by-Night himself, may the imps of evil seize upon him! Laugh, and you like! I saw him, by the light of the firebrand, standing in the plaza, pistol in hand.”

“We’ll say no more of it,” Gonzales proposed. “’Tis no thing to cause argument between friends. What is a ghost? Hah!”

The door of the guest house was thrown open, and the giant Pedro stalked out, followed by Señorita Anita Fernandez and Señora Vallejo. It was plain



to be seen both women had been weeping. The *comandante* hurried toward them, cap in hand, and spoke with them for a few moments, then conducted them along the wall toward the church.

“Displaying the women folk,” Cassara whispered to his friend. “’Twill make the men fight better. What a girl that is!”

“’Twere hard to die as this Rojerio Rocha died, knowing death robbed him of such treasure,” Gonzales replied.

“He is dead, then?”

“It is assumed so. Why would hostiles hold him prisoner when they are running wild to kill other good men?”

“Why didn’t they slay him at the rancho with Señor Lopez and the others? Answer me that!” said Cassara. “How does it happen this Fly-by-Night got the women from the ranch-house and fetched them here? Answer me that! Why does this girl gasp and say it is too horrible, yet give no details? Reply to me concerning that! Hah! When this row is at an end there’ll be explanations enough to occupy a year of his excellency’s time!”

“The women are going into the church to pray,” Gonzales announced, for lack of anything better to say. “’Tis well. As for me, I do my praying as I fight. It is an excellent custom. I noticed a fray as dawn broke doing the same thing. Load and fire—then on his knees—arise—load and fire again. He kept it up for half an hour.”

“The bells of the mission rang as usual this morning, I noticed,” Gonzales said.

“And did you hear the fiends yell and double their volleys at the same time? Hah! Drown the sound of mission bells by shrieks and shouts? They’ll ring down the centuries, my good pirate—ring either in fact or fancy as long as two chunks of adobe cling together! Hah! I grow poetical, pirate! Is it a sign of approaching death?”

“It is a sign of approaching lunacy,” Gonzales answered, and stood to his feet to watch Señorita Anita and her *duenna* as they came from the church and crossed the plaza to the guest house again, heads bowed and hands clasped, a fray behind them, the *comandante* hovering near.

The crest of the hill behind the mission flamed red suddenly as a volley was fired. The cries of the besiegers were redoubled. The *comandante* and the ensign called commands. Gonzales picked up musket and hurried to the wall, and Sergeant Cassara got slowly upon his feet, balanced himself dazedly against the storehouse wall for a moment, then clutched his own musket and staggered weakly after his friend.

From all sides came the rain of bullets, while over the crest of the hill poured charging hostiles in a mad rush toward the plaza. Others remained at the crest and covered the charge with volleys, keeping the top of the wall clear until those concerned in the assault were within striking distance.

Then the top of the wall burst into flame, and the charge hesitated for an instant, recoiled, gathered courage and continued. Once more hostiles and defenders fought hand-to-hand with pistols and swords and knives.

More dead were stretched beside the wall inside the plaza, more dotted the ground outside. Additional wounded shrieked or groaned in pain. Half a dozen savages invaded the plaza, to be caught in a corner as in a trap and exterminated. The assault failed, as had the previous ones, but it had proved costly to the defenders.

Now there was quiet for an hour, except for the continual shots fired by hostiles under cover. Frailes worked frantically with the wounded. More ammunition was distributed. Ensign Sanchez swept El Camino Real with his glass, and turned away disconsolate. The *comandante* walked from post to post, cheering his men, his face contradicting the words he spoke.

“A few more charges like that,” Gonzales was saying, “and there’ll not be enough of us left to make a defence. No gentile had brains enough to cover an advance from the crest like that. Hah! If ever I meet this renegade who leads them——”

“The mere thought of standing before him makes me strong again,” Cassara replied. “I pray both of us will have pistols empty and be forced to use naked steel.”

A fusillade interrupted him, a renewal of war cries smote the ears of those in the plaza. Men raised weapons to fire, expecting another charge. And over the crest of the hill fled a man who waved a white cloth above his head and plunged down toward the mission.

“A white man! Don’t fire! A white man!” *comandante* and ensign were shouting.

Now the crest was alive with Indians, who fired repeatedly at the fleeing figure. Some gave chase until bullets from the wall cut them down. On and on raced the fugitive toward the promised shelter of the mission.

“’Tis this Rojerio Rocha!” Cassara shouted.

## CHAPTER XXI

### IN THE GUEST HOUSE

“Rojerio Rocha! He has escaped them!” Others took up the cry, and cheers from those along the wall greeted the flying man, cheers of welcome and encouragement. The Indians on the crest were still firing at him. He dodged from side to side as he ran. Now he dropped the white cloth he had carried, glued elbows to his sides, and ran on. He stumbled, fell, regained his feet.

“Help him!” the *comandante* cried. “Aid him inside, you men!”

The fugitive crashed against the wall. A musket was let down, and he grasped it, and they pulled him up and lifted him over—to see him collapse on the ground breathless, his eyes rolling, clutching at the breast of his cloak as if it pained him to try to breathe.

“He has been hit!” a fray cried; but the man shook his head. They gave him wine, and he drank, and gasped until he got his breath.

“The fiends!” he cursed. “They were holding me—expected to torture me—with Señorita Fernandez—said her father—had been cruel. I managed—to get free of bonds. They will—attack again!”

Even as he spoke the second attack came. Again a throng of savages rushed down the slope while others poured a volley at the wall. The hostiles in the orchard joined in the charge.

They reached the corner of the wall, piled against it, made their way upward in the face of musket flashes and blades. Shrieking chiefs urged them on. One by one the defenders crashed to the ground inside. The ranks closed up. All other parts of the square were abandoned as men rushed to the threatened corner. The man who had escaped the hostiles was forgotten.

He got upon his feet and stood against the wall for a moment, clutching at his breast as if it still pained him to breathe, and then he tottered toward the

storehouse. A jug of water was on the step, and he lifted it and drank, then staggered inside.

One soldier had remained there to guard, and was standing at the wide window, musket ready, prepared to fire and give an alarm if the Indians attempted to gain entrance there. He whirled around as the other man stumbled against a counter.

“Thank the saints you escaped!” he cried. “It was a close call, Señor Rocha.”

“A musket,” the other demanded. “Weapon and ammunition! Am I to stand by idly while others fight?”

The soldier got a musket from the corner and handed it over, and turned for powder and ball. The man behind him swung the heavy weapon over his head and crashed it down on the soldier’s skull, and the storehouse guard was stretched on the floor.

It did not seem to pain him to breathe now, for he was done with acting. He hurried across to the window and worked frantically to unfasten the bars. For an instant he leaned out and waved a cloth.

A group of hostiles beside the orchard wall had been waiting for that signal. Now they ran wildly across the open space—a score of them—some falling on the way, men from other groups of hostiles joining them. Shrieking their battle-cries, they poured through the window the renegade had opened and plunged into the plaza.

At the same time hostiles swarmed over the end of the wall, enough of them to make a stand. Beset front and rear, the defenders stood back to back and fought courageously. More men fell. Loyal neophytes had been slain as they loaded weapons; and there was no time for the remaining defenders to load now, nothing to do except use muskets as clubs, hurl pistols in savage faces, and wield swords and poniards.

“The women—the church!” the *comandante* shrieked to a fray.

It was the first admission that conditions were serious. The fray bowed his head and joined another, and they hurried across the plaza to the guest house, where Señora Vallejo was praying in a corner and Señorita Anita standing at a window watching the combat, a knife clutched in one hand.

“Quick—the church—it is the last stand!” one of the frailes cried.

The *señora* got up and hurried to the door, grasping at a fray’s arm, tears streaming down her cheeks.

“*Señorita*,” the fray called.

“I remain here,” she said.

“The *comandante* has said you must go to the church.”

“I remain here!”

In her brain was beating the sentence the caballero had spoken—that she was to remain in the guest house, no matter what transpired. She was not certain the words had not been a boast. She could not imagine how a rescue could be made, though she had reason to know he was clever at rescue work, unless he led the hostiles and intended to save her after the mission had been taken. But she remembered, too, how he had declared he was no traitor, and believed in her heart he had spoken truth.

“This is madness!” one of the frailes cried.

“Go! I remain here!” she answered.

“We must make haste. I’ll return for you, *señorita*!”

The frailes hurried outside with the *señora* and ran across to the church. The defenders were retreating across the plaza now, fighting every foot of the way, backing sullenly but hopelessly and attempting to carry their wounded with them.

Looking out of the window, *Señorita Anita Fernandez* knew in her heart that the frailes would never be able to return across the plaza for her—that hostiles would be in front of the guest house before they had placed *Señora Vallejo* inside the church.

She drew back from the window, still clutching the poniard. She could not feel much faith in the caballero; saw naught but death before her. Death self-inflicted if hostiles invaded the guest house and started to take her prisoner! Death if the caballero appeared with mask thrown aside and as leader of the hostiles after all! Death if he did not appear and the traitorous *Rojerio Rocha* did, and attempted to claim her as bride! Death—naught but death!

She rushed to the window again and saw that the defenders had been driven back to the door of the church. The plaza was filled with shrieking hostiles. Muskets crashed, steel rang. Dead men and wounded men were scattered over the ground. The storehouse was being looted even now.

Again she crept back near the fireplace in the wall, and her lips moved in prayer. The door was thrown open, and she made the poniard ready, for it was an Indian who stood framed in it for an instant. Then she gave a glad cry—the Indian was Pedro, the faithful servant.

But the cry died in her throat as she remembered that there was a possibility that even Pedro had turned hostile now that men of his race were victors. She gazed wide-eyed as he half closed the door and faced her.

“I have come for you, *señorita*,” he said. “I noticed you did not go to the church with the *señora* and others. But we cannot cross the plaza now, for it is full of hostiles. We must remain here—and I can die beside you, *señorita*!”

He turned to close the door and lift the heavy bar across it, but it was hurled wide open against him, sending him recoiling against the wall, and another entered.

“You?” Señorita Anita gasped. “You—Rojerio Rocha!”

He made no answer, scarcely looked at her. Whirling upon the neophyte he pointed toward the open door.

“Out!” he commanded.

For an instant the Indian seemed to flinch with fear; then courage returned to him, for he thought the man before him misunderstood.

“I am no hostile,” he said proudly. “I came to help protect the Señorita Anita. Ask her if I have offered harm.”

“Out!” came the command again.

“I am loyal. The hostiles will slay me!”

“Go out, I say!”

The man’s manner seemed to flash a warning to the neophyte. He turned swiftly and glanced at the *señorita*, and observed that she was clutching the

poniard and staring at the man in horror.

“If the *señorita* commands—” the neophyte began.

“Will you go out, dog?”

“No—no, Pedro!” the girl implored. “This man——”

But the roar of rage from the throat of the white man drowned the remainder of her sentence, and the neophyte did not hear. Standing against the wall he beheld the other man bearing down upon him with poniard ready.

“I am loyal!” he cried. “I will help you! You do not understand! I am Pedro, and I have——”

A hand clutched at his throat, the point of the blade was at his breast. He was hurled to the doorway, staggered, stumbled when the other man threw weight against him.

“Here is a loyal man—attend to him!” he heard his antagonist shriek.

Then he fell full length into the plaza, and shrieking hostiles rushed upon him.

“Do not—understand!” he gasped; and died from a pistol shot.

And a laughing renegade hurled the door shut, barred it securely, and still laughing turned to face the terror-stricken girl crouching at the corner of the big fireplace.



## CHAPTER XXII

### “COMMAND ME, SEÑORITA!”

He ignored her a moment longer, running to the window and looking out across the plaza. The doors of the church were closed, but from the windows streamed hot lead, and from all parts of the plaza, and from the rear outside, hostiles were firing at every aperture.

“’Twill not last much longer,” he said, laughing again, and then turned from the window and confronted the girl.

“So you escaped the rancho?” he went on. “Very clever of you, *señorita*, though I cannot imagine why you should leave security and come to this place, where there has been grave danger. You may be glad to know that your escape caused three Indian guards to lose their lives. I had promised them death if you evaded them, and I always keep my promises. I handed them over to their chiefs—it was enough.”

“Oh!” Her cry was of horror, pity, loathing, a world of expression in a single syllable.

“We investigated the fireplace and chimney, and found an open window,” he continued. “It was beyond me that you and your *duenna* could open the chimney in that manner, for I thought at first, of course, that you had done so. Then I remembered the stampede of horses, knew you must have had a mount to make the journey to the mission, and realised there was help from another source. Who aided you, *señorita*?”

“A gambler, swindler and thief, a wronger of women and a worthless vagabond, according to the world’s estimate of him,” she replied. “Yet a man beside whom you are not worthy to crawl, Rojerio Rocha, despite the blood that flows in your veins.”

“I can imagine but one such contradictory paragon. So it was this man you call Captain Fly-by-Night?”

“It was, *señor*.”

“Did Señorita Anita Fernandez so far forget herself as to ride through the night, even with her *duenna*, in company with such a character?” he sneered. “I had it in mind to wed you, *señorita*, but if you have been consorting with such persons——”

“*Señor!*” she cried angrily, her face aflame.

“That touches you, does it? However, I am master now. As you are aware, the revolt has almost made a winning here at San Diego de Alcalá. Another quarter hour and my hostiles will be inside that church and attend to their enemies. An hour, and the mission and presidio will be black ruins, and we return to the rancho for a wedding feast and honeymoon, *señorita* mine. So your escape availed you nothing. Did you hope to escape me again by remaining in the guest house while the others fled into the church? Or, perhaps, did you hope I’d find you here, alone?”

“Renegade!” she taunted.

“Hard names do not injure me, *señorita*, in the hour of my success; and, as I told you before, you are beautiful when aroused and angry. ’Twas a pretty fight your friends put up here at the mission, and cost us many men, but there was only one end possible. Have you heard of my exploit, *señorita*? And that reminds me—I was accepted as a friend by the men in the plaza, so you must not have told them of our little interview out at the rancho.”

“I told them nothing,” she said.

“Hah! You had that much affection for me, then? You loved your family name that much?”

“But I regret now that I did not,” she answered.

“It would have been the same had you told. It was a great trick we played. Hah! Like fools they swallowed the bait. I broke over the hill and ran, with hostiles pursuing and firing at me. Those at the wall helped me inside, and I gasped out that I had been held for torture and had made my escape. It was a pretty bit of acting, I assure you. Then another attack—and while all were busy it was an easy matter to slip into the storehouse, put the guard out of the way and throw open the window. In my friends tumbled—to take the defenders in the rear. Poor fools!”

“I would to God I had told them!” she cried.

“But you did not, eh? Why not make the best of matters, *señorita*? I am master and I have said you are to be my bride. Why not surrender gracefully, when there is nothing else left to do?”

“There is something else left to do,” she answered. “There always is death waiting.”

Now she stood up and faced him, and he saw that she clutched a poniard in her hand. The terror had gone out of her face, and in its place was cool determination. Her lips were set tightly, her bosom heaved with emotion. There was no doubt in the mind of the man that the girl before him would plunge that knife into her heart. He knew the proud breed of the Fernandez.

“There is always death, and it will be welcome,” she went on. “Why should I live? Do you think, Rojerio Rocha, you ever could claim me for wife? Do you think I would mate with a renegade murderer whose hands are stained with loyal blood? Can I live, even if I escape you, with the knowledge that men and women know one of my family has done such a thing?”

“If such a thing as escape were possible, you could,” he returned, lightly. “Unless you have told them, none here knows I have turned traitor, *señorita* mine. They have been too busy to watch or question me since they aided me over the wall. And in a few minutes all will be dead, since that is the better way, and dead people do not talk of treason.” A pause. “But escape is not possible.”

“Then—this—” She lifted the poniard again.

“So you would slay yourself, eh? You are young and beautiful to die, *señorita*. It is a foolish whim.”

He did not take his eyes from hers. He knew she would drive the dagger home if he attempted to approach. Before he could reach her side and take the weapon from her, she would thrust it into her breast. He did not doubt it for an instant.

He tried to think of a subterfuge to get her close to him, so he could tear the poniard from her hand. If he could make her angry, so she would attack him, it might be possible.

“Were this man you call Fly-by-Night here in my stead, *señorita*,” he sneered, “I presume you would drop dagger and rush into his arms. You speak of a stain on the family name—when you have allowed such a man to rescue you, have ridden the miles between rancho and mission in his arms, perhaps——”

Her face flamed again, and he laughed scornfully.

“Captain Fly-by-Night acted the gentleman and caballero,” she replied hotly. “That is more than you have done, Rojerio Rocha.”

“You look upon me with hatred, and upon this fellow with eyes of love, perhaps.”

“*Señor!* It is like you to insult a defenceless girl! Did I have to give love to one of you, most assuredly it would be this man of whom you sneer. For you are as far below him, Rojerio Rocha, as the land is below the sky; and, knowing how low he is considered, that speaks my estimation for you!”

“A stain on the family name, eh?” he laughed scornfully. “I put it there, eh? What about you, *Señorita Anita*? So proud of your good blood and your family honour, so ready to die because they have been besmirched, eh? Hah! If there is stain upon blood and name, perhaps you have placed it there!”

He had gained his purpose now. She gave a cry of rage and rushed upon him, poniard lifted to strike. He seemed to recoil in sudden panic as she lunged toward him, then quickly turned to one side and darted forward. She guessed his trick then, and swung her arm to turn the blade against her own bosom.

But her arm was caught half-way and twisted so cruelly that the weapon clattered to the floor, she felt herself clasped to him, felt his breath on her face, heard his laughter ringing in her ears.

Then his kisses rained upon her face, as she twisted her head in an effectual effort to escape them. Shame and rage flamed in her cheeks and throat. She screamed, kicked, tried to free hands and hold him off, and always he laughed and kissed her more, and finally held her securely in his arms and looked down at her, while her eyes blazed with hatred and loathing.

“A pretty tigress!” he cried. “’Twill be a pleasant task to tame you, my sweet one, but tamed you shall be. How like you to rest in my arms, eh? Are they not as strong and at the same time as soft as those of this Captain Fly-by-Night? Struggle, pretty one! The sooner will you be exhausted. Come with me to the window, queen-to-be, and watch the culmination of the assault!”

He lifted her from the floor and carried her across the room while she fought to be free. He held her there at the window, held her hands so she could not cover her eyes and laughed when he saw that her eyes were closed.

“You’ll not look?” he said. “Then I’ll relate, *señorita* mine. Just now my men are battering at the church doors while others pour volleys into the windows to drive fear to the hearts of the defenders. Five minutes more, perhaps, and the fighting will be at an end. I have told the men to save me one padre. There will be an immediate marriage, *señorita*——”

“Never will I be wed to you!” she cried. “No padre will say the words!”

“He reads the ceremony or dies, *señorita*. Save his life or not, as you please; by telling him you are willing you will save it. And then, if he refuses to speak the words— Hah! Ceremony or no ceremony, *señorita*——”

She twisted from his arms and dashed away, but before she could reach the poniard on the floor he had put a foot upon it, and standing there he laughed at her again. Shrieks came from the plaza as the hostiles battered in the doors of the church. The cracking of flames told that some of the buildings were being destroyed. But the man in the guest house had attention for nothing except the girl who stood before him panting in fear and anger.

“Resistance avails you naught,” he said. “Be sensible, my pretty *señorita*; agree to what I say.”

Terror clutched her now; whimpering, she crouched at the end of the fireplace.

“Even death is denied me!” she cried. “Is there no escape?”

“None, *señorita*, except by becoming my bride.”

“Never that—renegade, murderer, traitor! If, in all the wide world, there was but one honest man to aid me now——”

A deep voice interrupted from a corner of the room:

“Command *me*, *señorita*!”

## CHAPTER XXIII

### LOVE IN DARKNESS

The hand of the girl's tormentor flew to the hilt of his poniard as he whirled toward the sound. Anita gave a cry of relief and gladness, and then stared with bulging eyes toward the corner.

An aperture had appeared in the wall there, and Captain Fly-by-Night was standing just before it, bowing.

Now he raised his head and advanced two steps, and his blazing eyes met those of the other man. It seemed to the girl crouching at the end of the fireplace that the caballero's shoulders grew broader and that he grew in height. His clothing was covered with dirt, the beard on his face was scraggy, there were deep hollows in his cheeks and dark circles under his eyes—yet Señorita Anita thought him handsome now as he confronted the man who had insulted her.

"Hah! 'Tis Claudio again!" sneered the raging man in the centre of the room.

"You call yourself Rojerio Rocha, I believe," came the answer. "I am happy to find you here, *señor*. I have promised to slay you."

"Indeed?"

"To send your black soul to the Hades where it belongs," the caballero continued. "Men have died to-day because you plotted—better men than you! You have broken faith with friends, betrayed those who have been near you, swindled, lied, insulted helpless women, sent human beings to agonising death——"

"Enough! This from a man known as Captain Fly-by-Night, a man hunted by soldiers and hostiles alike? I have but to open the door, my fine caballero, and some of these same hostiles will finish you in the twinkling

of an eye. You hear those shrieks, caballero? They mean the hostiles have gained entrance to the church—that I am master—that I have won!”

“And in the hour of your hellish victory, you are to die! I have promised it!... *Señorita*, will you kindly step through this hole in the wall? There will be happenings here women’s eyes should not see.”

“I want—to see,” she gasped.

“I appreciate your feelings in the matter, *señorita*,” the caballero replied, bowing again. “Do you remain in the corner, then, out of the way.... As for you, *señor*, I notice you did not carry sword with you when you pretended an escape and reached sanctuary in the mission. But there is a poniard in your belt, and another on the floor beneath your foot. So it shall be poniards, *señor*!”

As he spoke, he took off his sword and threw it in the corner behind him, took dagger from his belt, and advanced two steps more with coolness and deliberation, as if he had been treading the measure of a dance. The man before him retreated, still clutching at his belt.

“’Tis like you,” he cried, “to fight a wounded man. Think you the slash you gave me in the shoulder has healed?”

“As to that, we are on equal terms,” the caballero announced. “I carry in my shoulder a musket slug no surgeon has had chance to remove, given me by one of your sentinels.”

“And why should I fight with you?” the other demanded. “A victorious general does not cross blades with a fugitive. One call from the door and you are undone!”

Two quick steps he took toward the door, as if to let down the bar and throw it open to call.

“Stop!” the caballero commanded. “If for no other reason, you should fight with me to show you are not a coward, *señor*. This lady, too, has called for assistance, and I have responded. Seek not to delay me until your men come from the church in search of you. You fight, else die with knife in back like a common cur!”

The other whirled toward him, snarling; their wrists crashed together.



They swerved and twisted, trying to gain advantage, the caballero silent and deliberate as he went about his business of killing this man who mouthed curses. Thrice around the room they circled, while the girl crouched in the corner, clasped hands to her breast and breathed deeply and watched from narrowed eyes.

“If you have prayers to say, renegade, say them now!” the caballero shouted. “Rojerio Rocha, scion of a noble family—you! In a moment we shall see whether your blood is blue. You have committed enough crimes to merit ten deaths, yet I can cause you but one!”

They separated for an instant, clashed again. The caballero spoke no more, and the watching girl saw that his face was white and that he bit at his lip and seemed to be growing weak. For the wound in his shoulder was paining, and he was struggling to keep the film from before his eyes, conserving strength for the final effort. His antagonist sensed the advantage and pressed the fighting. A cry of fear for the caballero came from the girl’s throat.

But he was not to be defeated yet. He braced himself and assumed the aggressive once more, and again they fought to the centre of the room. Now fear clutched at the heart of the caballero’s antagonist, and he showed his craven spirit and love of unfairness.

“Ho!” he shrieked, to be heard above the din of battle in the plaza. “To the rescue! Hostiles! Your general is being slain! To the rescue!”

A wounded man sitting before the door heard him and spread the alarm. A score of hostiles left the church and ran across the plaza to peer through the window of the guest house. They had been told not to enter there, but what they saw caused them to disregard their orders. In an instant they were battering at the door and shrieking to their comrades.

They appeared at the windows, some of them holding muskets ready to fire, but they dared not for fear of sending a bullet to the heart of their leader. Purposely, the caballero circled so that his enemy was between him and the windows; and now, feeling his strength going, half sick because of the pain his shoulder gave him, he attempted a quick end to the combat.

There flashed through his mind what fate was in store for the *señorita* if he went down before this man. He remembered other things, too, that gave him

an unnatural strength.

“The hole in the wall—get to the hole in the wall,” he cried to the girl; and she glided past the fireplace, not taking her eyes from the combatants an instant, until she stood where he had commanded.

A heavy timber was being crashed against the door now. Hostiles had left the windows to help break in. The caballero fell back toward the aperture, gasping, half reeling, blood flowing from cuts on his forearm. He staggered, and his antagonist rushed.

And then they were locked in each other’s arms for an instant while the caballero, calling upon all his remaining strength, bent the other man backward, broke his hold, drove home the knife!...

He stepped back, and the body of the other crashed to the floor. There was no question of the man’s death, for the caballero knew his poniard had found the heart.

Reeling toward the corner, as the heavy door began to splinter, hearing the cries of the girl in his ears as she begged him to make haste, he stopped an instant to pick up his sword from the floor. And then he was by her side, and she was half supporting him with her arms, and the big door fell with a crash to let a score of hostiles pour over it into the guest house.

A flash of flame—a bullet struck the wall within a foot of his head!

The caballero laughed wildly, hurled his poniard at the nearest Indian, stumbled into the dark tunnel and swung shut the section of the wall. They could hear the hostiles crashing against it on the other side.

They could not see each other in the darkness, yet Señorita Anita guessed that he was bowing before her; and there was the ring of proud victory in his voice when he spoke:

“*Señorita*, I have kept my promise—I have slain this man you called Rojerio Rocha. ’Ware my arm—it is wet! Perspiration—again—*señorita*!”

Quiet in the tunnel for a moment, save for the caballero’s heavy breathing and the girl’s gasps, as she still clung to his arm while he leaned against the dirt wall trying to recover breath and strength.

In the guest house the hostiles were shrieking news of the fact that their leader had been slain, and telling by whom, and screeches of rage came from them as they hammered against the strong adobe wall, some searching in vain for a way of opening the aperture, others doubting whether the aperture had been there. Some, superstitious, began to creep away, thinking there was a ghost somewhere in this business.

They could hear, too, the roaring of flames from the burning buildings, and the volleys of shots continued, showing that the defenders of the mission still kept up the unequal battle.

“You saved me—saved me,” Anita was breathing.

“I merely kept my promise, *señorita*. Thank you for remaining in the guest house—for your faith in my words.”

“Yet I doubted at times,” she said.

“No more than natural, since the words were spoken by such a worthless being as myself.”

“Call yourself worthless no longer!” the girl exclaimed. “Men must have told falsehoods concerning you. I cannot believe Captain Fly-by-Night to be the man they say.”

“Worthless compared to yourself, at least, *señorita*. Made better perhaps by my sudden love for you! But I must not speak of that, since you will think I insult you again.”

“Ah, it is not an insult now. Have you not saved me?”

“I do not ask love as a reward for service, *señorita*. And—I am strong again now, and we must be going.”

“Where?” she asked.

“Through this tunnel, though I scarcely know which way to go. The hostiles may open that hole in the wall soon, then this will be no safe place for us. I hope I have not saved you to have you placed in danger again.” He put an arm around her—nor did she protest—and led her slowly along the narrow cut in the earth, trying to shield her from falling dirt. Where the tunnel branched, he stopped.

“That way leads to the well in the orchard,” he said. “We dare not go there now, for the hostiles would see us. This leads to the mortuary chapel of the mission, a place that can be defended against both sides, *señorita*. I think it would be the better place. If I must die, where more appropriate than in a mortuary chapel, eh?”

“Do not speak of dying,” she said. “You must live!”

“Had I something for which to live——!”

“More than I have,” she replied. “What is there in the future for me? Where is there escape from this present predicament? Where can Anita Fernandez hold up her head, even if she escaped, since all will know one of her blood did this thing?”

“Think of your own sweet character, *señorita*! The faults of another cannot change that. You must live—live! We will make our way to the chapel, and please the saints I can hold it until the Governor comes! I pray he arrives soon, else he will find nothing but ruins and dead men.”

“If he does not come—? If he stops at San Luis Rey de Francia to give aid there——?”

“Then perhaps we are lost,” the caballero replied.

“You will not let them take me. You will slay me first?”

“You ask me to kill the thing I love,” he said. “Yet my love is great enough, I think, to do even that to save you from a worse fate. I promise, *señorita*. Yet I pray nothing of the sort will be necessary. I pray the Governor comes, and I can save you until then, and hand you over to him safely.”

“And—yourself——?” she asked.

“I am not concerned about myself. Life means nothing to me, *señorita*, when it does not hold your affection. Ah, do not turn away——”

“I am not turning away.”

“You have called me gambler, swindler, wronger of women. I swear I am not the last, *señorita*, nor have I ever swindled a man. Yet I am the notorious Captain Fly-by-Night, you say. I made a foolish boast that was an insult to you and was ostracized by all at San Diego de Alcalá—that is what I was told when I first came. I suffered—and you were kind. I saw you—

and I knew what love was. Can you conceive that love would purify a man, *señorita*, make him over, make him regret every mean and petty thing he had done in his life?”

“I—do not know.”

“We are in darkness here and you cannot see my face, but, if you could, I’d not be afraid you could read deceit there now. I’d gladly die a thousand deaths to save you a moment’s pain. I’d die ten thousand if I could feel your lips on mine an instant, know that your heart was mine! I often have laughed at love, but now I know its depth and sacredness. *Dios!* If there was but the slightest hope——”

Her hand tightened on his arm; her voice was the ghost of a whisper when she answered:

“How do you know there is not?”

“You play with me!” he said.

“And why should I, caballero? Since you met me you have given me no affront. Twice you have saved me——”

“It is gratitude makes you speak!”

“It is not gratitude, caballero. And, whatever it is, I have fought against it in vain.”

“It is pity!”

“It is—is love,” she said.

“For me?”

“For you, caballero. I hated your name before you came to San Diego de Alcalá. I hated you when you arrived. I tried to keep on hating you, and could not. Ah, have pity and be kind to me! Father, mother, friends—all are gone. There remains but you. Have pity—and be kind.”

“You need not offer me love to gain my protection, *señorita*. You have that always.”

“Can you not understand? I loved you even before you rescued me this day. When we were coming from the rancho I would have been glad had you

covered my face with kisses. That is immodest, perhaps, but I care not. It seems that love only counts now.”

“But if I am Captain Fly-by-Night, a rogue and outcast——”

“I love you!”

“Spurned by loyal men and traitors alike——?”

“I love you!”

“The man who boasted he would win you, *señorita*——?”

“You have made good your boast—you have won—still I love you!” she cried.

“*Dios!* The saints are good at last! Ah, loved one, could I but see your face now!”

“There would be no deceit in it, caballero. I love you! Have pity, and be kind!”

“Kind! May the saints teach me new ways of kindness! We must live—we must live now!”

He clasped her close, rained kisses on her face, felt her own lips respond to his, knew that tears were streaming down her cheeks. In the darkness that put night to shame they plighted troth, while the shrieks of hostiles came to their ears, and the cracking of flames, and the knowledge of violence and pain and death was in their minds. Yet in their hearts was a song such as love always causes, and a new courage to face whatever was to come....

“To the chapel—it is the only chance,” he said, after a time. “I pray the Governor arrives soon!”

“And then——?” she asked. There was sudden fear in her heart for her caballero. Had not the Governor ordered him taken alive or dead? Where was the way out?

But he had no chance to answer. Behind them a shaft of light struck into the tunnel; the shrieks came nearer. The hostiles had found the opening at last. Now they advanced swiftly, pistols ready, holding torches above their heads, crying vengeance on the caballero who had slain their leader.

With the girl still clasped in his arms, he stumbled on through the tunnel, making better progress than his pursuers since he had been through it so often before. He stopped once to discharge his pistol and check them for a moment, and then staggered on, bending low where the tunnel was small, running at times, shielding the *señorita* at the sharp turns.

He stopped. Far behind were the cries of their pursuers; ahead was the din of battle. The caballero peered through the crack into the mortuary chapel and saw one wounded soldier there tying a bandage on his arm. The door to the main part of the church was almost closed.

He hesitated only long enough to whisper instructions to the girl, then tugged at the section of wall so that it swung inward. With a bound he was in the chapel, his empty pistol menacing the trooper. Anita ran in behind him.

“Hold!” the caballero cried. “Not a move, *señor*, else you die!”

Covering the soldier with the weapon, he went back and swung the section of wall shut again. Then he whirled and advanced toward the other man, drove him ahead, hurried him through the door into the main body of the church and dropped the heavy bar.

“The last stand,” he laughed, clasping the girl to him again. “Foes behind; foes ahead; here we fight it out, beloved!”

They could hear the wounded soldier screeching the news to soldiers and frailes. Captain Fly-by-Night had appeared from nowhere in the mortuary chapel; Señorita Anita was with him! She was in the power of Captain Fly-by-Night!

But the caballero paid scant attention to the wails of the trooper he had startled. He was working frantically to block the opening in the wall. Benches, railings, adobe blocks, huge cubes of stone he tore from their places and piled against the movable section of masonry. The hostiles would have difficulty entering that way!

They heard the Indians in the tunnel screeching their anger at being thus blocked. Light from their torches came through the crack. From the main part of the church rolled the sound of volleys, the ringing of blades, groans, screams. Someone was pounding on the door of the mortuary chapel.

Anita Fernandez stood against the wall, breathing quickly, a whimsical smile on her lips, something of timidity in her manner now, and watched the man to whom she had given her kisses. For, despite danger and noise of battle, the caballero sat on a block of stone and loaded his pistol again—and as he loaded it he smiled and hummed a song.



## CHAPTER XXIV

### LOVE PROVES TRUE

The hammering at the door of the mortuary chapel ceased after a time, for those in the main part of the church had more serious business to occupy their attention than the attempted capture of Captain Fly-by-Night.

The front doors of the church had been battered in, and several times hostiles had invaded the building, but always to be driven back after suffering heavy losses, for men can fight with thrice their usual strength and courage when making a last stand against an overwhelming foe.

Now storehouse and hospital building and guest house were burning, the most of the loot having been removed, and clouds of heavy smoke poured into the church, half suffocating the defenders there, yet at the same time proving a blessing, since the dense pall made it impossible for those in the plaza to get good aim at a defender.

In a corner Señora Vallejo, some wives of ranchers and a few loyal Indian women and children crouched, the most of the time at their prayers. Dead men were against one wall, wounded against another, a fray attending to the latter. At the windows and both sides of the doorway stern men waited with muskets and pistols to fire whenever a hostile could be seen through the smoke. Thanks to the action of the *comandante* in removing supplies from the presidio, there was an abundance of ammunition.

Yet the defenders were being cut down one at a time, and it seemed only a question of hours until the enemy would triumph. It was the sudden, unexpected rushes those in the church feared, for if enough hostiles could invade the church at one time the defenders would be scattered and cut down.

“A ghost, eh?” Cassara was shouting in Gonzales’s ear. “So this Captain Fly-by-Night is in the mortuary chapel, eh? I told you I saw him go into the

church. He has been hiding there!”

“The imbecile trooper declares Señorita Anita is with him, and how can that be?” Gonzales wanted to know. “We are all aware that she was left behind in the guest house, and that Rojerio Rocha went there to save her. Since the guest house is in flames, it is to be supposed both died there.”

“The trooper saw double,” Cassara replied. “He had been wounded. But Captain Fly-by-Night is there, nevertheless, and presently we shall attend to him. Hah! When I stand before him——”

“If I do not face him first,” Gonzales interrupted.

“Bar the door, will he? ’Twill not take me long to break it in when I am at liberty to do so. ’Ware the window, good pirate! They are coming again!”

The hostiles had prepared for another rush, and now they made it, plunging through the smoke and into the church in an effort to exterminate their foes. A concentrated fire met them, as it had several times before. Some fell; others rushed on.

Here and there the combat was hand-to-hand. Every foot of the way they found disputed by a determined man. They were driven out again, leaving dead and wounded behind them; and those inside placed another man against the wall and bound up more wounds.

The smoke was stifling now. Women and children hung around the big water jars, gasping for breath. The faces of the men were grimy, their eyes red. *Comandante* and ensign rushed from one part of the church to another, alert for possible tricks of the enemy, taking advantage where it was possible. Frailes were building a barricade in a corner, preparing for the forlorn hope.

The Indians in the plaza seemed to be quiet for a moment, and then their shrieks were redoubled, and another assault was launched. Hoarse voices of chiefs shouted orders, a fusillade of shots tore through the doorway, and for a moment no man could live at the windows. Then came the rush!

More than one man felt that it was the last. The ranks of the defenders had been cut down until a mere handful remained. The frailes hurried women and children behind the barricade in the corner, and the soldiers retreated

foot by foot, resisting stubbornly but in vain. At close quarters shots were exchanged, blades rang, fingers tore at throats.

“Back—back! The barricade!” the *comandante* ordered.

Back they fell, step by step, still resisting, carrying wounded with them. Behind them the frailes and women were loading muskets and pistols, for the soldiers had no time to load now. One by one they gained the shelter of the barricade, until all were behind it, and then the hostiles faced a volley that drove them raging back toward the doorway. But they were inside the church—and the end was near.

---

In the mortuary chapel the caballero had been listening at the door, and when he turned to face the *señorita* his face held an expression she never had seen in it before.

“What is it?” she asked.

“The hostiles are inside—they have driven the defenders to a corner,” he replied.

“Then——?”

“Everything may end for us here. They will be before us and behind us. Either they will enter, or else fire the building. It is best to tell you the truth, *señorita*; we are in a trap.”

“If—they enter—you will remember your promise?”

He held out his arms, and she slipped into them, and for a moment their lips met. He was almost sobbing when he answered.

“I’ll remember.”

“You’ll not let them take me alive?”

“Never that, *señorita*! I wish we might face a different future. I am just beginning to find life worth the living,” he said. “But at least I can die knowing your heart is mine.”

Hostiles in the tunnel were still battering against the wall, trying to gain entrance. The caballero had been watching there carefully, yet found no cause for alarm. One shot had come through the crack, but it was an easy matter to stand in such part of the chapel that no bullet could reach them.

He crept to the door again and listened, Anita close behind him. The shots seemed to be scattering now, and he sensed that the Indians were preparing for the last rush. He heard the *comandante* shouting orders. Children were crying; the voice of a fray in prayer could be heard above the din.

Again the men in the tunnel assaulted the wall, and the caballero left the door quickly to stand in the centre of the room, pistol and sword ready in case an entrance should be made. But the barricade he had constructed against the section of masonry held despite the furious attack upon it.

In the church there was another chorus of shrieks, a volley, cries of pain and rage—for the final attack had begun. The caballero clasped Anita in his arms again, and so they waited for the end, the girl with her face against his shoulder and fingers in ears to keep out the death wails and frenzied cries.

The defenders were shouting now, in mock courage the caballero thought, going down to their deaths fighting, dying like men. Suddenly the battering at the wall ceased, and cries from the tunnel told that the Indians were retreating quickly. Word had been passed to them, he supposed, that victory was in the front, and they were eager to be in at the death. They would watch the outlets of the tunnel, of course; there could be no escape that way.

“It is the end, beloved,” the caballero breathed. “Our love dies almost as soon as ’twas born. You do not regret——?”

“I regret only that we cannot spend a life together, my caballero,” she replied. “Ah, ’tis cruel!”

Again their lips touched, and then he half turned from her, and motioned to the corner.

“Pray,” he whispered. “Pray there, beloved, with your back to me. I could not do it if I looked into your face. Pray until the end——”

Now she was white of face, and her lips were trembling, but she only looked him once in the eyes and then did as he said. Facing the wall, she

knelt and prayed, while the caballero looked to his pistol to see that it was properly charged, and himself said a prayer under his breath.

Six feet behind her he stood, his eyes upon the floor, his ears strained to catch every sound from the church. The defenders were putting up a stubborn resistance, for the *comandante* was still screeching orders, and the volleys crashed, and the hostiles shrieked their anger at being held from their prey.

And then the tone of the shrieks changed from anger to fear! The caballero stepped swiftly close to the door. He heard the defenders cheering; heard heavy volleying that was not inside the church; heard strong voices raised in shouts and the sound of galloping hoofs, the wailing cry of a fray.

“My God, I thank Thee!”

Sergeant Cassara’s great voice was raised in a howl of relief and encouragement. Running feet sounded in the church. The caballero’s heart was pounding at his ribs, and he was trying to beat from his brain the sudden hope he felt for fear it would prove unfounded.

Another volley; another chorus of shrieks as from a far distance; more cries of anger, and gladness, and surprise! Then a strong voice that had not been heard before:

“At those flames, some of you men! Help the wounded here! Get the women and children out of the smoke! Lieutenant, see that every hostile is run down—we want not one to escape! If we had been a minute later——”

Señorita Anita, busy with her prayers and her agony of mind, had not noticed these things. And now the caballero, with a glad cry, ran to her, lifted her bodily from the floor, and covered her face with kisses.

“The Governor, beloved!” he cried. “His excellency has come—in time! Oh, beloved—beloved!”

Once more the pounding on the door!

“Open, in the Governor’s name! We know you are there, Captain Fly-by-Night! There is no escape! Open!”

The caballero stood in the centre of the chapel with Anita nestling against his breast, and he spoke in whispers, giving no attention to the summons at

the door.

“You are safe now, beloved,” he said. “The world has not come to an end, you see. It is pretty much as it was before this revolt. You can be again with your friends, with people of your rank. Is life not good—after all?”

“With you it is,” she whispered in reply.

“When all was dark you spoke of love to me,” he went on. “There was nothing in the future for you then. But now there is everything in the future. You can face the world again——”

“Stained by a relative’s act, caballero?”

“Who knows of that? It is believed Rojerio Rocha died a loyal man. You know differently, and your *duenna*, and myself. None ever will open lips to speak of it. None other ever will know, *señorita*. You can hold up your pretty head as before, and live, and be happy. At the rancho the months will dim the memories of this thing. Think, *señorita*! You have no need of me now.”

“No need of you?” she asked.

“Have you, *señorita*? Things are different now. No longer do you need the worthless caballero like myself. Could you hold up your head if ’twas known Captain Fly-by-Night held your love?”

“I could,” she said, “and proudly!”

“If the man who boasted had won you——?”

“Still, I could!”

“Gambler, thief—renegade——?”

“The caballero who saved me, and whom I love—none other! And no renegade!”

“Yet there were orders to take me, dead or alive. Think you these dead and wounded men will change the Governor’s mind? I swear I had no part in this revolt, *señorita*, but none will think so, except perhaps your charitable self.”

They were pounding on the door again, but the caballero gave no reply.

“I love you,” she said simply.

“You gave me word of your love while in deadly peril, *señorita*, at a time when no other man could offer you protection, perhaps through momentary gratitude at what I had done. Now it is not necessary, *señorita*, for you to stand by that word. You have but to go through that door to be with your friends again—you need not lower yourself longer by companionship with Captain Fly-by-Night.”

“There is no one else,” she answered. “All are gone. And were there a million, did to stand by you mean to be ostracized by all the world, yet by your side I’d stand. Anita Fernandez does not give love for gratitude, *señor*. And she gives it but once!”

“My beloved!” he cried, holding her close.

Now the battering at the door would be denied no longer, and the Governor’s voice came to them.

“Inside, there! Open, Fly-by-Night, for there is no escape. If you have harmed the *señorita*——”

“I am here and safe,” the girl called.

“Thank Heaven!” they heard the Governor exclaim. “Open and surrender, Fly-by-Night! Surrender and take the consequences of your act!”

The caballero looked down at the girl again.

“There is no other way,” he said. “There is no escape——”

“N—no! Have you forgotten? Even if you can prove you had no part in the uprising, there is still another charge. Did you not slay Rojerio Rocha? He was the Governor’s friend. My word, the *señora*’s, that he was the real renegade, would not be taken in the absence of other proof. Think you the Governor would believe ill of his dead friend? They’d have your life——”

“There is no other way, beloved. One kiss—again—and I must open the door!”

“No—no! I cannot lose you now!”

“It would be better for you to pretend no interest in me,” he said. “Then my death as a felon will not stain you.”

“I stand by you, caballero, in the fact of whatever may occur; I tell my love to the world as soon as you open that door; I fight to save you—use every influence—and will be proud to let all know it! What care I what the world says, caballero? I know the man who holds my love—know him better than the world that has maligned him——”

“Ah!” he cried, and covered her face with kisses again. “This were love indeed!”

“Open the door, or we batter it down!” thundered the Governor’s voice.

“I’ll open it presently!” the caballero cried.

In the other room there was quiet for a moment while they awaited the caballero’s appearance. Before the door were Gonzales, Cassara, Ensign Sanchez, the lieutenant, all with swords drawn and held ready, all of them wounded slightly, all fatigued, yet all eager to cross blades with Captain Fly-by-Night.

“Back!” the Governor was ordering them. “I want this man alive, to make an example of him!”

Inside, the caballero took his arms from around the girl, and stepped to the door. In the face of such a predicament he still could smile and hum a song. But, as he touched the bar, Anita grasped his arm.

“I go out first,” she said.

“No——”

“Ah, do not deny me! There is something I would say——”

“As you please, *señorita*.”

“Kiss me again—again! Now—open the door!”

He took down the heavy bar and threw the door open. Those outside beheld Señorita Anita Fernandez standing before them, the caballero behind her. The girl’s head was lifted proudly, and her eyes flashed as of old, and she looked the Governor straight in the face as she spoke:

“Before this man gives himself to you I want you to know that I love him better than all the world——”

“Anita!” cried Señora Vallejo from one side.



“I want you to know that he denies being a leader of the hostiles, and that I believe him. Twice he saved me from dishonour and death. No affront has he offered. It is true he killed Rojerio Rocha, and, as for that——”

She stopped; for suddenly the caballero had stepped beside her, the whimsical smile playing about his face.

“Good day, your excellency!” he said, bowing low.

And his excellency, the Governor, bent forward, eyes bulging, lower jaw sagging for a brief second, then straightened and roared aloud:

“By the saints! Killed Rojerio Rocha, eh, girl? Hah! By the saints, this man before us is Rojerio Rocha, my good friend! Ah, boy, boy! They told me you had been slain!”

Before them all he took the dishevelled caballero in his arms!

## CHAPTER XXV

### THE SERGEANT SLEEPS AGAIN

“Explain, rogue!” cried the Governor half an hour later. They were in the plaza, where a temporary camp had been established. The fires were out, the smoke had drifted away. Wounded had received attention, and preparations were being made for burying the dead. In all directions troopers pursued hostiles and cut them down.

His excellency had told how the revolt at San Luis Rey de Francia and other missions had been quelled. The body on the floor of the guest house had been examined and word passed that here was the genuine Fly-by-Night, renegade and conspirator, and that the real Rojerio Rocha had slain him.

“Explain?” the caballero echoed. “’Tis a simple matter. When I reached San Diego de Alcalá I was mistaken for this Fly-by-Night. I thought to have jest by assuming the rôle. Then the hostiles, taking me for their leader through the same misunderstanding, came to tell me their plans. Being a loyal man, I maintained my rôle to learn all possible, and tried in every way to delay the attack until the force from the north could arrive.”

“Very good, my boy!” his excellency exclaimed.

“But they grew suspicious and soon I found myself at outs with white men and red. Then came word for Captain Fly-by-Night to be taken dead or alive at all costs. To everyone here I was Fly-by-Night, of course. The description sent——”

“A fool of a cleric copied your description from the pass record by mistake,” cried the Governor. “I’ll send him packing when I return!”

“It was at San Juan Capistrano that I first met discourtesy,” the caballero went on. “They knew of this Fly-by-Night’s insult to the *señorita*, assumed I was the man come to win her, and gave me to understand how they regarded me. Sorry trouble I faced by pretending to be another man.

“Then the real Fly-by-Night came, and because Rojerio Rocha was due, he was hailed as such. It amused him, no doubt, to be called Rocha and introduced to the *señorita*, placed in a position to win her. Moreover, it gave him a chance to continue plotting in security—for who would suspect Rojerio Rocha? You understand? And I could say nothing then, being known as Fly-by-Night. Oh, it was a pretty mess! Things were happening with such rapidity that he was not asked to show credentials, of course \_\_\_\_\_”

“And you faced death,” said the Governor, “became fugitive, allowed people to call you despicable in order to be of service to the state? A worthy caballero!”

“That was not all the object,” the caballero replied, laughing lightly and looking at Anita again. “I had heard of Fly-by-Night’s boast, you see; and when they took me for him I thought it would be a lark to approach the *señorita* in that guise. I was coming to wed her at her father’s request, you see. We were as good as wed, you might say, yet never had seen each other. How much better—I am sure you will understand, excellency—to win her true love under another name, to be sure she was wedding the man, not the distant relative her father had commanded her to wed.

“You see my point? And, if I could win her love as Captain Fly-by-Night, the man she despised—if I could turn her hatred and repugnance to affection, would I not be sure it was real love?”

“Hah!” the Governor cried, and looked at the blushing girl.

“It was done,” the caballero said. “And—thank the saints, it has been proved the love is real!”

And then he crossed before them, and Anita, seeing him coming, got upon her feet, and he took her into his arms and kissed her there before them all.

A padre lifted hand in blessing; Señora Vallejo smiled; the Governor nodded in approval; Gonzales, good pirate, swore softly under his breath at this display of young affection; and Sergeant Cassara slapped his thigh and cried unto the sky.

“*Dios!* So I cannot slay him after all? He is a friend of the Governor, eh? Not Fly-by-Night, but Rojerio Rocha, a proper fellow! I shall go mad! Better, I shall go to sleep for the saints know I need it!”

He threw himself on the ground against the wall; and presently he snored.  
And so the tale ends as it began, with Sergeant Carlos Cassara.

THE END

## **Transcriber's Notes**

1. Spelling, punctuation, and hyphenation were corrected for consistency. Archaic spelling was retained.
2. Quotation marks were added for clarity when the placement was obvious.
3. Simple typographical errors were corrected.
4. Duplicate title removed from p. 9.
5. New original cover art included with this eBook is granted to the public domain.

\*\*\* END OF THE PROJECT GUTENBERG EBOOK CAPTAIN FLY-BY-NIGHT \*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.



1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.